AGENDA
SULPHUR CITY COUNCIL MEETING
TUESDAY, OCTOBER 13, 2026, AT 5:30 P.M.

THERE WILL BE A REGULAR MEETING OF THE SULPHUR CITY COUNCIL, TUESDAY, OCTOBER 13, 2026, AT 5:30 P.M., **AT 401 ARENA ROAD,** SULPHUR, LOUISIANA TO DISCUSS AND ADOPT THE FOLLOWING:

CALL TO ORDER
INVOCATION – Marcus Wade, Christian Life Church of Sulphur
PLEDGE OF ALLEGIANCE
ROLL CALL
APPROVAL OF MINUTES
APPROVAL OF AGENDA

1. FORMAL STATEMENT OF NO CONFIDENCE in the administration of Mayor Jacob Stutes. I05-26 (Danny DiPetta)

2. RESOLUTION expressing the formal lack of confidence of the City Council of the City of Sulphur in Mayor Jacob Stutes and his Administration; reaffirming the Council's commitment to transparent, accountable, and lawful government; and providing for related matters. RES53-26 (Danny DiPetta)

3. RESOLUTION requesting that the Louisiana Attorney General and other appropriate governmental authorities review and, where warranted, investigate possible violations of the City of Sulphur Home Rule Charter, City Ordinances, Louisiana Law, and potentially applicable Federal Law; authorizing the transmission of supporting materials; and providing for related matters. RES54-26 (Danny DiPetta)

4. RULE TO SHOW CAUSE for the condition of the following addresses:

    a. To condemn shed/garage located at 308 Davis Drive, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. (Danny DiPetta)

    b. To condemn single story building or structure located at 325 Cypress Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. (Troy Darby)

    c. To condemn two-story building or structure located at 851 McArthur Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. (Danielle Monceaux)

d. To condemn single story building or structure located at 132 Foreman Avenue, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. (Troy Darby)

e. To condemn single-story building located at 511 Maple Street, in accordance with Article IX, Section 5-286 through 5-296 of the Code of Ordinances. (Danielle Monceaux)

5. PUBLIC HEARING on ordinance amending Chapter 12, Section 16 of the Code of Ordinances of the City of Sulphur – Grass and weeds – cutting required (grass on retail, commercial and business properties maximum height of 6 inches rather than 12 inches). ORD59-26 (Mayor Stutes)

6. PUBLIC HEARING on ordinance amending contract between the City of Sulphur and CrowderGulf, LLC for disaster recovery assistance following a natural or manmade disaster. (extend contract for 1 additional year and expand definition of "fill dirt") ORD60-26 (Mayor Stutes)

7. PUBLIC HEARING on ordinance amending the Code of Ordinances of the City of Sulphur, Louisiana, to establish safety, identification, marking, insurance, bonding, damage repair, and financial responsibility requirements for contractors, vendors, utility companies, and other persons performing work within the City of Sulphur; providing for protection of city property, public infrastructure, utilities, rights-of-way, and the public; providing for contractor responsibility for hazards, damage, and restoration; and providing for enforcement and related matters. ORD61-26 (Josh Baden)

8. PUBLIC HEARING on ordinance granting a Third Amendment for Lease Agreement between the City of Sulphur and Verizon Wireless for the tower located at 130 Benoit Lane. ORD62-26 (Mayor Stutes)

9. PUBLIC HEARING on ordinance granting a rezone to Asad Khan, 216 and 222 South Cities Service Hwy., from Residential to Business to allow for potential development. ORD63-26 (Danny DiPetta)

10. INTRODUCTION OF ORDINANCE authorizing Mayor Stutes to sign Contract with Rostan Solutions, LLC for a Public Works Supervisor for the City of Sulphur. ORD64-26 (Mayor Stutes)

11. INTRODUCTION OF ORDINANCE accepting the donation of property from Belle Savanne Partners, LLC, and authorizing the Mayor to execute said Act of Donation for property located in Mimosa Park Phase II Subdivision where a lift station is located. ORD65-26 (Mayor Stutes)

12. INTRODUCTION OF ORDINANCE amending Chapter 8, Section 6.1 of the Code of Ordinances of the City of Sulphur, prohibiting firearms and weapons on City of Sulphur government property; providing limited exceptions for authorized law-enforcement officers, requiring signage; and providing for an effective date. ORD66-26 (Josh Baden)

13. INTRODUCTION OF ORDINANCE amending Ordinance No. 1733, M-C Series, adopted July 12, 2021, to set forth a $10.00 fee for the Louisiana State Uniform Construction Code Commission. ORD67-26 (Mayor Stutes)

14. INTRODUCTION OF ORDINANCE abolishing and defunding the position of Chief of Staff for the City of Sulphur. ORD68-26 (James LeDoux, Danielle Monceaux, Josh Baden)

15. INTRODUCTION OF ORDINANCE amending the Master Services Agreement with Rostan Solutions, LLC, adopted November 9, 2021, to provide for an extension through November 8, 2027. ORD69-26 (Mayor Stutes)

16. INTRODUCTION OF ORDINANCE amending the Master Services Agreement with Rostan Solutions, LLC, for Task Order #1, in reference to Grant Management Services. ORD70-26 (Mayor Stutes)

17. INTRODUCTION OF ORDINANCE amending the Master Services Agreement with Rostan Solutions, LLC, for Task Order #2, in reference to Project Management Services. ORD71-26 (Mayor Stutes)

18. INTRODUCTION OF ORDINANCE amending the Master Services Agreement with Rostan Solutions, LLC, for Task Order #3, in reference to Consensus Based Codes Standards and Specification. ORD72-26 (Mayor Stutes)

19. INTRODUCTION OF ORDINANCE amending the Master Services Agreement with Rostan Solutions, LLC, for Task Order #4, in reference to Insurance Claim Cost Recovery Services. ORD73-26 (Mayor Stutes)

20. RESOLUTION accepting the recommendation of Mayor Stutes for the appointment of Billy Loftin as Assistant City Attorney/City Prosecutor for the City of Sulphur and authorizing the execution of contract. RES54-26 (Mayor Stutes)

21. RESOLUTION accepting the recommendation of Mayor Stutes for the appointment of Kenneth “Mike” Michael Wright as City Attorney for the City of Sulphur and authorizing the execution of contract. RES55-26 (Mayor Stutes)

22. RESOLUTION accepting the recommendation of Mayor Stutes for the appointment of annual audit firm Langley Williams and Co. and authorizing the execution of contract. RES56-26 (Mayor Stutes)

23. RESOLUTION appointing a member to the Civil Service Board chosen from a list of names supplied by McNeese State University. RES57-26 (Mayor Stutes)

24. RESOLUTION appointing a member to the Civil Service Board chosen from a list of names supplied by McNeese State University. RES58-26 (Mayor Stutes)

25. RESOLUTION authorizing the advertisement of bids for the annual supply of pipes and fittings, limestone & asphalt and chemicals for the City of Sulphur. RES59-26 (Mayor Stutes)

26. RESOLUTION awarding low bid received for a Vacuum Truck for Public Works. RES60-26 (Mayor Stutes)

27. RESOLUTION awarding low bid received for a Dump Truck for Public Works. RES61-26 (Mayor Stutes)

28. RESOLUTION appointing Stephen Benoit to the West Calcasieu Port, Harbor and Terminal District. RES62-26 (Mayor Stutes)

29. DISCUSSION concerning the renegotiation of cost for the Lease Agreement between the City of Sulphur and BAB Rentals, LLC, for 501 Willow Avenue, for temporary facilities for City Court and Marshal's Office. I06-26 (Josh Baden)

30. EXECUTIVE SESSION to consider settlement of:

    Christopher Guidroz
    Vs. No. C-2025-3069 "B"
    City of Sulphur and Benjamin Kayne Morgan
    14th JDC

31. INTRODUCTON OF ORDINANCE approving proposed settlement and authorizing Mayor to settle the following suit:

    Christopher Guidroz
    Vs. No. C-2025-3069 "B"
    City of Sulphur and Benjamin Kayne Morgan
    14th JDC

32. PUBLIC COMMENT

This ends the public comment section of the meeting.

ADJOURNMENT

The next regular City Council meeting will be held on Monday, November 9, 2026, at 5:30 p.m. in the Council Chambers located at 501 Willow Avenue, Sulphur, LA.

In accordance with Louisiana Revised Statute (R.S. 42:14, persons with an ADA recognized disability who needs accommodations to participate in this meeting must submit a request online at www.sulphur.org via "ADA to address Council" form or contact the City Clerk by phone at 337-527-4571 before 8:00 a.m. of the designated day of the meeting.

RESOLUTION NO. M-C SERIES

A RESOLUTION REQUESTING THAT THE LOUISIANA ATTORNEY GENERAL AND OTHER APPROPRIATE GOVERNMENTAL AUTHORITIES REVIEW AND, WHERE WARRANTED, INVESTIGATE POSSIBLE VIOLATIONS OF THE CITY OF SULPHUR HOME RULE CHARTER, CITY ORDINANCES, LOUISIANA LAW, AND POTENTIALLY APPLICABLE FEDERAL LAW; AUTHORIZING THE TRANSMISSION OF SUPPORTING MATERIALS; AND PROVIDING FOR RELATED MATTERS.

WHEREAS, the City of Sulphur operates pursuant to its Home Rule Charter, ordinances, policies, and applicable state and federal law; and

WHEREAS, the City Council has a responsibility to protect the public interest and to ensure that the affairs of the City are conducted lawfully, transparently, and in accordance with the Home Rule Charter; and

WHEREAS, Section 2-08 of the Home Rule Charter provides the City Council with authority to investigate City affairs, officers, employees, departments, and other matters within its jurisdiction; and

WHEREAS, the Council has identified concerns and questions concerning the administration of Mayor Jacob Stutes involving personnel actions, administrative organization, expenditures, contracts, procurement, public records, governmental procedures, and other matters; and

WHEREAS, the Council has identified potential questions concerning compliance with Sections 2-08, 3.05, 4.01, 4.12(A), 4.12(B), and 5.10 of the Home Rule Charter, as well as applicable City ordinances, policies, and state and federal law; and

WHEREAS, the Council has separately adopted a Resolution Expressing No Confidence in Mayor Jacob Stutes and has prepared supporting documentation setting forth the Council's concerns; and

WHEREAS, the Council recognizes that allegations and concerns are not, by themselves, findings of legal liability or criminal wrongdoing and that an independent review is appropriate to determine the facts and applicable law; and

WHEREAS, the Council believes that matters potentially involving the Louisiana Open Meetings Law, Public Records Law, Public Bid Law, Code of Governmental Ethics, municipal finance and procurement requirements, and other applicable state or federal laws should be reviewed by the appropriate authorities when warranted; and

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, duly assembled, that:

SECTION 1. REQUEST FOR REVIEW AND INVESTIGATION

The City Council hereby formally requests that the Louisiana Attorney General and the Louisiana Department of Justice, to the extent within their respective authority, review the matters described in the accompanying request for review and investigation and, where appropriate, conduct, initiate, or refer an investigation concerning potential violations of the City of Sulphur Home Rule Charter, City ordinances, Louisiana law, and potentially applicable federal law.

SECTION 2. AREAS OF REVIEW

The Council respectfully requests that the review include, as appropriate, potential issues concerning:

1. Compliance with the Home Rule Charter, including Sections 2-08, 3.05, 4.01, 4.12(A), 4.12(B), and 5.10;
2. The exercise and delegation of mayoral, administrative, personnel, and departmental authority;
3. The creation, organization, appointment, compensation, duties, and authority of administrative positions and whether required Charter procedures were followed;
4. Personnel actions, appointments, removals, compensation, hiring practices, and related City policies;
5. Procurement, contracts, expenditures, purchasing, and compliance with applicable public bid and governmental purchasing requirements;
6. Compliance with the Louisiana Open Meetings Law and Louisiana Public Records Law;
7. Compliance with the Louisiana Code of Governmental Ethics and other applicable ethics requirements;
8. The use, expenditure, authorization, or disposition of City funds and property;
9. Whether any conduct may warrant review under other applicable Louisiana or federal law; and
10. Whether any matter identified by the Council should be referred to another governmental authority having appropriate jurisdiction.

SECTION 3. TRANSMITTAL OF MATERIALS

The Council Chairman, or his designee, is hereby authorized and directed to transmit to the Louisiana Attorney General and other appropriate governmental authorities, as applicable:

- this Resolution;
- the Council's Resolution Expressing No Confidence in Mayor Jacob Stutes;
- the accompanying request for review and investigation;
- relevant portions of the City of Sulphur Home Rule Charter;
- applicable City ordinances, policies, and procedures;
- supporting records and documentation;
- and any additional materials the Chairman determines are reasonably necessary to assist the reviewing authority.

SECTION 4. REFERRAL TO OTHER AUTHORITIES

If the Attorney General or other reviewing authority determines that any matter is more appropriately investigated, reviewed, or enforced by another governmental entity, the Council respectfully requests that the matter be referred to the appropriate authority, which may include, as applicable, the Louisiana Legislative Auditor, Louisiana Board of Ethics, appropriate prosecutorial authority, Louisiana State Police, or appropriate federal authorities.

SECTION 5. PRESERVATION OF RECORDS

The City Council requests that all potentially relevant City records, documents, electronic communications, text messages, emails, financial records, personnel records, procurement records, contracts, calendars, meeting materials, and other electronically stored or physical information relating to the matters identified in the accompanying request be preserved in accordance with applicable law and City policy.

SECTION 6. COOPERATION

The City Council, through its Chairman and authorized representatives, is authorized to cooperate with any governmental authority conducting a review or investigation arising from this Resolution and to provide additional information or documentation lawfully requested.

SECTION 7. CONTINUING COUNCIL AUTHORITY

Nothing in this Resolution shall limit or terminate the City Council's independent authority under Section 2-08 of the Home Rule Charter to investigate City affairs or to take any additional lawful action that the Council determines to be necessary or appropriate.

SECTION 8. NO PREDETERMINATION OF LIABILITY

This Resolution constitutes a request for independent review and investigation. It shall not be construed as a final finding by the City Council that any individual or entity has violated any law,

ordinance, or Charter provision. The Council expressly requests that the appropriate authorities determine the facts, applicable law, and whether any violation occurred.

SECTION 9. EFFECTIVE DATE

This Resolution shall become effective immediately upon adoption.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____, day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

YEAS:
NAYS:
ABSENT:
ABSTAIN:

September 23, 2026

The Honorable Liz Murrill
Attorney General of Louisiana
Louisiana Department of Justice
P.O. Box 94005
Baton Rouge, Louisiana 70804

RE: FORMAL REQUEST FOR REVIEW AND INVESTIGATION OF POSSIBLE VIOLATIONS OF THE CITY OF SULPHUR HOME RULE CHARTER, LOUISIANA LAW, AND POTENTIALLY APPLICABLE FEDERAL LAW

Dear Attorney General Murrill:

I am writing in my capacity as Chairman of the Sulphur City Council to respectfully request that the Louisiana Department of Justice review and, where appropriate, investigate conduct and actions involving the administration of Mayor Jacob Stutes that may constitute violations of the City of Sulphur Home Rule Charter, City ordinances, the City's personnel policies and Employee Handbook, Louisiana law, and, if applicable, federal law.

This request follows significant concerns raised by members of the Sulphur City Council regarding the manner in which the Mayor's administration has exercised executive, personnel, organizational, financial, and administrative authority.

The Council has separately prepared and adopted a **Resolution Expressing No Confidence in Mayor Jacob Stutes**, together with a supporting letter setting forth the Council's concerns. Those documents are enclosed and incorporated as supporting materials for this request.

I want to make clear that this request does **not** ask the Department of Justice to assume that a violation has occurred. Rather, the Council is requesting an independent examination of the facts and a determination by the appropriate authorities as to whether the conduct described below complied with the City's governing Charter and applicable law.

I. POSSIBLE VIOLATIONS OF THE CITY OF SULPHUR HOME RULE CHARTER

The Council has identified several provisions of the City of Sulphur Home Rule Charter that may be implicated by actions taken by the Mayor and his administration.

A. Charter Section 3.05 — Authority of the Mayor

Section 3.05 establishes important elements of the Mayor's executive authority, including authority relating to municipal administration and personnel.

The Council recognizes that the Mayor possesses substantial executive authority under the Charter.

However, the issue presented is whether that authority was exercised **within the limitations established by the Charter, ordinances, appropriations, personnel policies, and applicable Louisiana law.**

The Council requests review of whether the Mayor may have:

- Exercised personnel authority beyond that granted by the Charter;
- Created or utilized administrative positions without following the Charter's required procedures;
- Taken personnel actions inconsistent with established City personnel policies;
- Delegated executive authority in a manner not authorized by the Charter;
- Used administrative personnel to exercise authority belonging to another municipal officer or department; or
- Otherwise exercised executive authority beyond the scope contemplated by Section 3.05.

B. Charter Section 4.01 — Supervision and Administration of City Departments

Section 4.01 addresses the Mayor's supervision of City departments and the City's administrative structure.

The Council has particular concern regarding whether recent administrative changes have altered the City's established chain of command without compliance with the Charter.

This includes the creation and utilization of the **Chief of Staff position**, including whether the position has functioned as an additional layer of management between the Mayor and department heads.

The Council requests an investigation into whether:

1. The Chief of Staff position was properly established;
2. The position was included in the City's authorized organizational structure;
3. The position was properly budgeted and funded;
4. The Mayor possessed unilateral authority to create and utilize the position;
5. The Chief of Staff was granted authority over department heads or City employees;
6. Such authority was consistent with Section 4.01;
7. The Chief of Staff effectively assumed powers assigned by the Charter to other municipal officers; and
8. Any required Council approval was obtained.

C. Charter Sections 4.12(A) and 4.12(B) — Reorganization of City Government

Sections 4.12(A) and 4.12(B) are particularly important because they address **reorganization of City government**.

The Council is concerned that changes in the City's organizational structure may have been implemented administratively without compliance with the Charter's reorganization provisions.

Accordingly, the Council requests that the Department determine:

- Whether the creation of the Chief of Staff position constituted a reorganization of City government;
- Whether the position altered the existing organizational structure;
- Whether the position changed the chain of command between the Mayor and department heads;
- Whether an ordinance was required;
- Whether the procedures and time requirements contained in Section 4.12 were followed;
- Whether the Council was provided the opportunity to act as contemplated by the Charter; and
- Whether the resulting organizational structure is legally authorized.

If the Chief of Staff position effectively reorganized municipal government, the Council believes this Charter provision deserves particular scrutiny.

D. Charter Section 2-08 — Council Investigative Authority

Section 2-08 expressly provides the City Council authority to conduct investigations concerning City affairs, officers, employees, departments, and other matters within the Council's jurisdiction.

The Charter provides investigative mechanisms including the ability to require testimony and evidence and to conduct investigations for a specified municipal purpose.

The Council is therefore exercising its Charter authority in seeking to investigate the matters described in this request.

The Council further requests that the Department determine whether any action by the administration has improperly interfered with, obstructed, or frustrated the Council's lawful exercise of its investigative authority under Section 2-08.

This is particularly important where City employees or records necessary to a Council investigation may be controlled by the executive branch.

E. Charter Authority Concerning Municipal Officers and Department Heads

The Council further requests review of whether appointments, removals, interim appointments, reorganizations, and changes in the responsibilities of City department heads have complied with the Charter provisions governing those positions.

This includes determining whether the Mayor has exercised authority reserved to the Council or whether Council approval was required for any appointment, organizational change, compensation arrangement, or other action.

II. POSSIBLE VIOLATIONS CONCERNING MAYORAL PERSONNEL ACTIONS

The Council has significant concerns regarding the Mayor's hiring, firing, reassignment, suspension, appointment, and management of City employees.

The Council requests review of whether those actions complied simultaneously with:

1. The Sulphur Home Rule Charter;
2. City ordinances;
3. The City Employee Handbook;
4. Personnel policies;
5. Louisiana civil-service and employment laws, where applicable;
6. Louisiana constitutional requirements;
7. Louisiana Code of Governmental Ethics provisions, where applicable; and
8. Federal employment laws, where applicable.

The fact that the Mayor possesses personnel authority does not necessarily resolve whether a particular exercise of that authority complied with all other legal requirements.

Accordingly, we request an examination of the actual actions taken, the authority relied upon, the procedures followed, and the documentation supporting those actions.

III. CHIEF OF STAFF — SPECIFIC REQUEST FOR REVIEW

Because of the significance of this matter, we respectfully request a separate examination of the creation, hiring, compensation, duties, authority, and utilization of the Chief of Staff position.

The review should include:

- The date the position was created;
- Who authorized its creation;
- Whether the Council approved it;
- Whether it appeared in the City's approved organizational chart;

- Whether it appeared in the City's budget;
- The position description;
- The qualifications established for the position;
- The hiring process;
- The application and résumé;
- Background investigation;
- Driving record review;
- Drug testing;
- Physical examination requirements;
- Compensation;
- Benefits;
- Actual duties performed;
- Authority exercised over other City employees;
- Communications with department heads;
- Communications with the Mayor;
- Whether the position superseded or duplicated duties assigned to existing City officers;
- Whether the position constituted a Charter-defined reorganization; and
- Whether the position was created or operated in conformity with Sections 3.05, 4.01, and 4.12 of the Charter.

IV. POSSIBLE VIOLATIONS OF LOUISIANA OPEN MEETINGS LAW

The Council requests review of whether any decisions concerning the creation of positions, appointments, reorganizations, expenditures, contracts, or other governmental actions were discussed, negotiated, or decided outside properly convened public meetings when the Open Meetings Law required otherwise.

The review should include applicable provisions of La. R.S. 42:11 et seq., including meeting, notice, agenda, voting, and record requirements.

Louisiana's Open Meetings Law establishes requirements for meetings of public bodies and contains specific requirements concerning notice and agendas.

V. POSSIBLE PUBLIC RECORDS LAW VIOLATIONS

The Council requests review of whether records relating to the matters described herein have been properly created, preserved, maintained, and produced.

Potentially relevant records include:

- Personnel files;
- Applications and résumés;
- Employment agreements;
- Job descriptions;
- Organizational charts;

- Emails;
- Text messages and electronic communications concerning City business;
- Compensation records;
- Background investigations;
- Drug testing and physical examination records, subject to applicable privacy laws;
- Council communications;
- Contracts;
- Purchase orders;
- Invoices;
- Expenditure records;
- Meeting records;
- Internal memoranda; and
- Records concerning the creation and operation of administrative positions.

The Council requests review under Louisiana Public Records Law, including La. R.S. 44:1 et seq.

VI. POSSIBLE CODE OF GOVERNMENTAL ETHICS VIOLATIONS

The Council further requests that any facts uncovered be reviewed for potential violations of the Louisiana Code of Governmental Ethics, La. R.S. 42:1101 et seq.

This should include, where factually applicable:

- Conflicts of interest;
- Use of public office for private benefit;
- Improper financial interests;
- Prohibited transactions;
- Use of City resources;
- Employment-related conflicts; and
- Any other conduct falling within the jurisdiction of the Louisiana Board of Ethics.

The Council is not making a final determination that an ethics violation occurred.

VII. POSSIBLE MISUSE OF PUBLIC FUNDS

The Council requests an examination of whether public funds were:

- Appropriated and expended for authorized purposes;
- Used consistently with the City's budget;
- Used consistent with Charter requirements;
- Used consistent with Council authorization where required;
- Used in accordance with applicable procurement requirements; and
- Used for positions, contracts, services, or other purposes that were lawfully established.

If the investigation identifies potential misuse of public funds, the Council requests referral to the Louisiana Legislative Auditor or other appropriate authority.

VIII. POTENTIALLY APPLICABLE FEDERAL LAW

Although the principal issues identified by the Council concern municipal and Louisiana law, the Council requests that any facts involving federal funds, FEMA funding, federal grants, federal procurement requirements, civil-rights protections, or other federal programs be referred to the appropriate federal authority.

The Council is **not asserting at this time that Mayor Stutes violated federal law.**

Rather, we request that federal issues be identified if they arise from the underlying investigation.

IX. REQUEST FOR SPECIFIC CHARTER REVIEW

In light of the foregoing, we respectfully request that the Louisiana Department of Justice specifically review whether the following Charter provisions may have been violated or improperly interpreted:

Charter provision	Issue requiring review
§ 2-08	Whether the administration has interfered with or improperly impeded the Council's Charter authority to investigate City affairs
§ 3.05	Whether Mayoral executive and personnel authority has been exercised within the limits imposed by the Charter and applicable law
§ 4.01	Whether City department supervision and the chain of command have been altered contrary to the Charter
§ 4.12(A)	Whether administrative reorganization required Charter-prescribed procedures
§ 4.12(B)	Whether the required Council opportunity/action and effective-date procedures for reorganization were followed
§ 5.10	Whether municipal purchasing and contracting complied with Charter and mandatory state procurement requirements
Other applicable Charter provisions	Whether appointments, personnel actions, expenditures, contracts, administrative positions, and organizational changes complied with the Charter

These provisions should be reviewed together rather than in isolation because a particular action may involve both the Mayor's affirmative authority and limitations imposed elsewhere in the Charter.

X. REQUEST FOR INDEPENDENT INVESTIGATION

Because the allegations concern the City's chief executive officer and involve the relationship between the executive and legislative branches of municipal government, the Council believes an independent review is appropriate.

We therefore respectfully request that the Louisiana Department of Justice:

1. Review the enclosed Resolution of No Confidence;
2. Review the accompanying letter and supporting documentation;
3. Review the potential Charter violations identified above;
4. Determine whether the Mayor's actions were authorized by the Charter;
5. Determine whether any actions constituted an unauthorized reorganization of City government;
6. Determine whether any personnel actions violated the Charter, City ordinances, or applicable law;
7. Determine whether the administration improperly interfered with the Council's investigative authority under § 2-08;
8. Review applicable Open Meetings Law issues;
9. Review applicable Public Records Law issues;
10. Review applicable Public Bid Law and procurement issues;
11. Review potential Code of Governmental Ethics issues and refer them to the Louisiana Board of Ethics where appropriate;
12. Review potential misuse of public funds and refer appropriate matters to the Louisiana Legislative Auditor;
13. Determine whether any matter should be referred to the Calcasieu Parish District Attorney;
14. Determine whether any matter should be referred to the Louisiana State Police or another state investigative agency;
15. Determine whether any matter warrants referral to the United States Department of Justice, FBI, FEMA Office of Inspector General, or another federal authority; and
16. Provide the City Council with whatever guidance or referral the Department is authorized to provide.

XI. PRESERVATION OF RECORDS

Because many of the issues identified above may depend upon electronic evidence, we respectfully request that all potentially relevant records be preserved, including:

- Emails;
- Text messages;
- Electronic calendars;
- Personnel records;
- Computer files;
- Cell-phone communications concerning City business;
- Cloud-based records;
- Personnel actions;

- Financial records;
- Contracts;
- Procurement records;
- Organizational documents; and
- Communications between the Mayor, Chief of Staff, department heads, employees, contractors, and other persons concerning the matters under review.

XII. CONCLUSION

The Sulphur City Council recognizes that an allegation is not a finding of fact and that the determination of whether a Charter or statutory violation occurred should be based upon evidence and applicable law.

The Council is therefore requesting an **independent legal and factual review**, rather than asking the Attorney General to adopt the Council's conclusions.

At the same time, the Council believes the potential issues are sufficiently significant to warrant examination.

The questions presented involve not merely disagreements concerning municipal policy, but potentially the boundaries of executive authority, the structure of City government, personnel administration, Council oversight, public expenditures, public records, procurement, governmental ethics, and compliance with state and federal requirements.

The citizens of Sulphur are entitled to confidence that their government operates within the authority granted by the Louisiana Constitution, Louisiana statutes, the City of Sulphur Home Rule Charter, City ordinances, and applicable federal law.

We respectfully request that your office review these matters and take whatever action is appropriate within its jurisdiction.

The Sulphur City Council stands ready to cooperate with any lawful investigation and to provide additional documentation or evidence requested by your office.

Respectfully submitted,

Danny DiPetta
Chairman, Sulphur City Council
City of Sulphur, Louisiana

ENCLOSURES

1. Resolution Expressing No Confidence in Mayor Jacob Stutes
2. Letter of No Confidence concerning Mayor Jacob Stutes
3. City of Sulphur Home Rule Charter
4. Relevant Charter provisions and prior Charter analysis

5. City ordinances and personnel policies
6. Employee Handbook provisions implicated by the allegations
7. Relevant Council resolutions and meeting minutes
8. Relevant agendas and meeting recordings
9. Public-records requests and responses
10. Organizational charts
11. Personnel and administrative documentation
12. Relevant contracts, leases, purchase orders, and expenditures
13. Other supporting evidence

COPIES

Calcasieu Parish District Attorney
Louisiana Legislative Auditor
Louisiana Board of Ethics
Louisiana State Police, as appropriate
United States Department of Justice, as appropriate
Appropriate Federal Office of Inspector General, as applicable
Sulphur City Council

ORDINANCE NO. M-C SERIES

ORDINANCE AMENDING CHAPTER 12, SECTION 16 OF THE CODE OF ORDINANCES OF THE CITY OF SULHUR – GRASS AND WEEDS – CUTTING REQUIRED.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby amend Chapter 12, Section 16 of the Code of Ordinances of the City of Sulphur to read as follows:

ARTICLE II. WEEDS AND NOXIOUS GROWTH

Sec. 12-16. Grass and weeds—Cutting required.

In the interest of health and sanitation and the control of breeding of mosquitoes, all grass and weeds, on developed property, over twelve (12) inches in height shall be cut. All grass and weeds on retail, commercial and business properties over six (6) inches in height shall be cut and all surrounding areas, including curbs, parking lots and sidewalks would need to be manicured and cleared of all debris.

Developed property is defined as follows:

(1) Any property assigned a municipal address; or

(2) Any property located within a subdivision; or

(3) Any property that has been improved by tree, grass, weeds, shrubs, brush or underbrush removal.

Undeveloped property shall be exempt from this section. Undeveloped property is defined as any property that has not been assigned a municipal address, or is not located within a subdivision, or any property that has not been improved by tree, grass, weeds, shrubs, brush or underbrush removals.

Sec. 12-17. Same—Notice to owners; duties of city; charging of costs to owner.

(a) If any person shall fail to cut, destroy and/or remove any noxious weeds, grass or other deleterious, unhealthful or noxious growths on any sidewalk, banquette and/or on any lot, place or area within the city, notice shall be given to the owner of the lot, place or area, as shown on the last assessment roll of the city, which notice shall be given by registered mail, addressed in accordance with the tax rolls of the city. Notice will be sent to the owner once per calendar year.

(b) If no action has been taken by the owner of the property within ten (10) days after notice has been given as above provided, or the registered mail is returned to the city with no forwarding address, then the mayor shall employ the necessary labor and proceed to perform the necessary work when the grass and/or weeds reach the height as stated in section 12-16, and charge the owner thereof the actual expenses for the work performed together with the charges authorized by section 12-18 below.

(c) If, after the cutting, destruction or removal of the weeds, grass or growths, by the city after due notice as above provided, the costs or expense thereof has not been paid within ten (10) days, the tax collector of the city shall furnish the owner, as shown on the last assessment rolls of the city, by registered mail, a written statement showing the cost or expense incurred for the work, together with the charges authorized by section 12-18 of the place or property on which the work was done. If the statement is not paid within one (1) month thereafter, the amount thereof shall be included in and shall form part of the taxes due by the owner of the property, and when collected shall be credited to the general fund of the city.

Sec. 12-18. Same—Charge of city for bookkeeping and handling expense.

The city shall levy an annual charge, to cover bookkeeping and other handling expenses, not to exceed two hundred dollars ($200.00), for each parcel of property on which the city is required to employ the necessary labor and perform the necessary work for cutting of grass and weeds.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's approval, or upon proper re-adoption by the Council pursuant to Section 2-13(C) of the Home Rule Charter of the City of Sulphur.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this ____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____o'clock ___.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this ____ day of _____, 2026 the foregoing ordinance which has been approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

ORDINANCE NO. _____ M-C SERIES

ORDINANCE AMENDING CONTRACT BETWEEN THE CITY OF SULPHUR AND CROWDERGULF, LLC, FOR DISASTER RECOVERY ASSISTANCE FOLLOWING A NATURAL OR MANMADE DISASTER.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby amend the contract between the City of Sulphur and CrowderGulf, LLC, for disaster recovery assistance following a natural or manmade disaster to reflect an extension of the contract terms for one additional year and to expand the description of "fill dirt". Said contract is attached hereto as Exhibit A and incorporated herein by reference.

APPROVED AND ADOPTED by
the City Council of the City of Sulphur,
Louisiana, on this _____ day of
_____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

Exhibit A

CONTRACT
Between the City of Sulphur and CrowderGulf, LLC

AMENDMENT NO. ___

to

Contract For Disaster Recovery Assistance Following a Natural or Manmade Disaster

This Amendment is entered into by and between the City of Sulphur ("City") and CrowderGulf, LLC ("Contractor") and amends the Contract for Disaster Recovery Assistance Following a Natural or Manmade Disaster executed on March 8, 2023 ("Contract").

WHEREAS, the Contract provides for disaster recovery services, including demolition of structures as directed by the City; and

WHEREAS, the Contract provides for an initial term of three consecutive years and may be renewed for an additional two years upon written concurrence of both parties; and

WHEREAS, the City and Contractor desire to exercise the first of the two available one-year renewal options and extend the Contract through March 7, 2027; and

WHEREAS, the City and Contractor at all times intended to extend the Contract for an additional one-year time, but have not formally executed an amendment codifying the extension; and

WHEREAS, the Contractor's approved rate schedule includes "Fill Dirt for Stump Holes - Purchased, Placed, and Shaped" at a unit rate of $20.00 per cubic yard (CY); and

WHEREAS, applicable demolition requirements provide that when a structure is demolished or removed, the resulting vacant lot shall be filled and maintained to the existing grade or otherwise in accordance with applicable requirements of the jurisdiction having authority; and

WHEREAS, certain properties included in the City's Private Property Debris Removal (PPDR) and structure demolition program may require fill material following demolition in order to restore the site to the existing grade; and

WHEREAS, the parties desire to clarify that the existing fill dirt rate may also be applied to fill required for demolition site grading;

NOW, THEREFORE, the City and Contractor agree as follows:

CONTRACT RENEWAL

The City and Contractor hereby formally exercise the first of the two available one-year renewal options provided under the Contract. The Contract term is extended through March 7, 2027.

Following this renewal, one additional one-year renewal option shall remain available in accordance with the terms of the Contract.

REVISED FILL DIRT RATE DESCRIPTION

The existing rate description for fill dirt shall be revised as follows:

Fill Dirt for Stump Holes and Demolition Site Grading - Purchased, Placed, and Shaped: $20.00 per CY

The existing unit rate of $20.00 per CY shall apply to fill dirt furnished, placed, and shaped for stump holes and for fill required following demolition or removal of structures to restore the affected site to the existing grade.

Fill utilized for demolition site grading shall be limited to the quantity reasonably necessary to restore the site to existing grade and shall be performed only as authorized by the City. Quantities shall be documented in cubic yards and associated with the applicable demolition property or work location.

This Amendment does not establish or modify the existing unit rate for fill dirt. It solely expands the application of the existing $20.00 per CY rate to include fill required for demolition site grading.

Except as specifically amended herein, all other terms, conditions, rates, and provisions of the Contract shall remain unchanged and in full force and effect.

This Amendment shall become effective upon execution by both parties.

CrowderGulf, LLC	**City Of Sulphur**
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____

Date: _____ Date: _____

ORDINANCE NO. M-C SERIES

AN ORDINANCE AMENDING CHAPTER 5 OF THE CODE OF ORDINANCES OF THE CITY OF SULPHUR, LOUISIANA, TO PROVIDE FOR SECTION 2, CURRENTLY RESERVED, TO ESTABLISH SAFETY, IDENTIFICATION, MARKING, INSURANCE, BONDING, DAMAGE-REPAIR, AND FINANCIAL-RESPONSIBILITY REQUIREMENTS FOR CONTRACTORS, VENDORS, UTILITY COMPANIES, AND OTHER PERSONS PERFORMING WORK WITHIN THE CITY OF SULPHUR; PROVIDING FOR PROTECTION OF CITY PROPERTY, PUBLIC INFRASTRUCTURE, UTILITIES, RIGHTS-OF-WAY, AND THE PUBLIC; PROVIDING FOR CONTRACTOR RESPONSIBILITY FOR HAZARDS, DAMAGE, AND RESTORATION; AND PROVIDING FOR ENFORCEMENT AND RELATED MATTERS.

WHEREAS, The City of Sulphur has an obligation to protect the health, safety, and welfare of its residents, employees, businesses, visitors, public infrastructure, streets, drainage systems, utilities, rights-of-way, and other public property; and

WHEREAS, Contractors, subcontractors, vendors, utility companies, franchisees, developers, and other persons performing construction, excavation, installation, maintenance, repair, demolition, or other work within the City may create hazards to the public and may cause damage to public or private property if work is not properly planned, marked, secured, supervised, and performed; and

WHEREAS, The City desires to establish clear and consistent requirements ensuring that persons performing work within the City are properly insured, appropriately bonded when required, financially capable of completing the work, and responsible for correcting hazards and repairing damage resulting from their operations; and

WHEREAS, The City further desires to ensure that underground and above-ground utilities, streets, sidewalks, drainage facilities, water systems, sewer systems, traffic-control devices, signs, structures, and other infrastructure are properly identified, protected, and restored when affected by work; and

WHEREAS, The City Council finds that establishing uniform requirements for contractors and vendors performing work within the City is in the best interest of the citizens of Sulphur.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF SULPHUR, LOUISIANA:

SECTION 1. PURPOSE AND INTENT

The purpose of this Ordinance is to establish minimum requirements for contractors, subcontractors, vendors, utility companies, franchisees, developers, and other persons performing work within the City of Sulphur.

The requirements are intended to:

1. Protect the public from hazards created by construction, excavation, utility, maintenance, and other work;
2. Protect City-owned and publicly maintained property and infrastructure;
3. Require appropriate identification and marking of work areas and hazards;
4. Establish financial responsibility for damage caused by contractors or vendors;
5. Require appropriate insurance coverage;

6. Require performance, payment, restoration, or other bonds when warranted by the nature and projected cost of the work;
7. Ensure that contractors have sufficient financial responsibility to complete their obligations;
8. Establish consistent documentation and accountability requirements; and
9. Reduce the City's exposure to unnecessary costs resulting from contractor or vendor operations.

SECTION 2. APPLICABILITY

This Ordinance shall apply to any contractor, subcontractor, vendor, utility company, franchisee, developer, service provider, or other person or entity performing work within the City of Sulphur when such work:

1. Requires a City permit, approval, authorization, inspection, franchise, right-of-way use, or other City authorization;
2. Takes place on, under, over, or adjacent to a City street, sidewalk, drainage facility, utility, right-of-way, easement, public building, public property, or other City-controlled property;
3. Has the potential to affect public safety, traffic, utilities, drainage, or City infrastructure; or
4. Is performed pursuant to a contract, purchase order, agreement, franchise, or other authorization issued by or involving the City.

Nothing in this Ordinance shall be interpreted to exempt a contractor or vendor from any additional requirement imposed by state or federal law, the City's Code of Ordinances, a franchise agreement, permit, contract, or applicable technical standard.

SECTION 3. CONTRACTOR AND VENDOR REGISTRATION

Before commencing work requiring City authorization, the contractor or vendor shall provide the City with documentation reasonably necessary to establish:

1. The legal name and physical address of the contractor or vendor;
2. The name and contact information of the responsible project manager or supervisor;
3. Applicable state and local licenses;
4. Proof of required insurance;
5. Proof of required bonding;
6. A description and estimated cost of the work;
7. The anticipated beginning and completion dates;
8. The location of the work;
9. Identification of subcontractors expected to perform material portions of the work; and
10. Any other information reasonably necessary for the City to determine whether the proposed work can be safely performed.

SECTION 4. WORK AREA IDENTIFICATION AND MARKING

Before beginning work that may create a hazard to pedestrians, motorists, City employees, utility workers, emergency personnel, or surrounding property, the contractor or vendor shall properly identify and mark the work area.

Where applicable, markings shall identify:

1. Excavations;
2. Open trenches;
3. Underground utility locations;
4. Above-ground utility facilities;
5. Construction zones;
6. Temporary obstructions;
7. Equipment or materials that may create a hazard;
8. Areas where traffic, pedestrian movement, or access has been altered; and
9. Any other condition that reasonably presents a hazard to the public.

All markings, barricades, warning devices, signs, lighting, and traffic-control measures shall comply with applicable federal, state, and City requirements.

SECTION 5. DUTY TO MAINTAIN SAFE CONDITIONS

A contractor or vendor shall maintain its work area in a reasonably safe condition throughout the duration of the work.

The contractor or vendor shall not leave an excavation, obstruction, equipment, material, debris, utility opening, or other dangerous condition unsecured or inadequately marked.

When work is temporarily suspended, the contractor or vendor shall secure the site so that the public and City personnel are reasonably protected from hazards.

SECTION 6. IMMEDIATE CORRECTION OF HAZARDS

If a contractor or vendor creates or discovers a condition that presents an immediate danger to the public, the contractor or vendor shall take immediate action to secure the area and eliminate or control the hazard.

If the contractor or vendor fails to take appropriate action within a reasonable period, the City may take emergency action to protect the public.

The City may seek reimbursement from the responsible contractor or vendor for reasonable costs incurred by the City in responding to or correcting a hazard caused by the contractor or vendor, to the extent permitted by law.

SECTION 7. DAMAGE TO CITY PROPERTY OR INFRASTRUCTURE

Any contractor or vendor performing work within the City shall be responsible for damage caused by its operations, employees, agents, subcontractors, equipment, or other persons acting on its behalf.

This includes, but is not limited to:

1. Streets;
2. Sidewalks;
3. Curbs and gutters;
4. Drainage systems;
5. Water lines and facilities;
6. Sewer facilities;
7. Utility infrastructure;
8. Traffic signals;
9. Signs and traffic-control devices;
10. Public buildings;
11. Landscaping;
12. Fences;
13. Public vehicles or equipment; and
14. Other City-owned or publicly maintained property.

The contractor or vendor shall promptly notify the City of any damage and shall cooperate with the City in determining the appropriate method of repair or restoration.

SECTION 8. FINANCIAL RESPONSIBILITY FOR REPAIRS

When damage is caused by a contractor, vendor, subcontractor, or other party performing authorized work, the responsible party shall be financially responsible for the reasonable cost of repairing, replacing, restoring, or otherwise correcting the damaged property, to the extent permitted by law.

The City may require the responsible party to:

1. Repair the damage to City standards;
2. Pay the City’s reasonable cost of having the work performed;
3. Reimburse the City for reasonable emergency-response expenses;
4. Provide additional security or bonding when necessary and legally authorized; or
5. Take another lawful corrective action approved by the City.

Repairs shall be completed within the time period established by the City, taking into consideration the severity and nature of the damage.

SECTION 9. INSURANCE REQUIREMENTS

Before commencing work, contractors and vendors shall provide evidence of insurance coverage appropriate to the nature and scope of the work.

At a minimum, when applicable, coverage shall include:

1. Commercial general liability insurance;
2. Automobile liability insurance;
3. Workers' compensation insurance as required by law;
4. Employer's liability coverage where applicable; and
5. Any additional insurance reasonably required by the City based upon the nature, location, risk, or projected cost of the work.

Insurance requirements shall be established in the applicable contract, permit, franchise agreement, bid documents, or other City authorization.

The City may require the City of Sulphur to be named as an additional insured when appropriate and legally permissible.

Proof of insurance shall be provided before work begins and upon request during the project.

SECTION 10. BONDING REQUIREMENTS

The City may require a contractor or vendor to furnish an appropriate bond or other legally authorized security when warranted by:

1. The projected cost of the work;
2. The complexity of the project;
3. The potential risk to public property or infrastructure;
4. . The potential risk to public safety;
5. The anticipated duration of the project;
6. The likelihood of substantial restoration costs; or
7. Any other factor reasonably related to protecting the City's financial interests.

The amount of required bonding shall be reasonably related to the projected value, risk, and scope of the work and shall comply with all applicable Louisiana law.

For work involving substantial public infrastructure, excavation, roadway work, drainage, utilities, or other significant risks, the City may require performance, payment, restoration, or other appropriate bonds as authorized by law.

SECTION 11. INSURANCE AND BONDING SHALL BE PROPORTIONAL TO THE WORK

No contractor or vendor shall be permitted to perform a project for the City or within City-controlled property without insurance and bonding requirements appropriate to the projected scope and value of the work when such requirements are legally authorized and applicable.

For purposes of determining appropriate financial protection, the City may consider the total projected value of the project, including approved change orders and reasonably anticipated additional work.

Work shall not be intentionally divided, separated, or structured for the purpose of avoiding applicable insurance, bonding, procurement, bidding, or other legal requirements.

SECTION 12. SUBCONTRACTORS

A contractor shall remain responsible for work performed by its subcontractors to the extent provided by applicable law and the applicable contract.

The primary contractor shall ensure that subcontractors performing work that creates a public safety or property risk maintain appropriate insurance and qualifications.

The City may require documentation concerning subcontractors before allowing them to perform work within City-controlled areas.

SECTION 13. UTILITY AND EXCAVATION WORK

Before excavation or other work that may affect underground utilities, the responsible party shall comply with all applicable Louisiana utility-location and excavation requirements.

The contractor shall take reasonable precautions to protect existing utilities and infrastructure.

Any damage to utilities or infrastructure caused by the contractor’s operations shall be immediately reported and addressed.

Where water is obtained from City facilities for construction or other authorized purposes, the responsible party shall comply with applicable City requirements concerning meters, hydrants, permits, usage records, fees, and payment.

SECTION 14. TRAFFIC AND PEDESTRIAN SAFETY

Contractors performing work in or adjacent to public rights-of-way shall maintain appropriate traffic and pedestrian controls.

Where necessary, contractors shall provide:

1. Warning signs;
2. Barricades;
3. Cones and channelizing devices;
4. Appropriate lighting;
5. Safe pedestrian routes;
6. Traffic-control personnel; and
7. Other measures required by applicable law or City officials.

The contractor shall not create an unnecessary obstruction or unsafe condition in a public right-of-way.

SECTION 15. INSPECTIONS

The City may inspect work covered by this Ordinance to determine compliance with applicable permits, contracts, safety requirements, restoration requirements, and other City requirements.

Inspection by the City does not relieve the contractor or vendor of responsibility for performing the work safely, properly, and in compliance with applicable law.

A City inspection or failure to inspect shall not constitute acceptance of defective, unsafe, or incomplete work.

SECTION 16. RECORDS AND DOCUMENTATION

Contractors and vendors shall maintain documentation reasonably necessary to establish compliance with this Ordinance and the applicable contract or permit.

Upon lawful request, such documentation may include:

1. Insurance certificates;
2. Bond documentation;
3. Permits;
4. Project plans;
5. Work schedules;
6. Subcontractor information;
7. Utility-location documentation;
8. Inspection records;
9. Damage reports;
10. Repair records; and
11. Other records required by the applicable contract, permit, or law.

SECTION 17. EMERGENCY WORK

Nothing in this Ordinance shall prevent emergency work necessary to protect life, health, safety, or property.

A contractor or utility provider performing emergency work shall comply with applicable requirements as soon as reasonably practicable and shall notify the appropriate City department as soon as reasonably possible.

Emergency authorization shall not automatically waive the responsible party’s obligation to repair damage or restore City property.

SECTION 18. NONCOMPLIANCE

Failure to comply with this Ordinance, an applicable permit, contract, franchise agreement, or lawful directive may result in any remedy authorized by law, including:

1. Notice of violation;
2. Requirement to immediately correct the violation;
3. Suspension of work;
4. Suspension or revocation of a permit when legally authorized;
5. Withholding of payment when legally authorized;
6. Requirement for additional security or corrective measures;
7. Recovery of lawful repair or response costs;
8. Contractual remedies;
9. Administrative penalties where authorized by law; and
10. Referral for enforcement under applicable City or state law.

Nothing in this Section shall authorize the City to impose a remedy that is prohibited by state or federal law.

SECTION 19. RESPONSIBILITY FOR PUBLIC SAFETY AND PROPERTY

The issuance of a permit, approval, contract, franchise, or other authorization by the City shall not transfer responsibility for the safety of the contractor's work area from the contractor to the City.

Each contractor and vendor remains responsible for the acts and omissions of its employees, agents, equipment operators, and subcontractors to the extent provided by applicable law.

SECTION 20. NO WAIVER OF PROCUREMENT OR PUBLIC BID REQUIREMENTS

Nothing contained in this Ordinance shall be interpreted as authorizing the City, a contractor, vendor, department, employee, or elected official to avoid or circumvent any applicable Louisiana public bid law, procurement requirement, competitive bidding requirement, purchasing requirement, ethics law, conflict-of-interest law, franchise requirement, or other applicable law.

Projects shall not be divided, modified, or structured for the purpose of avoiding an applicable statutory or City requirement.

SECTION 21. CONFLICTS OF INTEREST AND DISCLOSURE

All contractors, vendors, subcontractors, City officials, employees, and other persons participating in City procurement or contracting activities shall comply with all applicable Louisiana ethics laws, conflict-of-interest laws, procurement laws, and City policies.

Nothing in this Ordinance shall be construed to replace or limit any disclosure, recusal, competitive procurement, or ethics requirement imposed by law.

SECTION 22. IMPLEMENTATION

The Mayor or his or her designee, together with the appropriate City departments, shall establish administrative procedures necessary to implement this Ordinance.

Such procedures may include standardized:

1. Contractor registration forms;
2. Insurance requirements;
3. Bonding requirements;
4. Work-area marking requirements;
5. Damage-reporting procedures;
6. Inspection procedures;
7. Restoration requirements; and
8. Contractor compliance documentation.

Any administrative procedure adopted pursuant to this Ordinance shall be consistent with this Ordinance and applicable Louisiana law.

SECTION 23. SEVERABILITY

If any provision of this Ordinance, or its application to any person or circumstance, is determined to be invalid or unenforceable, such determination shall not affect the remaining provisions or applications of this Ordinance, which shall remain in full force and effect to the greatest extent permitted by law.

SECTION 24. EFFECTIVE DATE

This Ordinance shall become effective upon adoption, approval, and publication as required by applicable law.

SECTION 25. CODIFICATION

The provisions of this Ordinance shall be incorporated into the Code of Ordinances of the City of Sulphur in the appropriate location, and the City Clerk is authorized to make any necessary formatting, numbering or grammatical, provided such changes do not alter the substantive provisions adopted by the City Council.

SECTION 26. ATTACHMENT / ADMINISTRATIVE IMPLEMENTATION

Upon adoption, the City Administration should establish standardized contractor requirements addressing:

1. Proof of licensing;
2. Certificate of insurance;
3. Additional insured status when appropriate;
4. Workers’ compensation;
5. General liability;
6. Automobile liability;
7. Bonding requirements based upon projected work value and risk;
8. Contractor and subcontractor identification;

9. Utility locating;
10. Work-zone markings;
11. Barricades and traffic control;
12. Public safety;
13. Damage reporting;
14. Emergency response;
15. Restoration deadlines;
16. Documentation of repairs;
17. Water and hydrant usage documentation where applicable; and
18. Enforcement procedures.

BE IT ALSO FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

ORDINANCE NO. _____, M-C SERIES

ORDINANCE GRANTING A THIRD AMENDMENT FOR LEASE AGREEMENT BETWEEN THE CITY OF SULPHUR AND VERIZON WIRELESS FOR THE TOWER LOCATED AT 130 BENOIT LANE.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby grant a third amendment for the lease agreement between the City of Sulphur and Verizon Wireless for the tower located at 130 Benoit Lane. A copy of which is attached hereto as Exhibit A and incorporated herein by reference.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this 8th day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

THIRD AMENDMENT TO WATER TOWER LEASE AGREEMENT

THIS THIRD AMENDMENT TO WATER TOWER LEASE AGREEMENT (the "Third Amendment") is made and shall be effective, as of the last date of the signatures below ("Effective Date"), between City of Sulphur, Louisiana ("LESSOR") and Cellco Partnership d/b/a Verizon Wireless ("LESSEE"). LESSOR and LESSEE (or their predecessors in interest) entered into that certain Water Tower Lease Agreement dated August 21, 2002, as may have been previously amended and/or assigned (the "Agreement"), pursuant to which LESSEE is leasing from LESSOR a portion of that certain property located at 130 Benoit Lane, Sulphur, LA 70663, as more particularly described in the Agreement. LESSOR and LESSEE may be referenced in this Third Amendment individually as a "Party" or collectively as the "Parties."

In consideration of the mutual covenants and promises contained in this Third Amendment, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged by the Parties, the Parties agree to amend the Agreement as follows:

1. LESSEE shall be allowed to make the equipment additions or removals necessary to configure LESSEE's equipment as shown on Attachment A, attached hereto. For all purposes under the Agreement as amended hereby, the descriptions and specifications of LESSEE's equipment set forth in the Agreement, including, without limitation, any equipment descriptions and specifications with respect to LESSEE's equipment set forth in any schedules, exhibits or attachments to the Agreement, are hereby deleted and replaced with the specifications of LESSEE's equipment described in Attachment A, attached hereto.

2. Commencing on September 1, 2027, the Agreement shall be extended for 5 years ("Initial Extension Term") unless LESSEE terminates the Agreement by giving LESSOR notice of such termination at least 30 days prior to the expiration of the then-current term. The term of the Agreement shall thereafter automatically extend for 5 additional terms of 5 years each (each, an "Additional Extension Term"), unless LESSEE terminates the Agreement by giving LESSOR notice of such termination at least 30 days prior to the expiration of the Initial Extension Term or then-current Additional Extension Term.

3. The notice address for LESSEE in the Agreement is hereby amended as follows:

   If to LESSEE: Basking Ridge Mail Hub
   Attn: Legal Intake
   One Verizon Way
   Basking Ridge, NJ 07920

4. Unless otherwise provided herein, all defined terms shall have the same meaning as ascribed to such terms in the Agreement.

verizon

5. In the event of any conflict or inconsistency between the terms of this Third Amendment and the Agreement, the terms of this Third Amendment shall govern and control.

6. Except as otherwise provided for in this Third Amendment, the Agreement shall remain in full force and effect in accordance with the original terms of the Agreement.

[SIGNATURE PAGE TO FOLLOW]

IN WITNESS WHEREOF, this Third Amendment is effective and entered into as of the date last written below:

LESSOR:

City of Sulphur, Louisiana

By: _____

Name: _____

Title: _____

Date: _____

LESSEE:

Cellco Partnership
d/b/a Verizon Wireless

By: _____

Name: _____

Title: _____

Date: _____

ATTACHMENT A

EQUIPMENT SPECIFICATIONS

Lessee is authorized to install the following equipment:

- 6 antennas at 140' RAD Center;
- 3 DC Surg Suppression Systems (OVP) at 140' RAD Center;
- Up to 6 Remote Radio Heads at 140' RAD Center;
- Up to 3 Diplexers at 140' RAD Center;

Ground equipment and transmission lines/cables to support all the listed equipment.

Transmit Frequency:

746-757/ 1875-1885/1870-1875/3700-3720/3720-3740/3740-3760/3760-3780/3780-3800/3800-3820/3820-3840/3840-3860/3860-3880/3880-3890.

Receive Frequency:

776-787/1955-1965/1950-1955

ORDINANCE NO. _____ M-C SERIES

ORDINANCE GRANTING A REZONE TO ASAD KHAN, 216 AND 222 SOUTH CITIES SERVICE HWY., FROM RESIDENTIAL TO BUSINESS TO ALLOW FOR POTENTIAL DEVELOPMENT.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, that they do hereby grant a rezone to Asad Khan, 216 and 222 South Cities Service Hwy., from Residential to Business to allow for potential development for the following described property:

216 SOUTH CITIES SERVICE
LOT 24 BLK 1 INDIAN HILLS NO 2 AND ABUTTING DRG DITCH ON W WHICH INCLUDES PORTION ADJOINING LOT 11 SAID BLK

222 SOUTH CITIES SERVICE
LOT 22 BLK 1 INDIAN HILLS NO 2 AND ELY/2 OF BORROW PIT ADJ SAID LOT ON W/SIDE

LOT 23 BLK 1 INDIAN HILLS PART 2 AND ELY ½ OF BORROW PIT ADJ W/SIDE

This rezone is granted by the City of Sulphur and may be withdrawn by the City of Sulphur should said rezone interfere with the rights and privileges owned by the City of Sulphur pursuant to a pre-existing right of way, servitude, or easement. If withdrawn, any improvements constructed thereon shall be removed at the expenses of owner thereof.

Grantee hereby agrees and contracts to hold Grantor harmless from any damages created and/or caused by the granting of this rezone, including, but not limited to, litigation defense, litigation costs, violation of subdivision restrictive covenants, building code violations or any other damages, property and/or monetary or otherwise, relating thereto.

No work shall commence until all applicable permits are obtained. In the event work is commenced prior to obtaining all applicable permits, this rezone shall be withdrawn and considered null and void.

BE IT FURTHER ORDAINED by the City Council of the City of Sulphur, Louisiana, that they do hereby grant a rezone to Asad Khan, 216 and 222 South Cities Service Hwy., from Residential to Business to allow for potential development.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

CITY OF SULPHUR
APPLICATION FOR
DEVELOPMENT APPROVAL

Date Received 8/24/26 $50.00 App. Fee + Clerk of Court filing fee $105.00 (for 1-5 pages) TOTAL $155.00 pd.

(EXACT CASH OR CHECK ONLY

IT IS APPLICANT'S RESPONSIBILITY TO KEEP SIGN POSTED ON PROPERTY. IF SIGN ISN'T PLACED ON PROPERTY 10 DAYS PRIOR TO MEETING DATE PLEASE NOTIFY CITY. IF SIGN IS REMOVED IT COULD DELAY ACTION ANOTHER MONTH. ONCE COUNCIL APPROVES/DISAPPROVES, APPLICANT MUST REMOVE SIGN FROM PROPERTY.

PRINT NAME ASAD KHAN DATE 08-24-2026.

PROPERTY OWNER INFORMATION

Name of Property Owner: ASAD ICHAN

(Owner must provide proof of ownership such as property tax record or recorded deed)

Mailing Address: 1924 Honey Suckle City: SULPHUR State: L.A Email: ASADK337@Ymail.Com

Physical Address: 216 S cities Service Hwy City: SULPHUR State: L.A

Phone Number (H) 337-499-7172 (W) (C)

PROPERTY INFORMATION

Location Address: 216/222/ S cities Service Hwy

Present Zoned Classification:

LEGAL DESCRIPTION FROM ABSTRACT OR TAX RECORD **(PRINT NEATLY OR TYPE)**

DO YOU CURRENTLY HAVE ANY PENDING VIOLATION WITH ANY ORDINANCE OF THE CITY OF SULPHUR YES NO ✓

YOU, OR A REPRESENTATIVE, MUST ATTEND BOTH LAND USE AND CITY COUNCIL MEETING INITIAL A

REQUEST INFORMATION

☑ **REZONE** ☐ **EXCEPTION** ☐ **SUBDIVISION** ☐ **BILLBOARD** ☐ **PRE. PLAT** ☐ **FINAL PLAT**

☐ **DOES REZONE REQUIRE FENCING** **NAME OF SUBDIVISION**

Zoning Change: From Res. To Business

Purpose of Request: Potential development

I do hereby understand that no petition for a change in the classification of property shall be filed unless such petition is duly signed and acknowledged by the owners of authorized agents of not less than fifty (50) percent of the area of land for which a change of classification is requested; provided however, that where any lot located in the aforesaid area is owned in division, all co-owners must sign the petition for that lot to be included in the fifty (50) percent area provision, as stated in the City of Sulphur Land Use Ordinance, Number 541, M-C Series.

Further, I do certify that the property for which the above request is being made does not hold any restrictions or covenants that would be in conflict with said request.

Furthermore, I, the applicant agree to dispose of the Land Use Sign(s) placed on my property after the public hearing.

Applicant Signature: Date: 08-24-2026

	Yes	No	N/A
1. Is site located within the City Limits?	✓		
2. Will the proposed use be a nuisance to the surrounding area because of odors, vibrations, unsightly areas or other unwarranted elements?		✓	
3. Is the capacity of the road and off-street parking facilities adequate for use by the proposed development?	✓		
4. Will the location be served by a fire protection?	✓		
5. Can the proposed development be expected to adversely affect the character/aesthetics of the area involved?		✓	
6. Is property within a designated flood hazard area? Flood zone classification ____ bfe ____ ft.			

Memo

To: Land Use and Planning Commissioners

From: Austin Abrahams
Director, Department of Public Works
Land Use Administrator

CC: Arlene Blanchard, Mayor Jacob Stutes

Date: 9/15/2026

Re: ***216 & 222 South Cities Service Hwy.*** - Rezone Request

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Comments: **Application:**

Asad Khan has requested a rezoning of the referenced area from ***Residential*** to ***Business*** to allow for future business development.

Situation:

Two (2) of the three (3) parcels in question do not have improvements currently. A single-family dwelling and accessory structure currently exist at 216 South Cities Service Hwy. Applicant has a potential development that would require this rezone to be allowed.

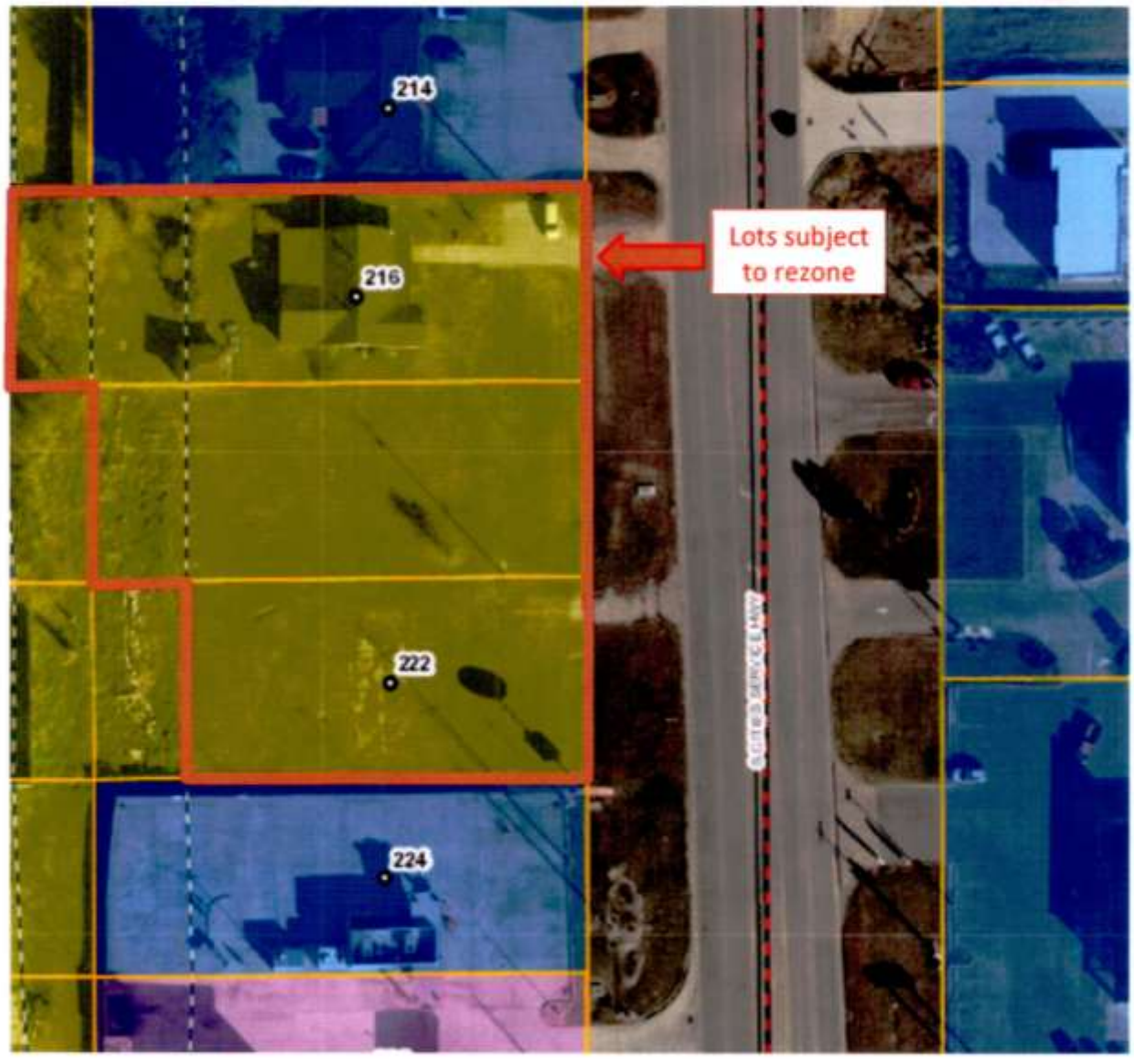
Findings:

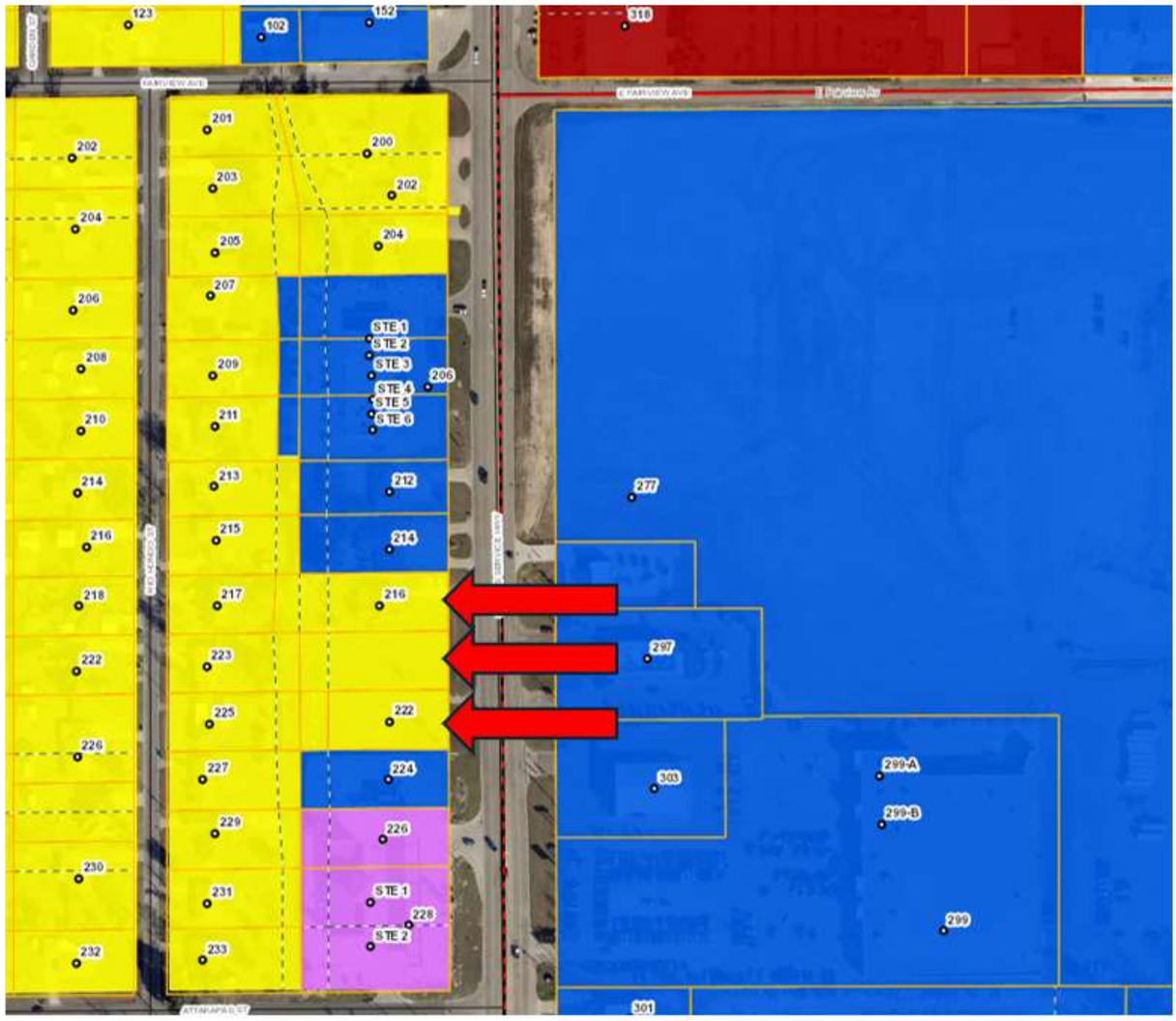
In accordance with Article III, Part 2, Section 5(3) of the Land Use Ordinance (Ordinance), the application has been reviewed. The following findings are offered for your consideration:

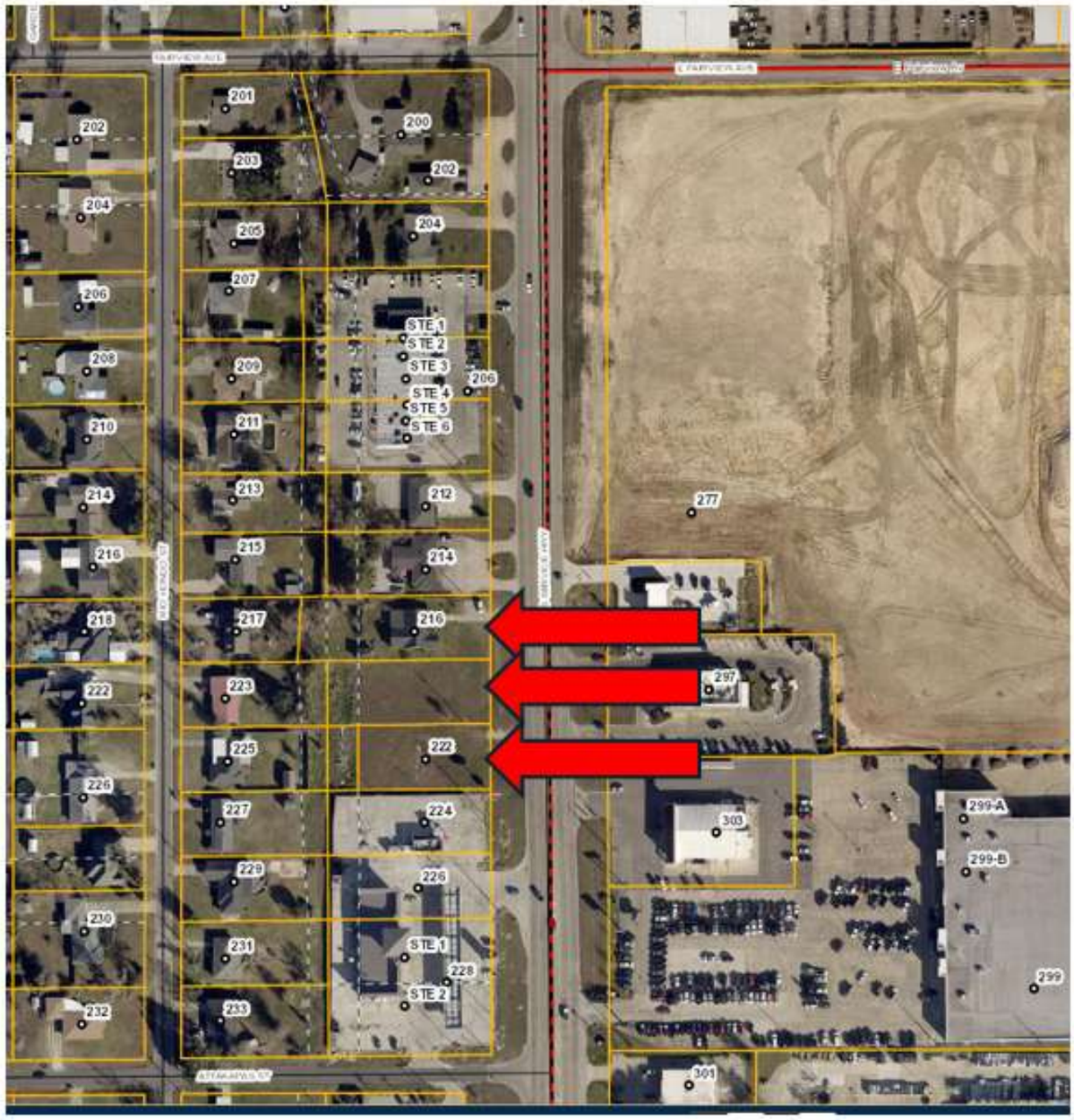
1. The Application appears substantially complete.
2. The area considered is bordered by ***developed land***.
3. The area considered is bordered by land zoned ***Business*** to the north, south and east with ***Residential*** to the west.

Recommendations:

The requested rezone of area considered is consistent with the corridor. A recommendation in favor of rezoning is given.


214
216
222
224
Lots subject to rezone


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Google Earth


Google Earth


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216 S Cities Service Hwy
216
Imagery Date: 11/18/2024

S

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AUTHORIZING MAYOR STUTES TO SIGN CONTRACT WITH ROSTAN SOLUTIONS, LLC, FOR A PUBLIC WORKS SUPERVISOR FOR THE CITY OF SULPHUR.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby authorize Mayor Stutes to sign contract with Rostan Solutions, LLC, for a Public Works Supervisor for the City of Sulphur. Said contract is attached hereto as Exhibit A and incorporated herein by reference.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this 8th day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

EXHIBIT A

AGREEMENT FOR PROFESSIONAL SERVICES
Between the City of Sulphur, LA and Rostan Solutions, LLC

This is an Agreement for Professional Services (hereinafter referred to as the "**Agreement**"), effective upon execution of this Agreement, between the City of Sulphur LA ("**CLIENT**"), having its principal office at 101 N. Huntington St., Sulphur, LA 70663, and Rostan Solutions, LLC ("**ROSTAN**"), a Florida limited liability company, having its principal place of business at 9897 Lake Worth Road, Suite 303, Lake Worth, FL 33467. CLIENT and ROSTAN are hereinafter referred to individually as "**Party**" or collectively as "**Parties**."

WHEREAS, the CLIENT desires to engage ROSTAN to provide consulting services in support of the City's Public Works and Maintenance Departments (**"Project"**).

WHEREAS, the Parties intend for this Agreement to govern all work required for the Project, including all professional services and deliverables originally sought by the CLIENT.

NOW, THEREFORE, in consideration of the mutual promises herein, ROSTAN and the CLIENT agree that the terms and conditions of this Agreement are as follows:

DEFINITIONS:

"Scope of Services" shall mean the services and terms described in this Agreement and any attached schedules or exhibits, including any modifications or additions agreed upon by the Parties in writing during performance.

"Site" or **"Work Site"** shall mean the location where ROSTAN is performing services for the Project on behalf of the CLIENT.

1. BASIC SERVICES

1.1. **Scope of Services**. ROSTAN shall provide the services described in this Agreement and any incorporated attachments (collectively the "Scope of Services"). ROSTAN's obligations under this Agreement are solely for the benefit of the CLIENT and no other party is intended to benefit or have rights hereunder. The Scope of Services are subject to modifications and/or additions and are thus subject to the terms of Section 6.1 herein.

1.2. **Standard of Care**. ROSTAN shall perform the professional services under this Agreement at the level customary for competent and prudent professionals performing such services at the time and place where the services are provided. These services will be provided by ROSTAN's recovery and mitigation professionals and other professionals and individuals skilled in other technical disciplines, as appropriate.

1.3. **Subcontractors**. ROSTAN shall be permitted to utilize subcontractors for performing services under this Agreement, subject to approval of the CLIENT.

1.4. **Transportation or Disposal of Hazardous Materials**. The CLIENT further agrees that, if this Agreement requires the containerization, transportation, or disposal of any hazardous or toxic wastes, materials or substances, ROSTAN is not, and has no authority to act as a generator, arranger, transporter, or disposer of any hazardous or toxic wastes, materials or substances that may be found or identified on, at, or around CLIENT's Site.

2. THE CLIENT's RESPONSIBILITIES

2.1. **The CLIENT's Representative**. The CLIENT will designate Jacob Stutes as its representative having authority to give instructions, receive information, define the CLIENT's policies, and make decisions with respect to the Agreement.

2.2. **Project Criteria**. Provide criteria and information as to the CLIENT's requirements, including objectives and constraints, space, capacity, scope of work, task assignments, and performance requirements, and any budgetary limitations to the extent known by the CLIENT.

2.3. **Access**. Arrange for ROSTAN to access the Site as may be reasonably required to perform the Scope of Services. ROSTAN will be provided with suitable access to appropriate areas of the Site and shall be entitled to the use of such parking facilities and restroom facilities as may be authorized for its use. ROSTAN or its representatives may be on Site during the various stages of the work to observe the progress and quality of the work and to determine, in general, if the work is proceeding in accordance with the intent of the Agreement. Visits and observations made by ROSTAN will not relieve other contractors of their obligation to conduct comprehensive inspections of the work, to furnish materials, to perform acceptable work, and to provide adequate safety precautions.

2.4. **Review**. Promptly respond to ROSTAN's requests for decisions or determinations related to the Scope of Services.

2.5. **Meetings**. At ROSTAN's discretion and request, hold or arrange to hold meetings required to assist in communication regarding the work required by this Agreement.

2.6. **Project Developments**. Give prompt written notice to ROSTAN whenever the CLIENT observes or otherwise becomes aware of any material development that affects the Scope of Services, including, but not limited to the timing, price, and/or scope of ROSTAN's services. For purposes of this Section 2.6, "prompt written notice" shall mean within two (2) business days.

2.7. **City-Owned Vehicle.** The CLIENT may authorize designated ROSTAN personnel, including Mark LeJune, to operate a City-owned vehicle solely as necessary to perform authorized services under this Agreement. Such authorization is subject to the CLIENT's written approval and may be revoked by the CLIENT at any time. Before operating a City-owned vehicle, the authorized driver shall maintain a valid driver's license, provide or authorize access to an official driving record at least once every twelve (12) months, execute any driver authorization or acknowledgment forms required by the CLIENT, and comply with all applicable laws and CLIENT vehicle-use and safety requirements. ROSTAN shall provide a certificate of insurance evidencing applicable automobile liability coverage, and the CLIENT shall be responsible for adding the authorized driver to the CLIENT's vehicle insurance as required by the CLIENT's insurer. The authorized driver shall promptly notify the CLIENT of any change in license status, class, restrictions, or driving eligibility and shall promptly report any accident, damage, citation, or other incident involving a City-owned vehicle. The vehicle authorization documents and certificate of insurance attached as Schedules B and C are incorporated into this Agreement.

3. PERIODS OF SERVICE

3.1. **Time of Performance**. The Agreement anticipates the orderly and continuous progress through completion of the Scope of Services. However, the period of service is subject to change and is thus subject to the terms of Section 6.1 herein.

3.2. **Start of Performance**. ROSTAN will start the Scope of Services upon authorization by the CLIENT. If the CLIENT gives authorization before signing the Agreement, ROSTAN shall be paid for the services provided outside the timeline the Agreement. The Agreement will only be valid if signed by the CLIENT's authorized representative and ROSTAN's authorized representative.

3.3. **Force Majeure**. If a force, event, or circumstance beyond ROSTAN's or the CLIENT'S control, including strikes, lock-outs, labor troubles, inability to procure materials, failure of power, restrictive governmental laws or regulations, approval delays by municipalities or governmental entities, riots,

insurrection, war, military or usurped power, sabotage, terrorism, unusually severe weather, acts of God, fire, epidemic, pandemics, quarantine, or other casualty or other reason (but excluding financial inability) of a like nature which interrupts or delays ROSTAN's performance, then the time of performance shall be excused for the period of the delay, and the period for the performance shall be extended for a period equivalent to the period of the delay.

3.4. **Term and Termination**. This Agreement shall be in effect for six months from the effective date, with three (3), six-month extensions available upon mutual consent of the Parties.

This Agreement may be terminated by either Party at will and without cause, at any time upon seven (7) days prior written notice to the other Party and shall remain in force until so terminated. All information and any materials provided to either Party must be returned to the other Party upon termination of the Agreement. If the Agreement is terminated, ROSTAN shall be paid for services rendered up to the termination date.

4. COMPENSATION

4.1. **ROSTAN Services**. The CLIENT shall pay ROSTAN a fixed monthly fee of Seven Thousand Five Hundred Dollars ($7,500.00) The total compensation for the six-month term shall not exceed Forty-Five Thousand Dollars ($45,000).

The monthly fee includes all labor, meetings, document preparation, and deliverables performed within the authorized scope of services. No additional fees, costs, or reimbursable expenses shall be billed unless approved in writing by the CLIENT. Services exceeding the anticipated level of effort or falling outside the authorized scope shall require prior written authorization and, if applicable, an amendment to the Agreement.

ROSTAN shall invoice the CLIENT monthly. Invoices are payable within thirty (30) calendar days after receipt. The CLIENT must notify ROSTAN in writing of any invoice dispute within thirty (30) calendar days of the invoice date (the "Invoice Dispute Period"). Failure to raise a dispute within the Invoice Dispute Period shall constitute a waiver of any claim, dispute, or challenge related to the invoice. If the CLIENT timely disputes any portion of an invoice, the undisputed portion shall remain due and payable in accordance with Section 4.1.

4.2. **Late Payments/Interest Charges**. Accounts not paid within the terms of this Agreement are subject to a 1.5% monthly finance charge, or the highest rate allowable by law, at the discretion of Rostan and waivable in whole or in part by ROSTAN at its discretion.

5. NON-CONTROLLABLE COSTS

5.1. **Non-Controllable Costs**. ROSTAN has no control over the cost of labor, materials, equipment or services furnished by others, including, but not limited to, CLIENT'S contractors, and/or subcontractors. ROSTAN has no control over any other person or entity's methods of determining prices. Further, ROSTAN has no control over competitive bidding or market conditions. ROSTAN's opinion of probable cost is made based on ROSTAN's experience and qualifications and represents ROSTAN's judgment as an experienced and qualified professional firm, familiar with the disaster recovery industry. ROSTAN does not guarantee that proposals, bids or actual project cost will not vary from ROSTAN's opinions of probable cost.

6. GENERAL CONSIDERATIONS

6.1. **Changes**. By written and/or electronic notice at any time, the CLIENT or ROSTAN may propose changes to the Scope of Services, provided such changes are within the general scope of this Agreement, and subject to validation under any applicable cost or price analysis required by federal, state, or local law. In such event, an equitable adjustment both in the compensation for and time of performance of the adjusted Agreement shall be made in writing prior to ROSTAN

performing the changed services, unless otherwise provided herein. During the course of the Project, the Scope of Services may be subject to changes in length and/or price dependent upon the nature of the Project and required materials, labor, and/or resources. Any changes requested by CLIENT or ROSTAN must be requested and approved by the CLIENT's or ROSTAN's authorized representative as the case may be.

6.2. **Access to Records**. The following access to records requirements applies to ROSTAN, which includes its successors, transferees, assignees, and subcontractors: (a) ROSTAN agrees to provide the CLIENT, or any of their authorized representatives access to any documents, papers, and records which are directly pertinent to this Agreement.

6.3. **Communication**. Any communication with the CLIENT's personnel that would alter the duties of maintenance staff shall be directed at the CLIENT's maintenance supervisors. This is to mitigate any confusion and promote chain of command.

6.4. **Confidentiality and Proprietary Information**. In the course of providing services under this Agreement, CLIENT and ROSTAN may receive confidential and/or proprietary information and/or materials of the other Party. Each Party agrees to hold secret and confidential all information designated by the other Party as confidential ("Confidential Information"). Neither Party will reveal Confidential Information to a third party unless: (a) the non-disclosing Party consents in writing; (b) the information is or becomes part of the public domain; (c) applicable law, regulation, court order or an agency of competent jurisdiction requires its disclosure; or (d) failure to disclose the information would pose an imminent and substantial threat to human health or the environment. All drawings, specifications, and technical information furnished to CLIENT by ROSTAN or developed for CLIENT by ROSTAN in connection with the Scope of Services are, and will remain, the property of the CLIENT.

6.4.1. **Dispute Resolution**. Prior to filing any cause of action, or legal proceeding, with the requisite court of law, the Parties agree that they will first be required to attend mediation. The Parties agree that the Party who initiates the dispute by this procedure shall provide to the non-initiating Party notice of the commenced proceedings and the names of three (3) proposed mediators, whereby the non-initiating Party shall within ten (10) days thereafter select one (1) mediator of the proposed mediators to conduct the mediation. Any controversies or disputes arising out of or relating to this Agreement will be submitted to mediation in accordance with any statutory rules of mediation. Both Parties agree that they will send a representative with full settlement authority to the mediation. The cost of the in-person mediation shall be split amongst the Parties but shall not include travel costs of either Party associated with attending the in-person mediation and/or the expenses of each Party's own legal counsel. Notwithstanding the foregoing, the pre-suit mediation requirement will be waived and not required at the discretion of ROSTAN and/or in the event ROSTAN brings an action against the client for unpaid invoices or other unpaid fees.

6.4.2. **Compliance with Dispute Resolution**. In the event that either Party fails to comply with the Dispute Resolution procedure set forth in Section 6.3.1 of this Agreement, and files a cause of action or legal proceeding prior to a required mediation taking place (except in the case where ROSTAN waives such mediation), the filing Party agrees to pay the non-filing Party's reasonable attorneys' fees and all costs and expenses incurred with respect to defending such improperly filed cause of action or legal proceeding.

6.5. **Remedies.** Nothing in this Agreement otherwise prevents the either Party from utilizing any available remedies, administrative, contractual, or legal, where either Party has been found to have violated or breached the terms of this Agreement, subject to the Limitation of Liability provision below.

6.6. **Mutual Indemnification**.

6.6.1. ROSTAN hereby agrees to indemnify and hold the CLIENT harmless from and against any and all losses, damages, settlements, costs, charges, or other expenses or liabilities of every kind and character arising out of or relating to any and all claims, liens, demands, obligations, actions, proceedings, or causes of action of every kind and character which specifically and directly arise from the gross negligence or willful misconduct of Rostan in the performance of its obligations under this Agreement.

6.6.2. The CLIENT hereby agrees to indemnify and hold ROSTAN harmless from and against any and all losses, damages, settlements, costs, charges, or other expenses or liabilities of every kind and character arising out of or relating to any and all third party claims, liens, demands, obligations, actions, proceedings, or causes of action of every kind and character which specifically and directly arise from the gross negligence or willful misconduct of CLIENT as related to the services which CLIENT has engaged ROSTAN for under this Agreement or for any injuries suffered by an employee or contractor of CLIENT who is performing work for CLIENT.

6.7. **Limitation of Liability**. Notwithstanding any other provision of this Agreement and to the fullest extent permitted by law the Parties agree that neither the CLIENT nor ROSTAN shall be liable to each other for any special, indirect or consequential damages, whether caused or alleged to be caused by negligence, strict liability, breach of contract or warranty under this Agreement. Except for amounts for which indemnification is given by ROSTAN hereunder which shall be capped to the extent of ROSTAN's insurance coverage, in no event will ROSTAN's liability to the CLIENT, whether in contract, tort or any other theory of liability, exceed the fees which ROSTAN has been paid for services from which the liability arises. Further, ROSTAN will not be responsible for other contractors' means, methods, techniques, sequences or procedures of the work, or the safety precautions, including compliance with applicable programs incident thereto. ROSTAN will not be responsible for other contractors' or subcontractors' failure to perform the work in accordance with their applicable contract with the CLIENT or any other agreement. ROSTAN will not be responsible for the acts or omissions of contractors or subcontractors, or any of their agents or employees or any other persons or entities at the Site or otherwise performing any of the work.

6.8. **Interpretation**. This Agreement shall be interpreted in accordance with the laws of the State of Louisiana.

6.9. **Successors**. This Agreement is binding on the successors and assigns of the CLIENT and ROSTAN. The Agreement may not be assigned in whole or in part to any third parties without the written consent of the non-assigning Party.

6.10. **Independent Contractor**. ROSTAN represents that it is an independent contractor and is not an employee of the CLIENT.

6.11. **Notices**. Written notices may be delivered in person or by certified mail, or by facsimile, or by courier or by email. All notices shall be effective upon the date of receipt by the Party.

6.12. **Entire Agreement**. This Agreement, including Schedules and Attachments constitutes the entire agreement between the CLIENT and ROSTAN. Any prior or contemporaneous agreements, promises, negotiations or representations not expressly stated herein are of no force and effect. Any changes to this Agreement shall be in writing and signed by the CLIENT and ROSTAN, unless otherwise provided in this Agreement.

6.13. **Waivers and Severability**. A waiver or breach of any term, condition, or covenant by a Party shall not constitute a waiver or breach of any other term, condition or covenant. If any court of competent jurisdiction declares a provision of this Agreement invalid, illegal, or otherwise

unenforceable, the remaining provisions of the Agreement shall remain in full force and effect.

6.14. **Effective Date**. This Agreement is effective on the date shown on the cover page.

7. SCHEDULES.

7.1. **Schedules.** The following **Schedule** is attached hereto and made a part of this Agreement:

7.1.1. **Schedule A:** *Scope of Services*

7.1.2. **Schedule B:** *City-Owned Vehicle Authorization Documents*

7.1.3. **Schedule C:** *Certificate of Liability Insurance*

8. Execution Authority. This Agreement is a valid and authorized undertaking of the CLIENT and ROSTAN. The representatives of the CLIENT and ROSTAN who have signed below have been authorized to do so.

IN WITNESS WHEREOF, the Parties hereto have made and executed this Agreement as of the day and year shown on the cover page.

CITY OF SULPHUR, LA	**ROSTAN SOLUTIONS, LLC**
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____

Schedule A

Scope of Services

PROJECT OVERVIEW

The City of Sulphur (City) desires to engage ROSTAN to provide advisory, organizational, operational, and project-management consulting services in support of the City's Public Works and Maintenance Departments and implementation of Enterprise Asset Management Software. The engagement is intended to improve departmental coordination, accountability, documentation, maintenance planning, and delivery of public works and facility-maintenance services.

SCOPE OF SERVICES

ROSTAN shall serve as an advisor and consultant to the City and may perform the following services as requested and authorized by the City.

A. Departmental Assessment and Organization

- Review departmental organization, staffing assignments, supervisory responsibilities, workflows, communication, and coordination with other City departments.
- Conduct general observations of facilities, equipment, work areas, and departmental operations.
- Identify operational gaps, duplicated efforts, documentation deficiencies, deferred-maintenance concerns, staffing or resource needs, and opportunities for improvement.
- Recommend organizational charts, responsibility assignments, reporting procedures, meeting structures, and practical implementation priorities.

B. Enterprise Asset Management Software Implementation

- Assist with development of procedures, forms, checklists, and documentation standards for departmental activities.
- Provide advice to improve processes for work-request intake, prioritization, assignment, tracking, completion, closeout, escalation, and reporting.
- Assist with the development to improve asset inventories, maintenance histories, condition records, preventive-maintenance schedules, and replacement-planning information.
- Assist the City with prioritizing deferred maintenance based on safety, service impact, urgency, condition, cost, and available resources.

C. Project and Capital Planning

- Develop and maintain prioritized lists of maintenance, facility, infrastructure, public works, and capital-improvement needs.
- Perform general site observations and coordinate with City staff, design professionals, contractors, vendors, utilities, and regulatory agencies as authorized.
- Monitor projects for general scope, schedule, budget, documentation, risk, and deliverable status.
- Assist with administrative project closeout, warranty tracking, records collection, post-project review, and lessons learned.

D. Procurement, Contracting, and Financial Support

- Assist City staff with draft scopes of work, solicitation documents, administrative procurement schedules, evaluation tools, comparison summaries, clarification requests, and contract exhibits.

Provide administrative support for solicitation meetings, receipt and organization of responses, pricing and scope comparisons, contractor documentation, change requests, and closeout records.

E. Construction and Field Coordination

- Conduct periodic site visits and document general observations regarding progress, apparent deficiencies, and outstanding issues.
- Administratively track contractor schedules, submittals, requests for information, pay applications, change documentation, punch-list items, warranties, manuals, and closeout records.
- Coordinate with design professionals, contractors, vendors, and City representatives to support communication and issue resolution.
- Assist with emergency, after-hours, preventive-maintenance, corrective-maintenance, safety, inventory, purchasing, contractor coordination, and record-retention procedures.

ROSTAN's observations and administrative reviews shall not constitute professional inspection, design approval, certification of compliance, direction of construction means or methods, or responsibility for jobsite safety. Those responsibilities remain with the applicable contractor and/or licensed design professional.

F. Records, Reporting, Training, and Implementation

- Prepare periodic status reports, action-item lists, management briefings, performance summaries, and recommendations.
- Facilitate coordination meetings and assist with issue tracking, escalation, resolution, and documentation.
- Train City personnel on approved procedures, work-order practices, asset-management processes, reporting expectations, and documentation standards.

ANTICIPATED DELIVERABLES

Deliverables will be based on direction from the City and may include:

- Organizational chart, responsibility matrix, procedures, forms, and training materials.
- Work-order, asset-inventory, preventive-maintenance, and deferred-maintenance tools.
- Enterprise Asset Management Software Implementation.
- Procurement and contract-administration support documents.

CITY RESPONSIBILITIES

- Designate a primary point of contact and appropriate departmental representatives.
- Provide reasonable access to personnel, facilities, records, systems, contracts, budgets, plans, policies, and other information needed to perform authorized services.
- Provide timely decisions, direction, approvals, and identification of confidential or legally restricted information.
- Retain responsibility for personnel actions, procurement, contracting, expenditures, policies, operations, technical approvals, and final implementation decisions.

LIMITATIONS, ASSIGNMENT, AND COST SEPARATION

- ROSTAN shall act solely as an advisor and consultant and shall not assume the statutory authority of City officials or bind the City contractually or financially.

MEETINGS AND REPORTING

- Kickoff and assessment meetings following authorization to proceed.
- Weekly or biweekly coordination during active assessment or implementation periods, as needed.
- One in-person management meeting each month unless otherwise directed by the City.
- Written status report and prompt notice of material operational, safety, schedule, budget, procurement, or compliance concerns, as requested.

Schedule B

City-Owned Vehicle Authorization Documents

STATE OF LOUISIANA

CONTRACTOR DRIVER AUTHORIZATION FORM

TO BE COMPLETED ANNUALLY, UPON CHANGE OF STATE OF ISSUANCE, CLASS OF LICENSE, AND/OR DRIVING RESTRICTION CHANGE

Agency: Rostan Solutions LLC. Drivers License Number: 006746107

Driver Name: Mark LeJune State of Issuance: Louisiana

Contractor's Number:_____ (not required)

AGENCY HEAD OR DESIGNEE AUTHORIZATION

By executing this document, I have reviewed the Official Driving Record and Driver Training Course dates and have confirmed the information to be current and in accordance with the ORM Loss Prevention requirements.

My signature authorizes the aforementioned contractor to drive the following on state business as required (check all that apply):

x **STATE OWNED VEHICLE** City Owned Vehicle
_____ **STATE-RENTED VEHICLE**
_____ **STATE-LEASED VEHICLE**

DEPARTMENT HEAD
(or designated individual)

7/20/2026
DATE OF AUTHORIZATION

CONTRACTOR ACKNOWLEDGEMENT/AUTHORIZATION

I understand that the use of a state-owned/rented/leased vehicle on state business requires prior written authorization from the Department Head or his/her designee. City Owned

Further, by signing this document, I agree to notify the Department Head in writing should any of the following change on my license: Drivers License No., State of Issuance, Class of License, or Driving Restrictions.

I authorize the above agency to obtain my Official Driving Record (ODR) as necessary to comply with the State's Loss Prevention Program.

I affirmatively acknowledge and understand that operating a state-owned, state-rented or state-leased vehicle while intoxicated as set forth in R.S. 14:98 and 14:98.1 is strictly prohibited, unauthorized, and expressly violates both the terms and conditions of my use of said vehicle, and the agency's instructions.

My signature on this document shall remain in effect until revoked by the agency or until a new form is executed.

CONTRACTOR SIGNATURE
MARK LeJune

7/20/26
DATE

07/01/2024
DA 2055

Schedule C

Certificate of Liability Insurance

ACORD

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY): 7/31/2026

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Acrisure Southeast Partners Insurance Services, LLC 1317 Citizens Blvd Leesburg FL 34748 License#: BR-1796553	**CONTACT NAME:** Caroline Gonzalez **PHONE (A/C, No, Ext):** 800-845-8437 **FAX (A/C, No):** **E-MAIL ADDRESS:** carogonzalez@acrisure.com
INSURED Rostan Solutions LLC 3433 Lithia Pinecrest Rd #287 Valrico FL 33596 ROSTSOL-01	**INSURER(S) AFFORDING COVERAGE** — **NAIC #** **INSURER A :** Homeland Insurance Company of New York — 34452 **INSURER B :** The Continental Insurance Company — 35289 **INSURER C :** Continental Casualty Company — 20443 **INSURER D :** **INSURER E :** **INSURER F :**

COVERAGES **CERTIFICATE NUMBER:** 774047023 **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. *LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS. LIMITS SHOWN ARE INCLUSIVE OF AMOUNTS REQUESTED BY THE CERTIFICATE HOLDER AND MAY NOT REFLECT POLICY LIMIT AMOUNTS IN EXCESS OF THOSE REQUESTED. **Not Applicable in WY**

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS	
A	X COMMERCIAL GENERAL LIABILITY			793012804-0002	9/29/2025	9/29/2026	EACH OCCURRENCE	$ 1,000,000
	CLAIMS-MADE X OCCUR						DAMAGE TO RENTED PREMISES (Ea occurrence)	$ 1,000,000
	X Contractor Pol						MED EXP (Any one person)	$ 10,000
							PERSONAL & ADV INJURY	$ 1,000,000
	GEN'L AGGREGATE LIMIT APPLIES PER:						GENERAL AGGREGATE	$ 2,000,000
	POLICY X PRO-JECT LOC						PRODUCTS - COMP/OP AGG	$ 2,000,000
	OTHER:							$
B	AUTOMOBILE LIABILITY			8033641378	9/29/2025	9/29/2026	COMBINED SINGLE LIMIT (Ea accident)	$ 1,000,000
	X ANY AUTO						BODILY INJURY (Per person)	$
	OWNED AUTOS ONLY / SCHEDULED AUTOS						BODILY INJURY (Per accident)	$
	X HIRED AUTOS ONLY / X NON-OWNED AUTOS ONLY						PROPERTY DAMAGE (Per accident)	$
							PIP Basic	$ 10,000
A	UMBRELLA LIAB X OCCUR			793012805-0002	9/29/2025	9/29/2026	EACH OCCURRENCE	$ 5,000,000
	X EXCESS LIAB / CLAIMS-MADE						AGGREGATE	$ 5,000,000
	DED / RETENTION $							$
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) Y / N: N	N / A		WC 8033641350	9/29/2025	9/29/2026	X PER STATUTE / OTH-ER	
	If yes, describe under DESCRIPTION OF OPERATIONS below						E.L. EACH ACCIDENT	$ 1,000,000
							E.L. DISEASE - EA EMPLOYEE	$ 1,000,000
							E.L. DISEASE - POLICY LIMIT	$ 1,000,000
A	Professional Liab			793012804-0002	9/29/2025	9/29/2026	Each claim Aggregate	$1,000,000 $2,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

CERTIFICATE HOLDER	**CANCELLATION**
City of Sulphur 101 N. Huntington St. Sulphur LA 70663 USA	**SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.** **AUTHORIZED REPRESENTATIVE** Jennifer Irwin

ACORD 25 (2025/12)

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ORDINANCE NO. _____, M-C SERIES

AN ORDINANCE ACCEPTING THE DONATION OF PROPERTY FROM BELLE SAVANNE PARTNERS, LLC, AND AUTHORIZING THE MAYOR TO EXECUTE SAID ACT OF DONATION AND PROVIDING FOR EFFECTIVE DATE OF ORDINANCE FOR PROPERTY LOCATED IN MIMOSA PARK PHASE II SUBDIVISION WHERE A LIFT STATION IS LOCATED.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby accept from Belle Savanne Partners, LLC, the donation of the following described property situated in the Parish of Calcasieu, State of Louisiana, to-wit:

That certain lot or parcel of ground shown and depicted as "Existing Sewer Lift Station Site" on the Final Plat of Mimosa Park - Phase II, A Residential Development, located in Sections 10 & 15, Township 10 South, Range 4 West, City of Sulphur, Calcasieu Parish, Louisiana, prepared by Barry J. Bleichner, PE, PLS, dated January 30, 2019, recorded in Plat Book 56, at Page 24, under Instrument Number 3344576 of the records of Calcasieu Parish, Louisiana, being more particularly described as follows:

Commencing at a point at the intersection of the centerlines of Windsor Woods and Rayner Drive, proceed along a bearing of South 64°08'43" West a distance of 60.00 feet to a point on the westerly right of way of Windsor Woods; thence proceed along a bearing of North 89°06'02" West a distance of 87.38 feet to a point. thence proceed along a bearing of North 00°58'09" East a distance of 40.00 feet to a point, said point to be known as the Point Of Beginning.

Thence proceed along a bearing of North 00°58'09" East a distance of 30.00 feet to a point; proceed along a bearing of South 89°06'02" East a distance of 30.00 feet to a point; proceed along a bearing of South 00°58'09" West a distance of 30.00 feet to a point; thence proceed along a bearing of North 89°06'02" West a distance of 30.00 feet to the Point of Beginning.

BE IT FURTHER ORDAINED that the Mayor is hereby authorized, empowered, and directed to execute such agreements or documents in connection therewith, which will be substantially in accordance with the agreements in part herewith and attached hereto as "Exhibit A". Additionally, the donation will be "As-Is" without warranty of title.

BE IT ALSO FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's approval.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

ACT OF DONATION

STATE OF LOUISIANA
PARISH OF CALCASIEU

BE IT KNOWN, that on the dates set forth below, before the undersigned Notaries Public, duly commissioned and qualified in and for their respective Parishes and State, and in the presence of the undersigned competent witnesses, personally came and appeared:

BELLE SAVANNE PARTNERS, LLC, a Louisiana limited liability company, having its registered office in Lafayette Parish, whose mailing address is 1100 Camellia Blvd., Ste. 201, Lafayette, LA 70508, herein represented by Tricia Sieferman, duly authorized by Certificate of Authority of Belle Savanne Partners, L.L.C., recorded December 12, 2016 in Book 4160, at Page 180, under Instrument Number 3256450 of the Conveyance Records of Calcasieu Parish, Louisiana

CITY OF SULPHUR, a political subdivision of the State of Louisiana, hereinafter referred to as "Donee" and represented by Jacob Stutes, its Mayor, whose mailing address is 101 North Huntington Street, Sulphur, Louisiana 70663,

The Donor declared that it does by these presents, donate, convey, assign, grant transfer, set over and deliver to the Donee, which they do hereby accept this donation for itself and its successors and assigns, acknowledging due delivery and possession thereof, all of the Donor's right, title, and interest in the following described property:

> That certain lot or parcel of ground shown and depicted as "Existing Sewer Lift Station Site" on the Final Plat of Mimosa Park - Phase II, A Residential Development, located in Sections 10 & 15, Township 10 South, Range 4 West, City of Sulphur, Calcasieu Parish, Louisiana, prepared by Barry J. Bleichner, PE, PLS, dated January 30, 2019, recorded in Plat Book 56, at Page 24, under Instrument Number 3344576 of the records of Calcasieu Parish, Louisiana, being more particularly described as follows:
>
> Commencing at a point at the intersection of the centerlines of Windsor Woods and Rayner Drive, proceed along a bearing of South 64°08'43" West a distance of 60.00 feet to a point on the westerly right of way of Windsor Woods; thence proceed along a bearing of North 89°06'02" West a distance of 87.38 feet to a point. thence proceed along a bearing of North 00°58'09" East a distance of 40.00 feet to a point, said point to be known as the Point Of Beginning.
>
> Thence proceed along a bearing of North 00°58'09" East a distance of 30.00 feet to a point; proceed along a bearing of South 89°06'02" East a distance of 30.00 feet to a point; proceed along a bearing of South 00°58'09" West a distance of 30.00 feet to a point; thence proceed along a bearing of North 89°06'02" West a distance of 30.00 feet to the Point of Beginning.

The Donor's intention is to convey and assign to the Donee by virtue of this instrment one hundred percent (100%) of the ownership of the described Property.

Donor and Donee respectfully acknowledge that no cash has been paid or received in consideraton of this transaction.

Donee appears herein to accept this donation and acknowledge delivery and receipt of same.

THUS DONE AND SIGNED in duplicate original at _____, Louisiana, on this _____ day of _____, 2026, in the presence of the undersigned witnesses and me, Notary Public, afte due reading of the whole.

WITNESSES:

BELLE SAVANNE PARTNERS, LLC:

_____
Witness Signature

BY: _____
TRICIA SIEFERMAN

_____
Printed Witness Name

_____
Witness Signature

_____
Printed Witness Name

_____
NOTARY PUBLIC

_____
Notary Printed/Stamped Name
and Identification Number

THUS DONE AND SIGNED in duplicate original at _____, Louisiana, on this _____ day of _____, 2026, in the presence of the undersigned witnesses and me, Notary Public, afte due reading of the whole.

WITNESSES:

CITY OF SULPHUR:

_____
Witness Signature

BY: _____
JACOB STUTES, MAYOR

_____
Printed Witness Name

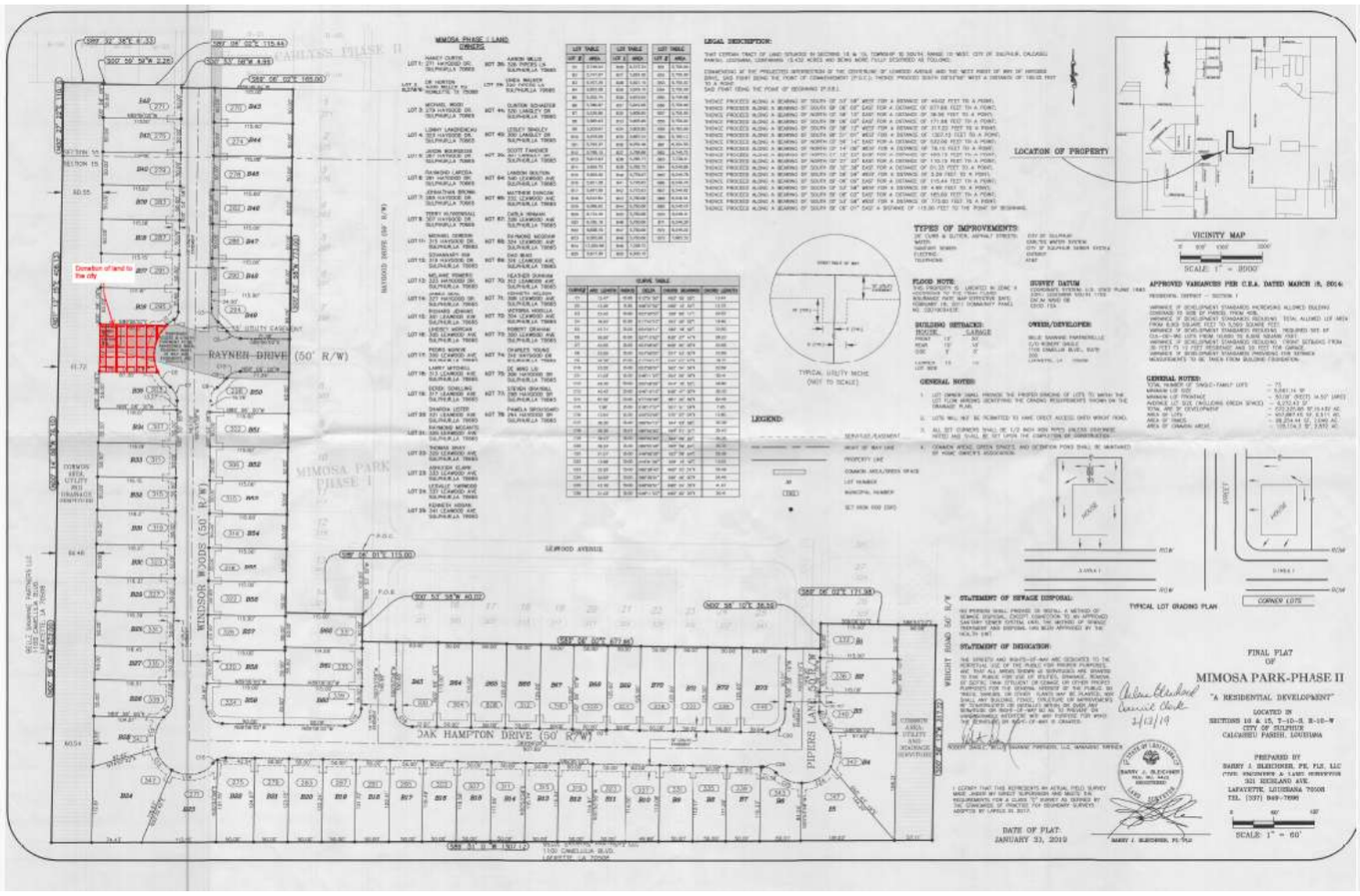
_____
Witness Signature

_____
Printed Witness Name

_____
NOTARY PUBLIC

_____
Notary Printed/Stamped Name
and Identification Number

“EXHIBIT A”


RAYNER DRIVE (50' R/W)
WINDSOR WOODS (50' R/W)
OAK HAMPTON DRIVE (50' R/W)
LEEWOOD AVENUE
PIPERS LANE
MIMOSA PARK PHASE I
MIMOSA PARK PHASE II
LOCATION OF PROPERTY
VICINITY MAP
TYPICAL UTILITY MOVE
TYPICAL LOT GRADING PLAN
LEGEND:
FINAL PLAT OF MIMOSA PARK-PHASE II
"A RESIDENTIAL DEVELOPMENT"
LOCATED IN SECTIONS 10 & 15, T-10-S, R-10-W
CITY OF SULPHUR
CALCASIEU PARISH, LOUISIANA
PREPARED BY
HARRY J. BLEICHNER, PE, PLS, LLC
321 HIGHLAND AVE.
LAFAYETTE, LOUISIANA 70508
TEL. (337) 849-7090
DATE OF PLAT:
JANUARY 23, 2019
SCALE: 1" = 60'


DUSKY LN
SAWYER DR
LANGLEY DR
PIPER LN
Property located here
RAYNER DR
HAYGOOD DR
WRIGHT RD
WINDSOR WOODS
LEAWOOD AVE
OAK HAMPTON DR

ORDINANCE NO. M-C SERIES

AN ORDINANCE AMENDING CHAPTER 8, SECTION 6.1 OF THE CODE OF ORDINANCES OF THE CITY OF SULPHUR, PROHIBITING FIREARMS AND WEAPONS ON CITY OF SULPHUR GOVERNMENT PROPERTY; PROVIDING LIMITED EXCEPTIONS FOR AUTHORIZED LAW-ENFORCEMENT OFFICERS; REQUIRING SIGNAGE; AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City of Sulphur recognizes the importance of maintaining safe and secure facilities for its employees, residents, visitors, and the public; and

WHEREAS, the City Council finds that restricting the possession of firearms and weapons on property owned, leased, controlled or occupied by the City of Sulphur promotes public safety and protects individuals conducting official business; and

WHEREAS, the Sulphur City Council further finds that clear and conspicuous notice is necessary to inform the public of the restrictions established by this Ordinance;

NOW, THEREFORE, BE IT ORDAINED by the Sulphur City Council of the City of Sulphur that the following provisions are adopted:

SECTION 1. PROHIBITION

Except as expressly provided in this Ordinance or otherwise required by applicable law, no person shall possess, carry, display, transport, or discharge a firearm or weapon on City of Sulphur Government Property.

This prohibition applies regardless of whether the firearm or weapon is:

1. Carried openly or concealed;
2. Loaded or unloaded;
3. Carried pursuant to a concealed handgun permit or other license; or
4. Located on a person or in a vehicle, subject to applicable law.

SECTION 2. PROPERTY COVERED

This Ordinance applies to all City of Sulphur Government Property including but not limited to property owned, leased, occupied, or controlled by the City of Sulphur, including:

1. City of Sulphur government buildings and offices;
2. Sulphur City Council chambers and any alternative meeting facilities;
3. Sulphur City Court and administrative facilities, to the extent permitted by law;
4. City of Sulphur Public works and utility facilities;
5. City of Sulphur Parks, recreational facilities, and other City-owned public spaces;
6. City of Sulphur Parking lots, parking garages, driveways, and other access areas; and
7. The grounds and exterior areas surrounding City of Sulphur facilities.

SECTION 3. DEFINITIONS

For purposes of this Ordinance:

A. “Firearm” means any weapon that is designed to or may readily be converted to expel a projectile by the action of an explosive or other propellant.

B. “Weapon” means any instrument, device, or object designed, intended, or capable of causing death or serious bodily injury, including firearms and other weapons prohibited by applicable law.

C. “City of Sulphur Government Property” means property owned, leased, occupied, or controlled by the City of Sulphur and shall include all property covered in Section 2 herein.

SECTION 4. EXCEPTION FOR LAW-ENFORCEMENT OFFICERS

The prohibition established by this Ordinance shall not apply to duly commissioned and authorized law-enforcement officers who are carrying firearms or weapons:

1. Acting in the lawful performance of their official duties;
2. Acting within the scope of their authority; and
3. Acting in accordance with all applicable federal, state, and local laws and regulations.

This exception applies only to authorized law enforcement personnel and does not create an exception for private security personnel, retired officers, off-duty officers, or other individuals unless otherwise authorized by applicable law or written City policy.

SECTION 5. SIGNAGE AND PUBLIC NOTICE

The City of Sulphur shall post and maintain conspicuous signage providing notice of the prohibitions established by this Ordinance within thirty (30) days of the effective date of this Ordinance.

Signs shall be placed:

1. At each public entrance to City of Sulphur Government Property as defined herein;
2. At entrances to City-owned or City-operated grounds and facilities, where appropriate; and
3. At a visible location in City of Sulphur parking lots, parking garages, and any other area without a building.

The signs shall state substantially as follows:

> NOTICE: FIREARMS AND WEAPONS ARE PROHIBITED ON CITY OF SULPHUR GOVERNMENT PROPERTY, EXCEPT AS EXPRESSLY AUTHORIZED BY LAW. THIS PROHIBITION APPLIES TO BOTH OPEN AND CONCEALED CARRY, INCLUDING PERSONS HOLDING A CONCEALED HANDGUN PERMIT.

All required signs shall be installed as soon as practicable after the effective date of this Ordinance.

SECTION 6. ENFORCEMENT AND PENALTIES

The violation of or failure to comply with this provision shall subject the offender to a fine not in excess of five hundred dollars ($500.00) or imprisonment of not more than six (6) months or both.

SECTION 7. COMPLIANCE WITH APPLICABLE LAW

This Ordinance shall be interpreted and enforced to the maximum extent permitted by law. If any provision conflicts with controlling federal or state law, the controlling law shall govern, and the remaining provisions of this Ordinance shall remain in effect to the fullest extent permitted.

SECTION 8. SEVERABILITY

If any section, subsection, paragraph, sentence, clause, or phrase of this Ordinance is declared invalid or unconstitutional by a court of competent jurisdiction, that decision shall not affect the validity of the remaining portions of this Ordinance.

SECTION 9. EFFECTIVE DATE

This Ordinance shall become effective as set forth in the City of Sulphur Charter.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

SEE HIGHLIGHTED AMENDMENT ON PAGE 3

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AMENDING ORDINANCE NO. 1733, M-C SERIES, ADOPTED JULY 12, 2021, TO SET FORTH FEE FOR LOUISIANA STATE UNIFORM CONSTRUCTION CODE COMMISSION FEE AND CITY OF SULPHUR PROCESSING FEE.

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby amend Ordinance No. 1733, M-C Series, adopted July 12, 2021, to set forth fee for Louisiana State Uniform Construction Code Commission Fee and City of Sulphur Processing Fee as set forth in the table below:

Cost Schedule

0 - 300	$0
301 – 1000	$15.00
1001 – 2000	$20.00
2001 – 3000	$25.00
3001 – 5000	$30.00
5001 – 10,000	$35.00
10,001 – 25,000	$50.00
25,001 – 26,000	$100.00
26,001 – 150,000	$101.25 – $255.00
150,001 – 500,000	$327.50 - $1200.00
500,001 – UP	$1201.50 - Up

In addition to permit fees, inspection fees for each craft on new or renovated commercial establishments will be as follows:

26,001 – 150,000	$100.00
150,001 – 500,000	$200.00
500,001 – UP	$300.00

The following projects are "cost of job" permits (see cost schedule) - Signs, paved parking, swimming pools, re-roofs, fences, gasoline tanks, remodeling, repairs and/or alterations

Demolition Permit

$30.00	Demo-Commercial
$15.00	Demo-Residential

Electrical Permit

$15.00	Electrical Permit
$15.00	Electrical-Pole Service
$4.00	Electrical-Breaker Double Pole
$8.00	Electrical-Breaker Quad Pole
$2.00	Electrical-Breaker Single Pole
$6.00	Electrical-Breaker Triple Pole
$4.00	Electrical-Breaker Main
$6.00	Electrical-Breaker Main 3 Phase

Fire Permit

$80.00	Fire-Construction
$80.00	Fire-Operation

Gas Permit

$15.00	Gas Permit
$1.00	Gas-Outlet
$15.00	Gas-Pressure Test

House Moving Permit

$100.00	House Moving
$50.00	Site visit to determine approval of structure up to 30 mile radius

Mechanical Permit

$15.00	Mechanical Inspect
$15.00	Mechanical Permit-1st Ton
$2.00	Mechanical-Per Add'l ton

Mobile Home Permit

$80.00	Mobile Home-DBL Wide Permit
$40.00	Mobile Home-SGL Wide Permit
$50.00	Site visit to determine approval of structure up to 30 mile radius

Plumbing Permit

$15.00	Plumbing-Change sewer line
$15.00	Plumbing Permit
$5.00	Plumbing-A/C
$5.00	Plumbing-Bathtub
$5.00	Plumbing-Dishwasher
$5.00	Plumbing-Disposal
$5.00	Plumbing-Drink Fountain
$5.00	Plumbing-Grease Trap
$5.00	Plumbing-Hose Bib
$15.00	Plumbing-Inspection Fee
$5.00	Plumbing-Lavatories
$5.00	Plumbing-Refrigeration
$5.00	Plumbing-Sewer
$5.00	Plumbing-Shower/Floor Drain
$5.00	Plumbing-Sink
$5.00	Plumbing-Urinal
$5.00	Plumbing-Washing Machine
$5.00	Plumbing-Water Closet
$5.00	Plumbing-Water Heater
$5.00	Plumbing-Water Line
$30.00	Plumbing- Commercial Back-Flow
$60.00	Plumbing-Outside City Sewer Connection
$30.00	Plumbing-Outside City Sewer Inspection

Portable Building Permit

$40.00	Portable Bldg-over 12' Wide
$15.00	Portable Bldg-under 12' Wide

Grading

$50.00	Grading Permit
$15.00	Portable Bldg-under 12'Wide

Demolition Bond (Cashier's Check or Money Order)

$1000.00	Demolition Bond-Commercial
.10	Demolition Bond-Commercial Sq Ft
$ 500.00	Demolition Bond-Residential

Borrow Pit and Pond

$50.00-$500.00	Depending on complexity of review

Other Fees

$25.00	Re-inspection fee
$50.00	Plan Review fee-Residential
$60.00	Plan Review fee-Commercial
Double permit fee	“No Permit”
$45.00	Generator Installation
Cost of Job + pre-construction inspection fee + final inspection fee (plan review fee if required)	Solar Panel
$50.00	Change Contractor
$50.00	Culvert Inspection Fee
$50.00 (30 mile radius)	Any site visit required outside of city limits
$10.00	La. State Uniform Construction Code Commission

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o’clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o’clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

State of Louisiana

UNIFORM CONSTRUCTION CODE COMMISSION

JEFF LANDRY
GOVERNOR

BRAD HASSERT
EXECUTIVE DIRECTOR

To: **Louisiana Inspectors and Permit Offices**

From: **Tarah Revette, Administrative Director, LUCCC**

Date: **September 8, 2026**

Subject: Ten Dollar Fee per Permit – Clarification on Applicable Permits

4

Effective January 1, 2027:

In accordance with La. R.S. 37:3730(C)(2) of Act 881 of the 2026 Regular Session of the Louisiana Legislature, the Louisiana State Uniform Construction Code Commission (LUCCC) may collect a fee on any permits issued by a local government authority. Furthermore, under LUCCC Resolution 2026-01 adopted on July 7, 2026, the Commission has set the fee amount to ten dollars per permit.

In accordance with La. R.S. 37:3728(A)(16), a "permit" is defined as an official document issued by a municipal, local, or parish government authority for the construction, alteration, relocation, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal, or demolition of a building, structure, or any appurtenances connected or attached to such buildings or structures. A permit authorizes the performance of a specified activity and complies with the Uniform Construction Code and other regulations.

At the Commission meeting held on **September 1, 2026**, additional clarification was approved by majority vote to specify which permits the ten-dollar fee applies to. The fee will apply to the following permits:

- **New construction;** *(including accessory structures and swimming pools)*
- **Renovation;** *(including accessory structures and swimming pools)*
- **Additions;**
- **Roofing;**
- **Elevation;** and
- **House placement and moving** *(including manufactured, modular, and traditional structures).*

The Commission has determined that all fees collected shall be remitted quarterly.

Information regarding the remittal process and reporting requirements will be sent at a later date.

Please direct any questions to tsrevette@luccc.louisiana.gov.

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AMENDING THE MASTER SERVICES AGREEMENT WITH ROSTAN SOLUTIONS, LLC, ADOPTED NOVEMBER 9, 2021, TO PROVIDE FOR AN EXTENSION THROUGH NOVEMBER 8, 2027.

BE IT ORDAINED by the City Council of the City of Sulphur, the governing authority thereof, that they do hereby amend the Master Services Agreement with Rostan Solutions, LLC, adopted November 9, 2021, to provide for an extension through November 8, 2027.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

CITY OF SULPHUR
PROGRAM/PROJECT MANAGEMENT
AND DISASTER RECOVERY/GRANTS
MANAGEMENT PROFESSIONAL SERVICES (RFP LRA-20-6)

STATE OF LOUISIANA
PARISH OF CALCASIEU

Amendment 6

WHEREAS the City of Sulphur and Rostan Solutions, LLC (hereinafter referred to as "Rostan", collectively referred to as the "Parties") entered into an agreement on November 9, 2021, for Rostan to provide certain Professional Services; and

WHEREAS Section 2, Term of AGREEMENT, as amended by Amendment 5, extends the term through November 8, 2026, with no additional one-year extensions remaining unless otherwise amended in writing and agreed to by the Parties; and

WHEREAS the Parties now wish to further amend the Agreement to extend its term for one (1) additional year, through November 8, 2027;

NOW, THEREFORE, the Parties mutually and expressly agree as follows:

Section 2. Term of AGREEMENT is hereby amended as follows:

> "The term of this Agreement, which commenced on November 9, 2021, shall extend to **November 8, 2027**. No additional one-year extensions remain beyond this date unless otherwise amended in writing and agreed to by the Parties."

***

This term of Agreement is made effective retroactive to the date of execution of the Agreement. All other provisions of the Agreement for Professional Services shall remain in effect. This amendment is hereby agreed to and is incorporated into the Agreement as of the date of the signature of the latest party's authorized agent.

CITY OF SULPHUR	**ROSTAN SOLUTIONS, LLC**
By: _____	By: _____
Title: _____	Title: _____
Date: _____	Date: _____

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AMENDING THE MASTER SERVICES AGREEMENT WITH ROSTAN SOLUTIONS, LLC, FOR TASK ORDER #1, IN REFERENCE TO GRANT MANAGEMENT SERVICES.

BE IT ORDAINED by the City Council of the City of Sulphur, the governing authority thereof, that they do hereby amend the Master Services Agreement with Rostan Solutions, LLC, for Task Order #1, in reference to Grant Management Services.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

FORM TASK ORDER

TASK ORDER NO. 01 AMENDMENT NO. 06 Date: 9/30/2026

1. This Task Order (this "***Task Order***") is issued pursuant to and is governed by the Professional Services Master Agreement, dated as of November 9, 2021 (the "***Agreement***"), by and between The City of Sulphur (the "***CITY***"), and Rostan Solutions, LLC. (the "***CONTRACTOR***"). The terms and conditions set forth in the Agreement are hereby incorporated herein by reference and shall be applicable hereto.

2. **Scope of Services:**

   Exhibit A Attached –GRANT MANAGEMENT SERVICES

3. **Schedule:**

   Services shall commence on November 09, 2021, and shall be satisfactorily completed on or before November 8, 2027.

4. **Compensation:**

   The CONTRACTOR shall invoice the CITY on a monthly basis for the costs and expenses incurred in performing the Services in accordance with the rates set forth in Schedule C of the Agreement, provided that the aggregate amount payable by the CITY for Services under this Task Order No. 01 Amendment No. 06 with an increased dollar amount of $200,000.00 shall not exceed $1,750,000.00. The not to exceed budget amount of this Task Order No. 01 Amendment No. 06 may only be amended by written agreement between CITY and CONTRACTOR. This not-to-exceed budget amount is made effective retroactive to the date of execution of the original Task Order.

IN WITNESS WHEREOF, the CITY and the CONTRACTOR have caused this Task Order to be executed by their duly authorized representatives as of the date first above written.

CITY:
City of Sulphur, Louisiana

By: _____
Name: Jacob Stutes
Title: Mayor

CONTRACTOR:
Rostan Solutions, LLC

By: _____
Name: Kyle Jones
Title: Vice President

Attachment A
Scope of Services

SCOPE OF SERVICES

Tasks and Services

The City of Sulphur is a political subdivision of the state of Louisiana. The City of Sulphur has incurred significant loss from Hurricane Laura and is seeking professional services to provide assistance and support for grants management and administration and associated project management activities as needed for federal and state programs, including primarily, but not limited to, the Federal Emergency Management Agency Public Assistance Program, Federal Emergency Management Agency Hazard Mitigation Program, HUD Community Development Block Grant Program, and U.S. Department of Transportation programs. Respondents with extensive, specialized, and successful expertise in the FEMA Public Assistance Program will receive higher evaluations in the selection.

The scope of services described herein requires the Consultant to develop and implement a recovery plan to restore facilities to their pre-disaster condition. A primary objective of this Request for Proposals is to ensure that projects within the recovery program are accomplished on time and within budget. Another objective of this RFP is to maximize eligibility and reimbursement for all aspects of the recovery program.

- Overall Program Management Services: The Consultant shall be responsible for supporting the development and implementation of the overall program management plan for the City of Sulphur 's Recovery Plan.
- Management of Design Phase: The Consultant shall be responsible for assisting the City of Sulphur in the procurement of, and providing design management of, professional design services required to implement construction of the projects in the City of Sulphur 's Recovery Plan.
- Management of Construction Phase: The Consultant shall be responsible for management of the procurement of construction services and providing project construction management of the construction phase of all the City of Sulphur 's Recovery Plan projects.
- Field inspection services: The Consultant shall be responsible for providing field inspection services as necessary to ensure compliance to schedule, budget, and quality contractual requirements.
- Project Controls: The Consultant shall be responsible for coordinating with the appropriate staff person to manage invoices, contracts, change orders, and amendments to develop systems that result in the delivery of projects on time and on budget.
- Grants Administration, Compliance and Close-Out: The Consultant shall be responsible for working with the appropriate Federal, State, Local and Private agencies for obtaining, maximizing and ensuring compliance of FEMA, CDBG, Local and Private funding grants needed to implement to the City of Sulphur 's Master Plan. The Consultant is also responsible for submitting to the granting agency the documents required to close-out all disaster related grants. The Consultant shall also be responsible for responding to audit inquiries from a variety of agencies not limited to FEMA OIG, Louisiana Legislative Auditors and the City of Sulphur 's External Auditors.
- Project Close Out: The Consultant shall be responsible for preparing documentation for close-out. Close-out includes providing data to set-up of preventive maintenance and asset preservation programs for each project executed. It also includes management of one-year warranty period after construction is completed for each project executed. The Consultant shall be responsible for financial reports and other documentation as required per the terms of the financial grants received to execute the projects. The Consultant shall serve as a representative of the City of Sulphur. The Consultant (or any entity of the Program Management team) will not be allowed to perform architectural or engineering design, or construction services (outside the scope of services outlined in this RFP).

PART I. GRANTS MANAGEMENT AND ADMINISTRATION

The Consultant shall work closely and collaborate with various funding agencies and internal the City of Sulphur departments to ensure the proper use and application of federal and state funds. Consultant shall focus on maximizing eligible, allocable federal dollars. Consultant shall conduct efficient processes that reduce the timeline for eligibility determinations that support project cash flow sources and uses. Consultant will provide technical knowledge and experience, proven business processes, and policy strategies. In order to develop and implement the framework of grant activities, the Consultant shall perform services and work necessary to complete the following objectives and tasks:

- Develop a document management plan that specifically outlines the structure, containment, and management of all project documentation consistently for all the City of Sulphur departments. Effectively maintain efficient and complete records concerning any and all applicable grant programs.
- Prepare and coordinate the development of Project Worksheets (PW's) and versions as required with the City of Sulphur, Federal agencies and State agencies. This includes project development, formulation, and processing as required for small and large projects.
- Prepare, submit and track Hazard Mitigation Grant program applications as required with the City of Sulphur, Federal agencies and State agencies. This includes project or program development, formulation, processing, and monitoring as required.
- Work with the City of Sulphur departments and divisions to obtain all costs and necessary backup documentation to develop, revise and submit PW's and grant applications to the Federal agencies and State agencies to be approved, obligated and reimbursed.
- Review eligibility issues for the City of Sulphur and develop justifications for presentation to the Federal agencies, State agencies, and other agencies involved in providing disaster recovery funds.
- Ensure that all eligible damages have been identified, quantified, and presented to the City of Sulphur, Federal agencies, and State agencies. All eligible damages shall be incorporated into PW' s and grant applications with supporting documentation and proper cost estimates, using the FEMA Cost Estimating Factor (CEF) when necessary.
- Provide, or as needed retain the services of, professional experts to prepare damage assessments and technical reviews and oversight in the furtherance of program objectives.
- Review contracts, bid documentation, change orders, and other records to support the proper preparation and presentation of PW's, grant applications and eligible activities.
- Compile and summarize/justify costs for presentation to Federal agencies and State agencies for reimbursement of eligible costs, ensuring compliance with applicable regulations.
- Attend meetings with the City of Sulphur, Federal agencies, and State agencies to negotiate and represent PWs and the obligation of eligible amounts.
- Provide grant management advice to maximize reimbursements of disaster recovery expenses.
- Provide advice to the City of Sulphur personnel and Consultants; attend and participate in meetings as required.
- Prepare draft correspondence to local, Federal and State officials as necessary.
- Provide the City of Sulphur with any changes in policies, procedures, processes, or deadlines throughout the financial disaster recovery process.
- Prepare and conduct the close-out process, ensuring maximum recovery and retention of all eligible funding, satisfactory disposition of appeals and availability of supporting documents for future audits.
- Prepare for and respond to inspections and audits for on-going and completed projects.
- Prepare formal audit responses and justifications; attend associated meetings and hearings as needed.

- Keep track and monitor Consultant's own time and activities by project, or as allowable under the provisions of Federal guidance for direct administrative, indirect, and project management costs (reference Federal regulations and policy guidance for these topics).
- Provide written performance and status reports to the City of Sulphur on the status of the FEMA Public Assistance program and other grant programs as requested. The performance and status report should include, but is not limited to, the following:
    - Hours billed and amount invoiced by personnel
    - PW and grant application development and revisions
    - PW and grant application submissions and approvals
    - Obligated amounts versus eligible estimates
    - Issues with PW and grant application submissions and resolutions
    - Issues requiring assistance
    - Amounts awarded to the City of Sulphur per PW and grant application
    - Requests for Reimbursement submitted
    - Estimated and actual costs
    - Reimbursements received by the City of Sulphur
    - Insurance deductions
    - PW and grant application closeouts

PART II: PROGRAM MANAGEMENT

1. Overview

The overall objective is to assist the City of Sulphur in managing the implementation of design and construction phases to achieve the objectives of the City of Sulphur's Recovery Plan. The

Responsibilities and Deliverables for this effort include, but are not limited to the following:

A. Overall Program Management

- Responsibilities
    - Under the direction of the City of Sulphur 's Point of Contact, direct and coordinate the activities of the Project Management team to meet the objectives of the overall program management plan.
    - Manage, report, and monitor projects to ensure delivery within the established schedule and cost parameters and in compliance with quality assurance requirements; provide timely project communications; develop and implement appropriate recovery strategies when management objectives are at risk.
    - Determine the current status of all ongoing projects that exist prior to the start of this new contract and provide a plan for managing this transition.
    - Assist the City of Sulphur as required in project/ program financial or programmatic audits.
    - Assist the City of Sulphur in obtaining FEMA reimbursement as well as any other federal/state/local capital funding source, including State and Federal Tax Credits. Attend meetings with related State/Federal and other agencies as necessary and provide project information to them as required. Assist the City of Sulphur in liquidating FEMA/CDBG grants to cover program implementation cost.
    - Provide audit and funding compliance reviews on all projects as required based on the funding source.
    - Develop, implement and staff a Consultant awareness program that encourages and facilitates DBE participation in the City of Sulphur 's Recovery Program.
    - The Consultant shall work with the City of Sulphur and its representatives to provide claim and litigation support as denoted in this scope of work for any threatened and actual claims and/or litigation related to the program. The Consultant shall take its direction from the City of Sulphur and/or its representatives related to actions necessary to respond to any potential claim, litigation or information/document requested received by Consultant. For matters

which the Consultant is not included as a party to any such action, the Consultant shall be entitled to reimbursement from the City of Sulphur for reasonable costs and expenses incurred by Consultant for responding to and/or assisting the City of Sulphur with any potential claim, litigation or information/document requested received by Consultant. The parties shall work together in good faith to reach an agreement on the amount of such compensation on a case-by-case basis in accordance with the normal payment procedures outlined in the Contract.

B. Management of Design Phase

The Consultant shall be responsible for assisting the City of Sulphur 's Public Works Department in the procuring and directly manage professional design firms, emphasizing within budget and on time performance. Additionally, the Consultant shall ensure compliance with design guidelines and contract terms as required to execute the delivery of the projects in the City of Sulphur Recovery Program. The services required include, but are not limited to the following:

- Responsibilities
    - Responsible for the preparation of a professional design services procurement plan and schedule to meet the requirements of the City of Sulphur's Recovery Program, developing RFP's for architecture and/or engineering services and participating in the negotiations of design contracts as requested by the City of Sulphur.
    - Assist the City of Sulphur and coordinate with design professionals in properly incorporating design standards and master specifications in each design project.
    - Recommend and implement project delivery strategies and schedules in order to increase construction market competition and realize efficiencies.
    - Develop and maintain a document management system for construction documents and record drawings.
    - Assist in the evaluation and selection of professional design Consultants.
    - Manage professional design Consultants' contracts and implement design to budget requirements in all RFP's and contracts for design services. Monitor and report on compliance with design to budget requirements.
    - Validate the Architect/Engineer (A/E) cost estimate and provide value engineering and constructability reviews throughout the design of projects to ensure compliance with project budget and schedule.
    - Develop, implement and staff a Consultant awareness program that encourages and facilitates DBE participation in the City of Sulphur's Recovery Program.
    - Provide document quality assurance/quality control reviews.
    - Evaluate and review design errors and omissions, rendering professional opinions to the City of Sulphur and assisting the City of Sulphur in recovery efforts if necessary.

C. Management of Construction Phase

The Consultant shall be responsible for assisting the City of Sulphur's Departments in the coordination of the construction process of all the City of Sulphur's Recovery projects. Services required for the construction program include, but are not limited to the following:

- Responsibilities
    - Support and assist in the preparation of the construction program procurement plan and schedule for all recovery projects.
    - Integrate local and DBE business participation outreach into procurement plans.
    - Administer the competitive bidding process for the procurement of construction, including conducting pre-bid conferences.
    - Schedule and conduct pre-construction meetings.
    - Provide project construction management services to include; conduct regular jobsite meetings, oversee quality assurance testing and inspection programs, monitor Consultant and sub Consultant work for deficiencies, maintain copy of all contract documents, change orders, and other documentation, oversee Consultant and sub Consultant safety program. Expedite communication, processing and documentation all Consultants' submittals including RFI's, payments requests and change orders.
    - Monitor and manage the process of compliance with all applicable regulatory requirements, permitting and necessary approvals.
    - Process and track payment requests for approval.
    - Report potential budget and schedule variances and prepare recovery plans.
    - Administer post construction close-out, 3rd-party commissioning, start-up, and transition to operation including ensuring receipt of all operations and maintenance manuals and as-built drawings.
    - Assist in training the City of Sulphur Operations and Maintenance personnel on all completed projects.
    - Expedite final project close out and approval for final Consultants' payments and assist in all post construction dispute resolution as necessary.
    - Assist in coordinating furnishings, fixtures and equipment acquisitions and installation as requested by the City of Sulphur. The individual(s) responsible for this activity must be cognizant of Louisiana state procurement regulations.
    - Responsible for assisting the City of Sulphur in the establishing a preventive maintenance program for each completed project.
    - Manage the one-year post construction warranty period on behalf of the City of Sulphur, to include Architect and General Consultant.
    - Provide construction project cost and schedule reporting to the City of Sulphur on a monthly basis.
    - Develop and update as necessary a construction inspection manual to provide guidelines for field inspection services consistent with national industry standards.

D. Field Inspection Services

The Consultant shall be responsible for providing field inspection services as necessary to ensure compliance to schedule, budget and quality contractual requirements including but not limited to the following:

- Responsibilities
  - Ensure that all contract drawings, terms, and conditions are adhered to during the construction phase.
  - Process Consultant's payments and verify accuracy of paid quantities.
  - Monitor the Consultant's adherence to the safety plan and ensure that the Consultants are providing adequate site security.
  - Document Non-Conformance Reports (NCR) in case of non-conformance and monitor corrective actions.
  - Verify that all addendums have been incorporated into the final plan set prior to start of construction.
  - Ensure that work by other City of Sulphur departments is coordinated with the on-site construction Consultants.
  - Manage and facilitate the implementation of all commissioning processes and guidelines through-out the project duration.
  - Coordinate the building turn over process with the owner and Consultants.

PART III: TECHNICAL REQUIREMENTS

- Successful proposer shall include one or more project team members who shall be a Louisiana license general Consultant and a Project Management Professional certified from the Project Management Institute or other recognized Project Management professional societies.
- Successful proposer shall include one or more team members with a minimum of 5 years' experience, knowledge of and application of federal laws, regulations and policies that govern the FEMA Public Assistance and Hazard Mitigation programs. Knowledge and experience with HUD Community Development Block Grants, and application of federal laws, regulation and policies is also required.
- Successful proposer shall include one or more project team members with demonstrated experience effectively negotiating both the National Environmental Preservation Act (NEPA) compliance and the National Historic Preservation Act (NHPA) Section 106 requirements.
- Successful proposer shall include one or more project team members with demonstrated experience of public works projects.
- Successful proposer shall demonstrate extensive knowledge and experience with alternative project delivery methods, including (but not limited to) Construction Manager at Risk.
- Successful proposers shall demonstrate experience with proactive dispute resolutions and claims avoidance.
- Successful proposer shall demonstrate experience with outreach and implementing Disadvantage Business Enterprise (DBE) programs.

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AMENDING THE MASTER SERVICES AGREEMENT WITH ROSTAN SOLUTIONS, LLC, FOR TASK ORDER #2, IN REFERENCE TO PROJECT MANAGEMENT SERVICES.

BE IT ORDAINED by the City Council of the City of Sulphur, the governing authority thereof, that they do hereby amend the Master Services Agreement with Rostan Solutions, LLC, for Task Order #2, in reference to Project Management Services.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

FORM TASK ORDER

TASK ORDER NO. 02 AMENDMENT NO. 06 Date: 9/30/2026

1. This Task Order (this "***Task Order***") is issued pursuant to and is governed by the Professional Services Master Agreement, dated as of November 9, 2021 (the "***Agreement***"), by and between The City of Sulphur (the "***CITY***"), and Rostan Solutions, LLC. (the "***CONTRACTOR***"). The terms and conditions set forth in the Agreement are hereby incorporated herein by reference and shall be applicable hereto.

2. **Scope of Services:**

   Exhibit A Attached – PROJECT MANAGEMENT SERVICES

3. **Schedule:**

   Services shall commence on November 09, 2021, and shall be satisfactorily completed on or before November 8, 2027.

4. **Compensation:**

   The CONTRACTOR shall invoice the CITY on a monthly basis for the costs and expenses incurred in performing the Services in accordance with the rates set forth in Schedule C of the Agreement, provided that the aggregate amount payable by the CITY for Services under this Task Order No. 02 Amendment No. 06 with an increased dollar amount of $300,000.00 shall not exceed $1,500,000.00. The not to exceed budget amount of this Task Order No. 02 Amendment No. 06 may only be amended by written agreement between CITY and CONTRACTOR. This not-to-exceed budget amount is made effective retroactive to the date of execution of the original Task Order.

IN WITNESS WHEREOF, the CITY and the CONTRACTOR have caused this Task Order to be executed by their duly authorized representatives as of the date first above written.

CITY:
City of Sulphur, Louisiana

By: _____
Name: Jacob Stutes
Title: Mayor

CONTRACTOR:
Rostan Solutions, LLC

By: _____
Name: Kyle Jones
Title: Vice President

Attachment A
Scope of Services

SCOPE OF SERVICES

Tasks and Services

The City of Sulphur is a political subdivision of the state of Louisiana. The City of Sulphur has incurred significant loss from Hurricane Laura and is seeking professional services to provide assistance and support for grants management and administration and associated project management activities as needed for federal and state programs, including primarily, but not limited to, the Federal Emergency Management Agency Public Assistance Program, Federal Emergency Management Agency Hazard Mitigation Program, HUD Community Development Block Grant Program, and U.S. Department of Transportation programs. Respondents with extensive, specialized, and successful expertise in the FEMA Public Assistance Program will receive higher evaluations in the selection.

The scope of services described herein requires the Consultant to develop and implement a recovery plan to restore facilities to their pre-disaster condition. A primary objective of this Request for Proposals is to ensure that projects within the recovery program are accomplished on time and within budget. Another objective of this RFP is to maximize eligibility and reimbursement for all aspects of the recovery program.

- Overall Program Management Services: The Consultant shall be responsible for supporting the development and implementation of the overall program management plan for the City of Sulphur 's Recovery Plan.
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- Management of Construction Phase: The Consultant shall be responsible for management of the procurement of construction services and providing project construction management of the construction phase of all the City of Sulphur 's Recovery Plan projects.
- Field inspection services: The Consultant shall be responsible for providing field inspection services as necessary to ensure compliance to schedule, budget, and quality contractual requirements.
- Project Controls: The Consultant shall be responsible for coordinating with the appropriate staff person to manage invoices, contracts, change orders, and amendments to develop systems that result in the delivery of projects on time and on budget.
- Grants Administration, Compliance and Close-Out: The Consultant shall be responsible for working with the appropriate Federal, State, Local and Private agencies for obtaining, maximizing and ensuring compliance of FEMA, CDBG, Local and Private funding grants needed to implement to the City of Sulphur 's Master Plan. The Consultant is also responsible for submitting to the granting agency the documents required to close-out all disaster related grants. The Consultant shall also be responsible for responding to audit inquiries from a variety of agencies not limited to FEMA OIG, Louisiana Legislative Auditors and the City of Sulphur 's External Auditors.
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PART I. GRANTS MANAGEMENT AND ADMINISTRATION

The Consultant shall work closely and collaborate with various funding agencies and internal the City of Sulphur departments to ensure the proper use and application of federal and state funds. Consultant shall focus on maximizing eligible, allocable federal dollars. Consultant shall conduct efficient processes that reduce the timeline for eligibility determinations that support project cash flow sources and uses. Consultant will provide technical knowledge and experience, proven business processes, and policy strategies. In order to develop and implement the framework of grant activities, the Consultant shall perform services and work necessary to complete the following objectives and tasks:

- Develop a document management plan that specifically outlines the structure, containment, and management of all project documentation consistently for all the City of Sulphur departments. Effectively maintain efficient and complete records concerning any and all applicable grant programs.
- Prepare and coordinate the development of Project Worksheets (PW's) and versions as required with the City of Sulphur, Federal agencies and State agencies. This includes project development, formulation, and processing as required for small and large projects.
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- Work with the City of Sulphur departments and divisions to obtain all costs and necessary backup documentation to develop, revise and submit PW's and grant applications to the Federal agencies and State agencies to be approved, obligated and reimbursed.
- Review eligibility issues for the City of Sulphur and develop justifications for presentation to the Federal agencies, State agencies, and other agencies involved in providing disaster recovery funds.
- Ensure that all eligible damages have been identified, quantified, and presented to the City of Sulphur, Federal agencies, and State agencies. All eligible damages shall be incorporated into PW' s and grant applications with supporting documentation and proper cost estimates, using the FEMA Cost Estimating Factor (CEF) when necessary.
- Provide, or as needed retain the services of, professional experts to prepare damage assessments and technical reviews and oversight in the furtherance of program objectives.
- Review contracts, bid documentation, change orders, and other records to support the proper preparation and presentation of PW's, grant applications and eligible activities.
- Compile and summarize/justify costs for presentation to Federal agencies and State agencies for reimbursement of eligible costs, ensuring compliance with applicable regulations.
- Attend meetings with the City of Sulphur, Federal agencies, and State agencies to negotiate and represent PWs and the obligation of eligible amounts.
- Provide grant management advice to maximize reimbursements of disaster recovery expenses.
- Provide advice to the City of Sulphur personnel and Consultants; attend and participate in meetings as required.
- Prepare draft correspondence to local, Federal and State officials as necessary.
- Provide the City of Sulphur with any changes in policies, procedures, processes, or deadlines throughout the financial disaster recovery process.
- Prepare and conduct the close-out process, ensuring maximum recovery and retention of all eligible funding, satisfactory disposition of appeals and availability of supporting documents for future audits.
- Prepare for and respond to inspections and audits for on-going and completed projects.
- Prepare formal audit responses and justifications; attend associated meetings and hearings as needed.

- Keep track and monitor Consultant's own time and activities by project, or as allowable under the provisions of Federal guidance for direct administrative, indirect, and project management costs (reference Federal regulations and policy guidance for these topics).
- Provide written performance and status reports to the City of Sulphur on the status of the FEMA Public Assistance program and other grant programs as requested. The performance and status report should include, but is not limited to, the following:
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    - PW and grant application development and revisions
    - PW and grant application submissions and approvals
    - Obligated amounts versus eligible estimates
    - Issues with PW and grant application submissions and resolutions
    - Issues requiring assistance
    - Amounts awarded to the City of Sulphur per PW and grant application
    - Requests for Reimbursement submitted
    - Estimated and actual costs
    - Reimbursements received by the City of Sulphur
    - Insurance deductions
    - PW and grant application closeouts

PART II: PROGRAM MANAGEMENT

1. Overview

The overall objective is to assist the City of Sulphur in managing the implementation of design and construction phases to achieve the objectives of the City of Sulphur's Recovery Plan. The

Responsibilities and Deliverables for this effort include, but are not limited to the following:

A. Overall Program Management

- Responsibilities
    - Under the direction of the City of Sulphur 's Point of Contact, direct and coordinate the activities of the Project Management team to meet the objectives of the overall program management plan.
    - Manage, report, and monitor projects to ensure delivery within the established schedule and cost parameters and in compliance with quality assurance requirements; provide timely project communications; develop and implement appropriate recovery strategies when management objectives are at risk.
    - Determine the current status of all ongoing projects that exist prior to the start of this new contract and provide a plan for managing this transition.
    - Assist the City of Sulphur as required in project/ program financial or programmatic audits.
    - Assist the City of Sulphur in obtaining FEMA reimbursement as well as any other federal/state/local capital funding source, including State and Federal Tax Credits. Attend meetings with related State/Federal and other agencies as necessary and provide project information to them as required. Assist the City of Sulphur in liquidating FEMA/CDBG grants to cover program implementation cost.
    - Provide audit and funding compliance reviews on all projects as required based on the funding source.
    - Develop, implement and staff a Consultant awareness program that encourages and facilitates DBE participation in the City of Sulphur 's Recovery Program.
    - The Consultant shall work with the City of Sulphur and its representatives to provide claim and litigation support as denoted in this scope of work for any threatened and actual claims and/or litigation related to the program. The Consultant shall take its direction from the City of Sulphur and/or its representatives related to actions necessary to respond to any potential claim, litigation or information/document requested received by Consultant. For matters

which the Consultant is not included as a party to any such action, the Consultant shall be entitled to reimbursement from the City of Sulphur for reasonable costs and expenses incurred by Consultant for responding to and/or assisting the City of Sulphur with any potential claim, litigation or information/document requested received by Consultant. The parties shall work together in good faith to reach an agreement on the amount of such compensation on a case-by-case basis in accordance with the normal payment procedures outlined in the Contract.

B. Management of Design Phase

The Consultant shall be responsible for assisting the City of Sulphur 's Public Works Department in the procuring and directly manage professional design firms, emphasizing within budget and on time performance. Additionally, the Consultant shall ensure compliance with design guidelines and contract terms as required to execute the delivery of the projects in the City of Sulphur Recovery Program. The services required include, but are not limited to the following:

- Responsibilities
    - Responsible for the preparation of a professional design services procurement plan and schedule to meet the requirements of the City of Sulphur's Recovery Program, developing RFP's for architecture and/or engineering services and participating in the negotiations of design contracts as requested by the City of Sulphur.
    - Assist the City of Sulphur and coordinate with design professionals in properly incorporating design standards and master specifications in each design project.
    - Recommend and implement project delivery strategies and schedules in order to increase construction market competition and realize efficiencies.
    - Develop and maintain a document management system for construction documents and record drawings.
    - Assist in the evaluation and selection of professional design Consultants.
    - Manage professional design Consultants' contracts and implement design to budget requirements in all RFP's and contracts for design services. Monitor and report on compliance with design to budget requirements.
    - Validate the Architect/Engineer (A/E) cost estimate and provide value engineering and constructability reviews throughout the design of projects to ensure compliance with project budget and schedule.
    - Develop, implement and staff a Consultant awareness program that encourages and facilitates DBE participation in the City of Sulphur's Recovery Program.
    - Provide document quality assurance/quality control reviews.
    - Evaluate and review design errors and omissions, rendering professional opinions to the City of Sulphur and assisting the City of Sulphur in recovery efforts if necessary.

C. Management of Construction Phase

The Consultant shall be responsible for assisting the City of Sulphur's Departments in the coordination of the construction process of all the City of Sulphur's Recovery projects. Services required for the construction program include, but are not limited to the following:

- Responsibilities
    - Support and assist in the preparation of the construction program procurement plan and schedule for all recovery projects.
    - Integrate local and DBE business participation outreach into procurement plans.
    - Administer the competitive bidding process for the procurement of construction, including conducting pre-bid conferences.
    - Schedule and conduct pre-construction meetings.
    - Provide project construction management services to include; conduct regular jobsite meetings, oversee quality assurance testing and inspection programs, monitor Consultant and sub Consultant work for deficiencies, maintain copy of all contract documents, change orders, and other documentation, oversee Consultant and sub Consultant safety program. Expedite communication, processing and documentation all Consultants' submittals including RFI's, payments requests and change orders.
    - Monitor and manage the process of compliance with all applicable regulatory requirements, permitting and necessary approvals.
    - Process and track payment requests for approval.
    - Report potential budget and schedule variances and prepare recovery plans.
    - Administer post construction close-out, 3rd-party commissioning, start-up, and transition to operation including ensuring receipt of all operations and maintenance manuals and as-built drawings.
    - Assist in training the City of Sulphur Operations and Maintenance personnel on all completed projects.
    - Expedite final project close out and approval for final Consultants' payments and assist in all post construction dispute resolution as necessary.
    - Assist in coordinating furnishings, fixtures and equipment acquisitions and installation as requested by the City of Sulphur. The individual(s) responsible for this activity must be cognizant of Louisiana state procurement regulations.
    - Responsible for assisting the City of Sulphur in the establishing a preventive maintenance program for each completed project.
    - Manage the one-year post construction warranty period on behalf of the City of Sulphur, to include Architect and General Consultant.
    - Provide construction project cost and schedule reporting to the City of Sulphur on a monthly basis.
    - Develop and update as necessary a construction inspection manual to provide guidelines for field inspection services consistent with national industry standards.

D. Field Inspection Services

The Consultant shall be responsible for providing field inspection services as necessary to ensure compliance to schedule, budget and quality contractual requirements including but not limited to the following:

- Responsibilities
  - Ensure that all contract drawings, terms, and conditions are adhered to during the construction phase.
  - Process Consultant's payments and verify accuracy of paid quantities.
  - Monitor the Consultant's adherence to the safety plan and ensure that the Consultants are providing adequate site security.
  - Document Non-Conformance Reports (NCR) in case of non-conformance and monitor corrective actions.
  - Verify that all addendums have been incorporated into the final plan set prior to start of construction.
  - Ensure that work by other City of Sulphur departments is coordinated with the on-site construction Consultants.
  - Manage and facilitate the implementation of all commissioning processes and guidelines through-out the project duration.
  - Coordinate the building turn over process with the owner and Consultants.

PART III: TECHNICAL REQUIREMENTS

- Successful proposer shall include one or more project team members who shall be a Louisiana license general Consultant and a Project Management Professional certified from the Project Management Institute or other recognized Project Management professional societies.
- Successful proposer shall include one or more team members with a minimum of 5 years' experience, knowledge of and application of federal laws, regulations and policies that govern the FEMA Public Assistance and Hazard Mitigation programs. Knowledge and experience with HUD Community Development Block Grants, and application of federal laws, regulation and policies is also required.
- Successful proposer shall include one or more project team members with demonstrated experience effectively negotiating both the National Environmental Preservation Act (NEPA) compliance and the National Historic Preservation Act (NHPA) Section 106 requirements.
- Successful proposer shall include one or more project team members with demonstrated experience of public works projects.
- Successful proposer shall demonstrate extensive knowledge and experience with alternative project delivery methods, including (but not limited to) Construction Manager at Risk.
- Successful proposers shall demonstrate experience with proactive dispute resolutions and claims avoidance.
- Successful proposer shall demonstrate experience with outreach and implementing Disadvantage Business Enterprise (DBE) programs.

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AMENDING THE MASTER SERVICES AGREEMENT WITH ROSTAN SOLUTIONS, LLC, FOR TASK ORDER #3, IN REFERENCE TO CONSENSUS BASED CODES STANDARDS AND SPECIFICATION.

BE IT ORDAINED by the City Council of the City of Sulphur, the governing authority thereof, that they do hereby amend the Master Services Agreement with Rostan Solutions, LLC, for Task Order #3, in reference to Consensus Based Codes Standards and Specification.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

FORM TASK ORDER

TASK ORDER NO. 03 AMENDMENT NO. 07 Date: 9/30/2026

1. This Task Order (this "***Task Order***") is issued pursuant to and is governed by the Professional Services Master Agreement, dated as of November 9, 2021 (the "***Agreement***"), by and between The City of Sulphur (the "***CITY***"), and Rostan Solutions, LLC. (the "***CONTRACTOR***"). The terms and conditions set forth in the Agreement are hereby incorporated herein by reference and shall be applicable hereto.

2. **Scope of Services:**

Exhibit A Attached – CONSENSUS BASED CODES STANDARDS AND SPECIFICATION

3. Schedule:

Services shall commence on February 24, 2022, and shall be satisfactorily completed on or before November 8, 2027.

4. Compensation:

The CONTRACTOR shall invoice the CITY on a monthly basis for the costs and expenses incurred in performing the Services in accordance with the rates set forth in Schedule C of the Agreement, provided that the aggregate amount payable by the CITY for Services under this Task Order No. 03 Amendment No. 07 with an amount that shall not exceed $300,000.00. The not to exceed budget amount of this Task Order No. 03 Amendment No. 07 may only be amended by written agreement between CITY and CONTRACTOR. This not-to-exceed budget amount is made effective retroactive to the date of execution of the original Task Order.

IN WITNESS WHEREOF, the CITY and the CONTRACTOR have caused this Task Order to be executed by their duly authorized representatives as of the date first above written.

CITY:
City of Sulphur, Louisiana

By: _____
Name: Jacob Stutes
Title: Mayor

CONTRACTOR:
Rostan Solutions, LLC

By: _____
Name: Kyle Jones
Title: Vice President

Exhibit A

Scope of Services

CONSENSUS BASED CODES STANDARDS & SPESIFICATION SERVICES:

The scope of services includes the development of Consensus Based Codes and Standards (CBCS) worksheet for Hurricane Laura damaged elements along with costs for the repair/replacement of the identified elements. This worksheet will include:

- Specific damage inventory line-item numbers and associated elements or components affected with a description of how each code, specification and standard applies.
- Clear description of the work related to the code, specification and standard with accompanying design drawings, component lists or other similar documentation.
- Dimensions and quantities for all elements/components.
- Description of the direct relationship between disaster-related damage and any upgrades to undamaged elements.

Consensus Based Codes and Standards worksheets will be provided for facilities throughout the City of Sulphur on an as needed basis after the facility is approved by the City for this service.

Following submittal of the CBCS to FEMA, Rostan will address any Requests for Information (RFI) from FEMA.

ORDINANCE NO. _____, M-C SERIES

ORDINANCE AMENDING THE MASTER SERVICES AGREEMENT WITH ROSTAN SOLUTIONS, LLC, FOR TASK ORDER #4, IN REFERENCE TO INSURANCE CLAIM COST RECOVERY SERVICES.

BE IT ORDAINED by the City Council of the City of Sulphur, the governing authority thereof, that they do hereby amend the Master Services Agreement with Rostan Solutions, LLC, for Task Order #4, in reference to Insurance Claim Cost Recovery Services.

BE IT FURTHER ORDAINED that this Ordinance shall become effective upon the Mayor's signature.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk

FORM TASK ORDER

TASK ORDER NO. 04 AMENDMENT NO. 05 Date: 9/30/2026

1. This Task Order (this "***Task Order***") is issued pursuant to and is governed by the Professional Services Master Agreement, dated as of November 9, 2021 (the "***Agreement***"), by and between The City of Sulphur (the "***CITY***"), and Rostan Solutions, LLC. (the "***CONTRACTOR***"). The terms and conditions set forth in the Agreement are hereby incorporated herein by reference and shall be applicable hereto.

2. **Scope of Services:**

Exhibit A Attached – INSURANCE CLAIM COST RECOVERY SERVICES

3. **Schedule:**

Services shall commence on August 01, 2022, and shall be satisfactorily completed on or before November 8, 2027.

4. **Compensation:**

The CONTRACTOR shall invoice the CITY on a monthly basis for the costs and expenses incurred in performing the Services in accordance with the rates set forth in Schedule C of the Agreement, provided that the aggregate amount payable by the CITY for Services under this Task Order No. 04 Amendment No. 05 with an amount that shall not exceed $250,000.00. The not to exceed budget amount of this Task Order No. 04 Amendment No. 05 may only be amended by written agreement between CITY and CONTRACTOR.

IN WITNESS WHEREOF, the CITY and the CONTRACTOR have caused this Task Order to be executed by their duly authorized representatives as of the date first above written.

CITY:
City of Sulphur, Louisiana

By: _____
Name: Jacob Stutes
Title: Mayor

CONTRACTOR:
Rostan Solutions, LLC

By: _____
Name: Kyle Jones
Title: Vice President

Exhibit A

Scope of Services

INSURANCE CLAIM COST RECOVERY SERVICES:

- The development of rebuttals for Insurance Claim Cost Recovery from the City's Carrier for Hurricane Laura damages.
- Draft correspondence to Insurance Carrier(s) and Adjuster as necessary.
- Prepare documentation and responses to Insurance Carrier(s) and/or Adjuster Requests for Information (RFI).
- Facilitate meetings with applicable entities as needed.
- Perform crosswalk analysis of Insurance Adjuster Report and/or covered items in the SOV relative to actual losses/damages.
- Identify and present clear description of the Hurricane damages & costs previously not included on the Carriers Statement of Loss, with accompanying photos, component lists or other similar documentation.
- Description of the direct relationship between disaster-related damages and the schedule of values for inclusion in the Statement of Loss/ increased repair costs that need to included in the insurance settlement to the City of Sulphur.

RESOLUTION NO. , M-C SERIES

RESOLUTION ACCEPTING THE RECOMMENDATION OF MAYOR STUTES FOR THE APPOINTMENT OF BILLY LOFTIN AS ASSISTANT CITY ATTORNEY/CITY PROSECUTOR FOR THE CITY OF SULPHUR AND AUTHORIZING THE EXECUTION OF CONTRACT.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby accept the recommendation of Mayor Stutes for the appointment of Billy Loftin as Assistant City Attorney/City Prosecutor for the City of Sulphur and authorizing the execution of contract.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

STATE OF LOUISIANA

PARISH OF CALCASIEU

ASSISTANT CITY ATTORNEY/CITY PROSECUTOR CONTRACT

WHEREAS, the Mayor of the City of Sulphur has appointed and the City Council has approved the appointment of Billy E. Loftin, Jr. as Assistant City Attorney/City Prosecutor for the City of Sulphur; and

WHEREAS, Billy E. Loftin, Jr. has accepted his appointment as Assistant City Attorney/City Prosecutor for the City of Sulphur; and

WHEREAS, both the City of Sulphur and Billy E. Loftin, Jr. desire to memorialize the agreements between them regarding the appointment of Billy E. Loftin, Jr. as Assistant City Attorney/City Prosecutor for the City of Sulphur; and

WHEREAS, the parties hereto desire to provide terms which supplement the provisions of the Home Rule Charter of the City of Sulphur (sometimes hereinafter referred to as the Charter).

NOW, THEREFORE, for and in consideration of the mutual covenants and agreements hereinafter set forth, Billy E. Loftin, Jr. (hereinafter sometimes referred to as Assistant City Attorney/City Prosecutor) and the City of Sulphur (hereinafter sometimes referred to as the City) contract and agree as follows.

I.

TERM OF THIS AGREEMENT

The Mayor of the City of Sulphur may, with or without cause, and at his discretion, may dismiss the Assistant City Attorney/City Prosecutor at any time with Council approval.

II.

COMPENSATION

The City Prosecutor shall receive compensation and benefits in the same amount as currently being received or as amended herein, including a salary in the sum of Sixty-Six Thousand Nine Hundred Twenty-Seven and 44/100 Dollars ($66,927.44) per year. The portion of this salary in the amount of Six Thousand Nine Hundred Twenty-Seven and 44/100 Dollars ($6,927.44) represents previous longevity and cost of living raises previously earned over the duration of his employment which are being added to the base salary. The City Prosecutor shall regularly work twenty-four (24) hours per two-week pay period on City Prosecutor business. The City Prosecutor shall be a part-time employee of the City. Upon inclusion in the duly adopted budget ordinance approved by the Council, the City Attorney's hourly rate shall be subject to longevity and cost of living raises in the same amount or percentage as provided to City employees as a group. He shall be eligible for all leave and benefits in the same manner and amount as the City's regular full-time employees, including health insurance, and with any leave earned made proportionate to the regularly scheduled hours worked. In addition, the City shall provide an office, supplies, furniture and equipment, and clerical and other office staff which the City deems reasonably necessary for use by the City Prosecutor in the performance of his duties as set forth herein and in the Charter. The City shall provide the City Prosecutor a paralegal/investigator and any other necessary staff to be supervised by him and a Westlaw password for legal research (or reimbursement for same), or shall make alternative arrangements in

writing for the provision of his access to legal research services. The City Prosecutor agrees to reimburse the City for any additional billed charges on the Westlaw account (in excess of the normal monthly charge) unless the additional charge has been approved by the City Attorney as being required and necessary for City business. The City shall provide a reasonable reimbursement for expenses of attendance at educational seminars for the Continuing Legal Education of the City Prosecutor as well as membership to any Prosecutor Association. If the City Prosecutor's time on City Prosecutor business exceeds twenty-four (24) hours per bi-weekly pay period, then any additional hours worked which are required based on the City Prosecutor's duties set forth herein shall be banked as compensatory time. Any compensatory time shall be logged by the City Prosecutor in a trackable fashion and shall be reported to the City Finance Director. Any banked compensatory time shall be payable only upon termination.

III.

QUALIFICATIONS OF THE ASSISTANT CITY ATTORNEY/CITY PROSECUTOR

The Assistant City Attorney/City Prosecutor shall be an attorney licensed to practice law in the courts of Louisiana and shall have at least three years continuous practice of law in the State of Louisiana.

IV.

DUTIES AND RESPONSIBILITIES

The City Prosecutor shall:

1. Represent the City in the prosecution of City charges brought in Sulphur City Court and enforce the policy decisions of the City with respect to the work of the City Prosecutor. The Assistant City

Attorney/City Prosecutor shall exercise his professional judgment in the prosecution and disposition of charges in accordance with rules of professional responsibility applicable to prosecutors, such as district attorneys, in the State of Louisiana;

2. Accept, reject, reduce, and dismiss charges on behalf of the City after review of offense reports, charges, or tickets, and the facts and law applicable to same; and sign Bills of Information for charges to be prosecuted;

3. Prepare cases for trial, including such contact with witnesses, victims and defendants as he may deem necessary; attempt to resolve cases prior to trial; notify witnesses of trial dates and status; and try cases in Sulphur City Court;

4. Be available to attorneys, victims, defendants, and City officers regarding offenses, charges, and investigations;

5. Be available to the public to provide information and explanations for charges filed, rejected, reduced, or dismissed;

6. Provide an accounting for his office and its personnel when requested;

7. Be at the prosecutor's office or courthouse during those times when the court schedule requires his presence (a minimum of five (5) hours every other week);

8. Establish, subject to instructions from the Mayor or the Council, office hours or be available for scheduled visits during which members of the public, victims, witnesses, defendants, attorneys, and City officers may meet with him regarding matters within the responsibility of the Assistant City Attorney/City Prosecutor.

9. Supervise his staff's work at the City Prosecutor's office;

10. Be responsible for appeals and writs in cases involving the work of the City Prosecutor;

11. Assist City staff regarding bond forfeitures;

12. Recommend amendments to City criminal ordinances;

13. Provide advice to the City regarding City criminal matters, ordinances, and procedures;

14. Perform such other functions as may be incumbent upon the office

of City Prosecutor; and

15. Perform such other tasks as may be directed by the City Attorney related to the City Prosecutor's functions.

V.

REPORTING RESPONSIBILITIES

The Assistant City Attorney/City Prosecutor shall report to the City Attorney with respect to the performance of his duties as Assistant City Attorney/City Prosecutor.

VI.

STATUS OF ASSISTANT CITY ATTORNEY/CITY PROSECUTOR AND COMPENSATION AS ASSISTANT CITY ATTORNEY

The City Prosecutor shall be deemed a part-time employee of the City of Sulphur for purposes of payroll withholdings and deductions, accrual of benefits, retirement, leaves of absence, insurance, or accrual of any other employee benefits to which regular full-time employees of the City of Sulphur may be entitled. The eligibility for benefits shall commence immediately upon the effective date of this agreement without interruption in benefits for his current role as City Attorney. The Mayor shall, upon the approval of the Council of the relevant amount in the budget, include the City Prosecutor in salary increases provided to City employees as a group. The compensation provided for in Section II of this agreement shall serve as the compensation for all regularly assigned duties (listed in Section IV, items 1-15). For any work performed outside of the role as City Prosecutor, including but not limited to, attendance at Land Use Commission/Board of Zoning Adjustment meetings, the Assistant City Attorney

shall receive compensation in the amount of $250.00 per hour billed and payable to his law firm for his work and the work of attorneys at his law firm (this provision shall not apply to any work as City Prosecutor as provided for hereinabove). Additionally, the Assistant City Attorney may bill for paralegal work at $125.00 per hour billed and payable in the same manner as the attorney billing. The work performed as Assistant City Attorney shall be authorized by the Mayor or any City Council person.

VII.

EFFECTIVE DATE

The agreement is made effective the _____ day of _____, 2026.

THUS DONE AND SIGNED at Sulphur, Louisiana, on this _____ day of _____, 2026.

_____	_____
BILLY E. LOFTIN, JR. ASSISTANT CITY ATTORNEY/CITY PROSECUTOR	JACOB STUTES MAYOR, CITY OF SULPHUR

RESOLUTION NO. , M-C SERIES

RESOLUTION ACCEPTING THE RECOMMENDATION OF MAYOR STUTES FOR THE APPOINTMENT OF KENNETH "MIKE" MICHAEL WRIGHT AS CITY ATTORNEY FOR THE CITY OF SULPHUR AND AUTHORIZING THE EXECUTION OF CONTRACT.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby accept the recommendation of Mayor Stutes for the appointment of Kenneth "Mike" Michael Wright as City Attorney for the City of Sulphur and authorizing the execution of contract.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

STATE OF LOUISIANA

PARISH OF CALCASIEU

CITY ATTORNEY CONTRACT

WHEREAS, the Mayor of the City of Sulphur has appointed and the City Council has approved the appointment of Kenneth Michael Wright and his law firm, Wright Law, LLC, a Professional Legal Limited Liability Company, as City Attorney for the City of Sulphur; and

WHEREAS, Kenneth Michael Wright, doing business as Wright Law, LLC, has accepted his appointment as City Attorney for the City of Sulphur; and

WHEREAS, both the City of Sulphur and Kenneth Michael Wright desire to memorialize the agreements between them regarding the appointment of Kenneth Michael Wright as City Attorney for the City of Sulphur; and

WHEREAS, the parties hereto desire to provide terms which supplement the provisions of the Home Rule Charter of the City of Sulphur (sometimes hereinafter referred to as the "Charter").

NOW, THEREFORE, for and in consideration of the mutual covenants and agreements hereinafter set forth, Kenneth Michael Wright (hereinafter sometimes referred to as "City Attorney") and the City of Sulphur (hereinafter sometimes referred to as the "City") contract and agree as follows.

I.

TERM OF THIS AGREEMENT

The term of this agreement shall be concurrent with that of the Mayor of the

City of Sulphur. The Mayor of the City of Sulphur may, with or without cause, and at his discretion, dismiss the City Attorney during the term of this agreement, subject to approval of said dismissal by the City Council of the City of Sulphur (sometimes hereinafter referred to as the "Council").

II.

COMPENSATION

The City Attorney shall regularly work twenty-four (24) hours per two-week pay period on city business. The annual salary of the City Attorney shall be Sixty Thousand and 00/100 Dollars ($60,000.00). The City Attorney of the City of Sulphur shall be a part-time contract employee of the City and shall be paid as to 1099 employee with Wright Law, LLC being the payee. Upon inclusion in the duly adopted budget ordinance approved by the Council, the City Attorney's annual salary shall be subject to longevity and cost of living raises in the same amount as provided to City employees as a group. He shall be eligible for all leave and benefits in the same manner and amount as the City's regular full-time employees, including health insurance at his option, and with any leave earned proportionate to the regularly scheduled hours worked.

III.

HOURS

If the City Attorney's time on city business reaches twenty-four (24) hours per bi-weekly pay period, then any additional hours worked upon direction of the Mayor, any City Council Member or which are required pursuant the duties and responsibilities set forth herein may be billed hourly as set forth

herein. For any work performed outside of the role as City Attorney, he shall receive compensation in the amount of $250.00 per hour billed and payable to his law firm for his work and the work of attorneys at his law firm (this provision shall not apply to any work as City Attorney as provided for hereinabove). Additionally, the City Attorney may bill for paralegal work at $125.00 per hour billed and payable in the same manner as the attorney billing. Work, outside of his duties as City Attorney, shall be authorized by the Mayor or any City Council person.

IV.

OFFICE AND EXPENSES

The City shall provide office supplies, such as City stationary, which the City deems reasonably necessary for use by the City Attorney in the performance of his duties as set forth herein and in the Charter. The City shall provide an office for the City Attorney, including any computer or other technological equipment reasonably necessary for use by the City Attorney in the performance of his duties. The City shall also provide clerical assistance to the City Attorney with respect to the preparation of City ordinances and resolutions, as well as other City documents. The membership dues related to the City Attorney's work, including the dues of the City Attorney in the Louisiana City Attorney's Association, shall be paid by the City. The City shall provide a reasonable reimbursement for the expenses of attendance by the City Attorney at the educational seminars for the Continuing Legal Education of the City Attorney.

V.

QUALIFICATIONS OF THE CITY ATTORNEY

The City Attorney shall be an attorney licensed to practice law in the courts of Louisiana and shall have at least three years continuous practice of law in the State of Louisiana, and shall have and maintain a law practice in the City of Sulphur.

VI.

DUTIES AND RESPONSIBILITIES

The City Attorney is the head of the Legal Department of the City and shall serve as chief legal advisor to the Mayor, City Council, and all departments, offices, and agencies of the City. The City Attorney shall represent the City in all legal proceedings which involve the City and shall perform other duties prescribed by the Charter and/or by ordinances or resolutions duly adopted by the Council. The City Attorney may assign the defense of the City to outside counsel on insured matters. The duties of the City Attorney shall include, but are not limited to, supervision of all attorneys in the Legal Department of the City and all Assistant City Attorneys and special counsel, attendance at all City Council meetings and at such other meetings, of committees appointed by the City Council, his duties as set forth in the Charter, in this agreement, or in resolutions or ordinances of the Council. The City Attorney shall prepare and/or review and provide advice to the Mayor, the Council members, the City employees regarding the City's contracts, ordinances, resolutions, and the Home Rule Charter of the City of Sulphur, the expenditure of public funds, personnel and employment matters, state and federal laws and regulations as they pertain to the City, acquisition and disposition of public property, shall represent the City in all

claims and litigation unless otherwise provided by insurance agreements, shall institute and conduct such legal proceedings with the consent of the Mayor that the City Attorney deems necessary to protect the interests of the City, subject to the right of the City Council to require dismissal of said proceedings or to prohibit the institution thereof. It shall be the duty of the City Attorney to provide legal advice to and to represent not only the City, but also boards and commissions created by the City, including but not limited to the City's civil service and industrial development boards created by the City.

VII.

REPORTING RESPONSIBILITIES

The City Attorney shall report to the Mayor and to the Council with respect to the performance of his duties as City Attorney.

VIII.

EFFECTIVE DATE

This agreement it is adopted and is made effective the ____ day of _____, 2026.

THUS DONE AND SIGNED at Sulphur, Louisiana on this _____ day of _____, 2026.

_____ CITY ATTORNEY
KENNETH MICHAEL WRIGHT

_____ JACOB STUTES, MAYOR

RESOLUTION NO. , M-C SERIES

Resolution accepting the recommendation of Mayor Stutes for the appointment of annual audit firm Langley Williams and Co. and authorizing the execution of contract.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby accept the recommendation of Mayor Stutes for the appointment of annual audit firm Langley Williams and Co. and authorizing the execution of contract.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

Langley, Williams & Company, L.L.C.
CERTIFIED PUBLIC ACCOUNTANTS

NICHOLAS J. LANGLEY
PHILLIP D. ABSHIRE, III
SARAH CLARK WERNER
ALEXIS HABETZ O'NEAL
JESSICA LOTT-HANSEN

LESTER LANGLEY, JR. - RETIRED
DANNY L. WILLIAMS - RETIRED
PHILLIP D. ABSHIRE, JR. - RETIRED
DAPHNE BORDELON BERKEN - DECEASED

August 20, 2026

Honorable Mayor and City Court
Sulphur, Louisiana

Dear Mr. Jacob Stutes,

We want to take this opportunity to welcome **The City of Sulphur** as a new LANGLEY, WILLIAMS, & COMPANY, L.L.C. client. Thank you for choosing us as your independent auditors. We look forward to providing you with the high-quality services you expect from your professional service providers.

Our commitment to delivering superior service means that we strive to demonstrate initiative, anticipate problems, propose solutions, and communicate effectively with you and other members of management throughout the year. In addition, during our audit we will be alert for opportunities to bring insightful and constructive suggestions for improving management information, operating and accounting procedures, and controls.

Attached to this letter is an agreement describing our services. If you have questions about any of the matters discussed in that agreement, please give us a call. If you find the arrangements acceptable, please acknowledge your agreement to the understanding by signing this letter via the RightSignature link that we provide. Alternatively, if you are receiving hard copies of this engagement letter and RightSignature will not be used, please sign and return to us one of the two enclosed copies. The other copy is for your files.

Again, it is a pleasure for us to welcome you as a valued new client. We look forward to many years of pleasant association with you and **The City of Sulphur**.

Very truly yours,

Jessica Lott-Hansen

Jessica L. Hansen, CPA
LANGLEY, WILLIAMS, & COMPANY, L.L.C.

P.O. BOX 4690, LAKE CHARLES, LA 70606-4690
205 W. COLLEGE STREET, LAKE CHARLES, LA 70605-1625
PH (337) 477-2827 • FAX (337) 478-8418

P.O. BOX 918, JENNINGS, LA 70546-0918
106 W. NEZPIQUE ST, JENNINGS, LA 70546
PH (337) 477-2827 • FAX (337) 476-2708

WWW.LWCPAFIRM.COM

Langley, Williams & Company, L.L.C.
CERTIFIED PUBLIC ACCOUNTANTS

NICHOLAS J. LANGLEY
PHILLIP D. ABSHIRE, III
SARAH CLARK WERNER
ALEXIS HABETZ O'NEAL
JESSICA LOTT-HANSEN

LESTER LANGLEY, JR. - RETIRED
DANNY L. WILLIAMS - RETIRED
PHILLIP D. ABSHIRE, JR. - RETIRED
DAPHNE BORDELON BERKEN - DECEASED

August 20, 2026

Honorable Mayor and City Court
Sulphur, Louisiana

Dear Mr. Jacob Stutes,

Agreement to Provide Services

This agreement to provide services (the "Agreement") is intended to describe the nature and scope of our services.

Objective and Scope of the Audit

As agreed, LANGLEY, WILLIAMS, & COMPANY, L.L.C. ("LWC" or "we") will audit the financial statements of the governmental activities, each major fund and the aggregate remaining fund information, including the related notes to the financial statements, which collectively comprise the basic financial statements of **The City of Sulphur** (the "Government" or "you") as of and for the year ending **June 30, 2026**. The objectives of our audit are to obtain reasonable assurance about whether the financial statements as a whole are free from material misstatement, whether due to fraud or error, to issue an auditor's report that includes our opinion, and to report on the fairness of the supplementary information referred to below when considered in relation to the basic financial statements as a whole. Reasonable assurance is a high level of assurance but is not absolute assurance and therefore is not a guarantee that an audit conducted in accordance with auditing standards generally accepted in the United States of America ("GAAS") will always detect a material misstatement when it exists. Misstatements can arise from fraud or error and are considered material if there is a substantial likelihood that, individually or in the aggregate, they would influence the judgment made by a reasonable user based on the financial statements.

The objectives of our audit also include reporting on the Government's:

- Internal control related to the financial statements and compliance with federal statutes, regulations, and the terms and conditions of the federal awards, noncompliance with which could have a material effect on the financial statements in accordance with *Government Auditing Standards*.

- Internal control related to major programs and issuance of an opinion on whether the Government complied with federal statutes, regulations, and the terms and conditions of the federal awards that could have a direct and material effect on each major program in accordance with the Uniform Guidance.

Accounting standards generally accepted in the United States of America provide for certain required supplementary information (RSI), such as management's discussion and analysis (MD&A), to supplement the basic financial statements. Such information, although not a part of the basic financial statements, is required by the Governmental Accounting Standards Board, which considers it to be an essential part of financial reporting for placing the basic financial statements in an appropriate context. As part of our engagement, we will apply certain limited procedures to the Government's RSI in accordance with GAAS. These limited procedures will consist of inquiries of management regarding the methods of preparing the information and comparing the information for consistency with management's responses to our inquiries, the basic financial statements, and other knowledge we obtain during our audit of the basic financial statements. We will not express an opinion or provide any assurance on the information because the limited procedures do not provide us with sufficient evidence to express an opinion or provide any assurance. The following RSI is required and will be subjected to certain limited procedures, but will not be audited:

- Budgetary Comparison Schedule – General Fund
- Budgetary Comparison Schedule – Any other fund that is considered major
- Schedule of Changed in total OPEB Liability and Related Ratios
- Schedule of Employer's Proportionate Share of Net Pension Liability
- Schedule of Employer Contributions
- Notes to Required Supplementary Information

Also, the supplementary information accompanying the basic financial statements, as listed below, will be subjected to the auditing procedures applied in our audit of the basic financial statements and certain additional procedures, including comparing and reconciling such information directly to the underlying accounting and other records used to prepare the basic financial statements or to the basic financial statements themselves, and other additional procedures in accordance with GAAS, and our auditor's report will provide an opinion on it in relation to the basic financial statements as a whole.

- Schedule of Compensation, Benefits, and Other Payments to Agency Head
- Schedule of Expenditures of Federal Awards
- Notes to the Schedule of Expenditures of Federal Awards

Responsibilities of LWC

We will conduct our audit in accordance with GAAS. As part of an audit in accordance with GAAS, we exercise professional judgment and maintain professional skepticism throughout the audit. We also:

- Identify and assess the risks of material misstatement of the financial statements, whether due to fraud or error, design and perform audit procedures responsive to those risks, and obtain audit evidence that is sufficient and appropriate to provide a reasonable basis for our opinion. The risk of not detecting a material misstatement resulting from fraud is higher than for one resulting from error, as fraud may involve collusion, forgery, intentional omissions, misrepresentations, or the override of internal control.

- Obtain an understanding of internal control relevant to the audit in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of the Government's internal control. Accordingly, we will express no such opinion. An audit is not designed to provide assurance on internal control or to identify significant deficiencies or material weaknesses in internal control. However, we will communicate to you and those charged with governance in writing concerning any significant deficiencies or material weaknesses in internal control relevant to the audit of the financial statements that we identify during our audit.

- Evaluate the appropriateness of accounting policies used and the reasonableness of significant accounting estimates made by management, as well as evaluate the overall presentation of the financial statements, including the disclosures, and whether the financial statements represent the underlying transactions and events in a manner that achieves fair presentation.

- Conclude, based on the audit evidence obtained, whether there are conditions or events, considered in the aggregate, that raise substantial doubt about the Government's ability to continue as a going concern for a reasonable period of time.

Because of the inherent limitations of an audit, together with the inherent limitations of internal control, an unavoidable risk that some material misstatements may not be detected exists, even though the audit is properly planned and performed in accordance with GAAS.

Our audit will also be conducted in accordance with the standards for financial audits contained in *Government Auditing Standards*, issued by the Comptroller General of the United States and Title 2 U.S. *Code of Federal Regulations* (CFR) Part 200, *Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards* (Uniform Guidance or UG), and will include tests of accounting records, a determination of major program(s) in accordance with the Uniform Guidance, and other procedures we consider necessary to enable us to express such an opinion and to render the required reports. The Uniform Guidance requires that we also plan and perform the audit to obtain reasonable assurance about whether the auditee has complied with applicable federal statutes, regulations, and the terms and conditions of the federal awards that may have a direct and material effect on each of its major programs. Our procedures will consist of the applicable procedures described in the Office of Management and Budget's (OMB) Compliance Supplement for the types of compliance requirements that could have a direct and material effect on each of the Government's major programs. As required by the Uniform Guidance, our audit will include tests of transactions related to major federal award programs for compliance with applicable federal statutes, regulations, and the terms and conditions of federal awards. The purpose of these procedures will be to express an opinion on the Government's compliance with requirements applicable to major programs in our report on compliance issued pursuant to the Uniform Guidance.

In making our risk assessments, we will gain an understanding of your system of internal control relevant to the preparation and fair presentation of the The City of Sulphur's financial statements in order to design audit procedures that are appropriate in the circumstances. However, our audit procedures are not designed for the purpose of expressing an opinion on the effectiveness of your system of internal control, and accordingly, we will express no such opinion. We will communicate in writing to the appropriate

level of management and those charged with governance matters concerning any significant deficiencies or material weaknesses in the system of internal control relevant to your financial statements that we identify during the audit.

As part of obtaining reasonable assurance about whether the financial statements are free of material misstatement, we will also perform tests of The City of Sulphur's compliance with applicable laws and regulations and the provisions of contracts and agreements. However, the objective of our audit will not be to provide an opinion on overall compliance and we will not express such an opinion. Management maintains the responsibility for identifying and ensuring that The City of Sulphur complies with applicable laws, regulations, contracts, and other agreements.

Our work will be based primarily upon selected tests of evidence supporting the amounts and disclosures in the financial statements and, therefore, will not include a detailed check of all of the Government's transactions for the period. Also, an audit is not designed to detect errors or fraud or violations of federal statutes and regulations that are immaterial to the financial statements or major programs. However, we will inform you of any material errors or fraud that come to our attention. We will also inform you of possible illegal acts that come to our attention unless they are clearly inconsequential. We will also include such matters in the reports required for an audit performed under the Uniform Guidance. In addition, during the course of our audit, financial statement misstatements relating to accounts or disclosures may be identified, either through our audit procedures or through communication by your employees to us, and we will bring these misstatements to your attention as proposed adjustments. At the conclusion of our audit we will communicate to those charged with governance (as defined below) all uncorrected misstatements. Because the determination of abuse is subjective, *Government Auditing Standards* do not expect auditors to provide reasonable assurance of detecting abuse.

GAAS requires auditors to communicate significant risks identified during audit planning to those charged with governance of the client. We have identified the following significant risks of material misstatement:

- Management override of controls
- Cash receipts
- Cash disbursements

Neither our audit nor our identification and communication of the significant risks detailed above relieve you of any of your management or governance responsibilities.

Also, based on the audit evidence we obtain, we will conclude whether there are conditions or events, considered in the aggregate, that raise substantial doubt about the entity's ability to continue as a going concern for a reasonable period of time.

As this engagement is not designed to be a fraud audit, management understands and accepts the inherent limitations of the audit services described in this agreement.

Our responsibility as auditors is, of course, limited to the period covered by our audit and does not extend to any other periods.

The term "those charged with governance" is defined as the person(s) with responsibility for overseeing the strategic direction of the Government and obligations related to the accountability of the Government, including overseeing the financial reporting process. For the Government, we agree that Mayor Jacob Stutes, and the members of the City of Sulphur City Council meets that definition.

We will perform test of controls, as required by the Uniform Guidance, to evaluate the effectiveness of the design and operation of controls that we consider relevant to preventing or detecting material noncompliance with each direct and material compliance requirement applicable to each of the Government's major federal award programs. However, our tests will be less in scope than would be necessary to render an opinion on these controls and, accordingly, no opinion will be expressed in our report on internal control issued pursuant to the Uniform Guidance.

We are also responsible for communicating with those charged with governance what our responsibilities are under GAAS, an overview of the planned scope and timing of the audit, and significant findings from the audit.

Responsibilities of Management and Identification of the Applicable Financial Reporting Framework

Our audit will be conducted on the basis that you and those charged with governance acknowledge and understand that you and those charged with governance have responsibility (1) for the preparation and fair presentation of the financial statements in accordance with accounting principles generally accepted in the United States of America; (2) for the design, implementation, and maintenance of internal control relevant to the preparation and fair presentation of financial statements and relevant to federal award programs that are free from material misstatement, whether due to error or fraud; (3) for identifying and ensuring that the Government complies with the laws and regulations applicable to its activities; and (4) to provide us with access to all information of which you are aware that is relevant to the preparation and fair presentation of the financial statements, such as records, documentation, and other matters, additional information we may request for the purpose of the audit, and unrestricted access to persons within the Government from whom the auditor determines it is necessary to obtain audit evidence.

Management is also responsible for preparation of the schedule of federal expenditures of federal awards, including the notes, noncash assistance received and other required information, in accordance with the requirements of the Uniform Guidance. Management is responsible for identifying all federal awards expended during the period including federal awards and funding increments received prior to December 26, 2014, and those received subsequent to December 26, 2014 in accordance with the audit requirements of the Uniform Guidance. You acknowledge and understand your responsibility for the preparation of all supplementary information, including the schedule of expenditures of federal awards, in accordance with the applicable criteria. Management is responsible for identifying all federal awards received and understanding and complying with the compliance requirements, in accordance with the Uniform Guidance. Management is also responsible for (1) establishing and maintaining effective internal control, including internal control over compliance and for evaluating and monitoring ongoing activities to help ensure that appropriate goals and objectives are met, (2) compliance with federal statutes, regulations, and the terms and conditions of federal awards, (3) ensuring that there is reasonable assurance that government programs are administered in compliance with compliance requirements, and (4) ensuring that management and financial information is reliable and properly reported. You also agree to include

our report on the supplementary information in any document that contains the supplementary information and that indicates that we have reported on such supplementary information. You also agree to present the supplementary information with the audited financial statements, or, if the supplementary information will not be presented with the audited financial statements, to make the audited financial statements readily available to the intended users of the supplementary information no later than the date of issuance of the supplementary information and our report thereon.

Management's responsibilities also include identifying and informing us of significant contractor relationships in which the contractor is responsible for program compliance and for the accuracy and completeness of that information.

Management is responsible for adjusting the financial statements to correct material misstatements relating to accounts or disclosures, after evaluating their propriety based on a review of both the applicable authoritative literature and the underlying supporting evidence from the Government's files; or otherwise concluding and confirming in a representation letter (as further described below) provided to us at the conclusion of our audit that the effects of any uncorrected misstatements are, both individually and in the aggregate, immaterial to the financial statements taken as a whole. Additionally, as required by the Uniform Guidance, it is management's responsibility to follow up and take corrective action on reported audit findings and to prepare a summary schedule of prior audit findings and a corrective action plan.

As required by GAAS, we will request certain written representations from management at the close of our audit to confirm oral representations given to us and to indicate and document the continuing appropriateness of such representations and reduce the possibility of misunderstanding concerning matters that are the subject of the representations. Because of the importance of management's representations to an effective audit, the Government agrees, subject to prevailing laws and regulations, to release and indemnify LWC and its partners, principals, employees, Affiliates, contractors, and agents (collectively, the "LWC Group") from and against all claims, liabilities, damages, or expenses (including attorneys' fees) of any kind relating to the services or this Agreement, whether arising in contract, statute, tort (including, without limitation, negligence), or otherwise (collectively, the "Claims") attributable to any knowing misrepresentations by management.

Management is also responsible for the design and implementation of programs and controls to prevent and detect fraud, and for informing us about all known or suspected fraud affecting the Government involving (a) management, (b) employees who have significant roles in internal control, and (c) others where the fraud could have a direct and material effect on the financial statements and/or schedule of expenditures of federal awards. Your responsibilities include informing us of your knowledge of any allegations of fraud or suspected fraud affecting the Government received in communications from employees, former employees, grantors, regulators, or others. In addition, you are responsible for identifying and ensuring that the Government complies with applicable federal statutes, regulations, and the terms and conditions of the federal awards. Management is also responsible for taking timely and appropriate steps to remedy fraud and noncompliance with provisions of federal statutes, regulations and the terms and conditions of the federal awards, or abuse that we report.

Management is responsible for establishing and maintaining a process for tracking the status of audit findings and recommendations. Management is also responsible for identifying to us, previous financial

audit attestation engagements, performance audits, or other studies related to our audit objectives. This responsibility includes communicating to us corrective actions taken to address significant findings and recommendations resulting from those audits, attestation engagements, performance audits, or studies. You are also responsible for providing management's views on our current findings, conclusions, and recommendations, as well as your planned corrective actions for the report, and for the timing and format for providing that information.

At the conclusion of the engagement, we will complete the appropriate sections of and electronically certify the Data Collection Form that summarizes our audit findings. We will provide a final copy of our reports in a PDF file to the Government; however, it is management's responsibility to upload the PDF version of the reporting package (including financial statements, schedule of expenditures of federal awards, summary schedule of prior audit findings, auditor's reports, and corrective action plan) and complete the appropriate sections of the Data Collection Form. Management is responsible for electronically certifying the Data Collection Form and electronically submitting the completed Data Collection Form to the Federal Audit Clearinghouse (FAC). The financial reporting package must be text searchable, unencrypted, and unlocked to be accepted by the FAC. The Data Collection Form and the reporting package must be submitted electronically within the earlier of 30 days after receipt of the auditor's reports or nine months after the end of the audit period, unless a longer period is agreed to in advance by the oversight agency for audit. Both LWC and management are responsible for ensuring that in their respective parts of the reporting package there is no protected personally identifiable information. We understand that we must make copies of the Data Collection Form and reporting package available for public inspection.

Expected Form and Content of the Auditors' Report

At the conclusion of our audit, we will submit to you a report containing our opinion as to whether the financial statements, taken as a whole, are fairly presented based on accounting principles generally accepted in the United States of America and also containing a separate section indicating that our opinion does not cover the other information (as defined below) included in the annual report, stating that we considered any material inconsistency that exists between the other information and the financial statements, and describing any other information that otherwise appears to be materially misstated. If, during the course of our work, it appears for any reason that we will not be in a position to render an unmodified opinion on the financial statements or the Uniform Guidance compliance, or that our report will require an Emphasis of Matter or Other Matter paragraph, we will discuss this with you. It is possible that, because of unexpected circumstances, we may determine that we cannot render a report or otherwise complete the engagement. If, for any reason, we are unable to complete the audit or are unable to form or have not formed an opinion, we may decline to express an opinion or decline to issue a report as a result of the engagement. If, in our professional judgment, the circumstances require, we may resign from the engagement prior to completion.

The reports on internal control and compliance will each include a statement that the purpose of these reports is solely to describe the scope of our testing of internal control and compliance and the results of that testing based on the requirements of *Government Auditing Standards* (GAS) and the Uniform Guidance and are not suitable for any other purpose.

Termination

Upon notice to the Government, LWC may terminate this Agreement if LWC reasonably determines that it is unable to perform the services described in this Agreement in accordance with applicable professional standards, laws, or regulations. If we elect to terminate our services for any reason provided for in this Agreement, our engagement will be deemed to have been completed upon written notification of termination, even if we have not completed our report. If the Agreement is terminated, the Government agrees to compensate LWC for the services performed and expenses incurred through the effective date of termination. Those provisions in this Agreement that, by their very nature, are intended to survive termination shall survive after the termination of the Agreement, including, but not limited to, the parties' obligations related to any of the following provisions: indemnification, limitations on liability, confidentiality, dispute resolution, payment and reimbursement obligations, and limitations on use or reliance.

Client Acceptance Matters

LWC is accepting the Government as a client in reliance on information obtained during the course of our client acceptance procedures. **Jessica Lott-Hansen** has been assigned the role of client partner and is responsible for the overall administration of the client relationship. **Sarah C. Werner** partner has been assigned the role of engagement partner and is responsible for directing the engagement and issuing the appropriate report on the Government's financial statements.

Email Communication

LWC disclaims and waives, and you release the LWC Group from, all liability for the interception or unintentional disclosure of email transmissions or for the unauthorized use or failed delivery of emails transmitted or received by LWC in connection with the services we are being engaged to perform under this Agreement.

External Computing Options

If, at the Government's request, any member of the LWC Group agrees to use certain external commercial services, including but not limited to services for cloud storage, remote control, and/or file sharing options (collectively "External Computing Options"), that are outside of LWC's standard security protocol, the Government acknowledges that such External Computing Options may be associated with heightened security and privacy risks. Accordingly, the LWC Group disclaims and the Government agrees to release the LWC Group from, and indemnify the LWC Group for, all liability arising out of or related to the use of such External Computing Options.

Ownership of Working Papers

In connection with the performance of our services, we will prepare documents that support our work and include items such as work programs and analyses that do not constitute part of the Government's records ("Working Papers"). The Working Papers prepared pursuant to this Agreement are the property of LWC. The Working Papers constitute confidential, proprietary, and trade secret information, and will be retained by LWC in accordance with our policies and procedures and all applicable laws.

However, pursuant to authority given by law or regulation, we may be requested to make certain Working Papers available to the Government's oversight agency, or its designee, a federal agency providing direct or indirect funding, or the U.S. Government Accountability Office for purposes of a quality review of the audit, to resolve audit findings, or to carry out oversight responsibilities. We will notify you of any such request. If requested, access to such Working Papers will be provided under the supervision of LWC personnel and at a location designated by LWC. Furthermore, upon request, we may provide photocopies of selected Working Papers to the aforementioned parties. These parties may intend or decide to distribute the photocopies of information contained therein to others, including other governmental agencies. If a Working Paper access request is received from a regulator, we will ask you and the regulator, and any designees, including third party accounting firms, to acknowledge, in writing, the conditions under which we will provide such access; and you agree to provide such written acknowledgment.

Reproduction of Auditors' Report

If the Government plans any reproduction or publication of a document that includes our report, or any portion of it, and that is assembled differently from any paper or electronic version that we have previously reviewed and approved for the Government (e.g., by the addition of financial statements and/or accompanying information that you have produced), a copy of the entire document in its final form should be submitted to us in sufficient time for our review and written approval before printing. You also agree to provide us with a copy of the final reproduced material for our written approval before it is distributed. If, in our professional judgment, the circumstances require, we may withhold our written approval.

Posting of Auditors' Report and Financial Statements on Your Website

You agree that, if you plan to post an electronic version of the financial statements and auditors' report on your website, you will ensure that there are no differences in content between the electronic version of the financial statements and auditor's report on your website and the signed version of the financial statements and auditor's report provided to management by LWC. You also agree to indemnify the LWC Group for all claims that may arise from any differences between the electronic and signed versions.

Communications With Predecessor Auditors

GAAS requires that we contact Steven M. Derouen & Associates, LLC to review their working papers and discuss their audit of prior years' financial statements. It will be necessary that you authorize in writing name of predecessor to communicate with us for that purpose.

Availability of Records and Personnel

You agree that all records, documentation, and information we request in connection with our audit will be made available to us (including those pertaining to related parties), that all material information will be disclosed to us, and that we will have the full cooperation of, and unrestricted access to, your personnel during the course of the engagement.

You also agree to ensure that any third-party valuation reports that you provide to us to support amounts or disclosures in the financial statements (a) indicate the purpose for which they were intended, which is consistent with your actual use of such reports; and (b) do not contain any restrictive language that would preclude us from using such reports as audit evidence.

Assistance by Your Personnel

We also ask that your personnel prepare various schedules and analyses for our staff. However, except as otherwise noted by us, no personal information other than names related to Government employees and/or customers should be provided to us. In addition, we ask that you provide high-speed Internet access to our engagement team, if practicable, while working on the Government's premises. This assistance will serve to facilitate the progress of our work and minimize costs to you.

Peer Review Reports

Government Auditing Standards requires that we provide you with a copy of our most recent quality control review report. Our latest peer review report accompanies this letter.

Other Services

We are always available to meet with you and other executives at various times throughout the year to discuss current business, operational, accounting, and auditing matters affecting the Government. Whenever you feel such meetings are desirable, please let us know. We are also prepared to provide services to assist you in any of these areas. We will also be pleased, at your request, to attend governing board meetings.

In addition to the audit services described above, you have requested that we provide the following non-attest services:

1. We will assist the Government in preparing the financial statements and related footnote disclosures for the year ended **June 30, 2026,** based on the Government's accounting records and other information that comes to our attention during the course of our engagement.
2. We will calculate adjustments based on all provided to us related to GASB 68 (Pension), GASB 75 (OBEB), GASB 101 (Compensated Absence), GASB 87 (Leases), and GASB 96 (SBITAs).
3. We will calculate accrued compensated absences based on information provided to us and the Government's leave policies.
4. Proposing standard, adjusting, or correcting journal entries or other changes that are not part of the normal audit process, in order to bring the client's books and records current and to completion.

Independence

Professional and certain regulatory standards require us to be independent, in both fact and appearance, with respect to the Government in the performance of our services. Any discussions that you have with personnel of LWC regarding employment could pose a threat to our independence. Therefore, we request that you inform us prior to any such discussions so that we can implement appropriate safeguards to maintain our independence.

In order for us to remain independent, professional standards require us to maintain certain respective roles and relationships with you with respect to the non-attest services described above. Prior to performing such services in conjunction with our audit, management must acknowledge its acceptance of certain responsibilities.

We will not perform management functions or make management decisions on behalf of the Government. However, we will provide advice and recommendations to assist management of the Government in performing its functions and fulfilling its responsibilities.

The Government agrees to perform the following functions in connection with our performance of the non-attest services as described above:

a. Make all management decisions and perform all management functions with respect to the non-attest services as described above provided by us.

b. Assign Lindsey DeLouche to oversee the non-attest services as described above and evaluate the adequacy and results of the services.

c. Accept responsibility for the results of non-attest services as described above.

The services are limited to those outlined above. We, in our professional judgment, reserve the right to refuse to perform any procedure or take any action that could be construed as making management decisions or performing management functions. The Government must make all decisions with regard to our recommendations. By signing this Agreement, you acknowledge your acceptance of these responsibilities.

Limitation of Liability

Except to the extent finally determined to have resulted from the fraud or intentional misconduct of any member of the LWC Group, the LWC Group's aggregate liability to the Government for all direct or third party Claims shall not exceed the aggregate amount of fees paid by the Government to LWC during the 12 months preceding the date of the Claim for the services giving rise to the Claim. In no event shall the LWC Group be liable for consequential, special, indirect, incidental, punitive, or exemplary losses or damages relating to this Agreement.

Dispute Resolution Procedure

Any dispute or claim between you and LWC arising out of or relating to the Agreement or a breach of the Agreement, including, without limitation, claims for breach of contract, professional negligence, breach of fiduciary duty, misrepresentation, fraud, or claims based in whole or in part on any other common-law, statutory, regulatory, legal, or equitable theory, and disputes regarding all fees, including attorneys' fees of any type, and/or costs charged under this Agreement ("Arbitration Claims") (except to the extent provided below) shall be submitted to binding arbitration administered by the American Arbitration Association ("AAA"), in accordance with its Commercial Arbitration Rules. Arbitration Claims shall be brought in a party's individual capacity, and not as a plaintiff or class member in any purported class or representative proceeding. Arbitration Claims shall be heard by a panel of three (3) arbitrators, to be chosen as follows: within fifteen (15) days after the commencement of arbitration, each party shall select one person to act as arbitrator; thereafter, the two individually selected arbitrators shall select a third arbitrator within ten (10) days of their appointment, or any extension of that time agreed to by the individually selected arbitrators. If the arbitrators selected by the parties are unable or fail to agree upon the third arbitrator within the aforementioned time, the third arbitrator shall be selected by the AAA. The arbitration panel shall have the power to rule upon its own jurisdiction and authority, including any objection to the initial or continuing existence, validity, effectiveness, or scope of this arbitration agreement. The arbitration panel may not consolidate more than one person's claims and may not otherwise preside over any form of a representative or class proceeding. The arbitration panel shall have no authority to award non-monetary or equitable relief, but nothing herein shall be construed as a prohibition against a party from pursuing non-monetary or equitable relief in a federal or state court. The place of arbitration shall be the city in which the LWC office providing the majority of the services involved under this Agreement is located, unless the parties agree in writing to a different location. Regardless of where the arbitration proceeding actually takes place, all aspects of the arbitration and the Agreement shall be governed by the provisions of the laws of the State of Louisiana (except if there is no applicable state law providing for such arbitration, then the Federal Arbitration Act shall apply) and the procedural and substantive law of such state shall be applied without reference to conflicts of law rules. The parties shall bear their own legal fees and costs for all Arbitration Claims. The award of the arbitrators shall be accompanied by a reasoned opinion, and judgment on the award rendered by the arbitration panel may be entered in any court having jurisdiction thereof. Except as may be required by law or to enforce an award, neither a party nor an arbitrator may disclose the existence, content, or results of any arbitration hereunder without the prior written consent of the parties to the Agreement. The parties to the Agreement acknowledge that by agreeing to this arbitration provision, they are giving up the right to litigate claims against each other, and important rights that would be available in litigation, including the right to trial by judge or jury, to extensive discovery and to appeal an adverse decision. The parties acknowledge that they have read and understand this arbitration provision, and that they voluntarily agree to binding arbitration.

The Government shall bring no Arbitration Claim more than one (1) year following the completion of the services provided under this Agreement to which the Arbitration Claim relates. This paragraph will shorten, but in no event extend, any otherwise legally applicable period of limitations on such Arbitration Claims.

Fees

Our charges to the Government for the services described above for the year ending June 30, 2026, will be $63,000 and $5,000 for opening balance testwork plus out-of-pocket expenses. This fee is based on the following assumptions: your personnel will prepare certain schedules and analyses for us and make available to us documents for our examination as and when requested; there will be no significant changes in the internal controls, key personnel, or structure of the organization; there will be no significant changes in critical systems affecting key financial statement accounts (e.g., significant upgrade, systems integration, and/or systems implementation); there will be no significant acquisitions or disposals of businesses; and there will not be any unanticipated increases in current operations requiring significant additional audit time. Should we encounter any unforeseen problems that will warrant additional time or expense, you will be notified of the situation and, if possible, the added cost.

This fee is based on the following assumptions:

- Your personnel will prepare certain schedules and analyses for us and make available to us documents for our examination as and when requested and will utilize our LWC portal to provide us such documents
- Our planned audit timing as agreed upon with you does not change and the client-prepared information and documents are available at the beginning of our fieldwork date(s)
- There will be no significant changes in the internal controls, key personnel, or structure of the organization
- There will be no significant changes in critical systems affecting key financial statement accounts (e.g., significant upgrade, systems integration, and/or systems implementation)
- There will be no significant acquisitions or disposals of businesses
- The number of audit adjustments identified will be minimal
- There will not be significant amendments to the Government's debt or financing arrangements requiring significant accounting analysis and/or 'debt compliance letters'
- There will not be any unanticipated increases in current operations requiring significant additional audit time

Should we encounter any unforeseen problems that will warrant additional time or expense, we will notify you of the situation and provide an estimate of our additional fees.

This fee structure does not take into consideration effects that any future standards promulgated by the Governmental Accounting Standards Board and/or other professional bodies will have on our audit procedures. As we become aware of additional audit procedures resulting from these circumstances, we will notify you of the circumstances requiring additional procedures and the resulting additional fee estimates.

Invoices are payable upon receipt. If we do not receive any written notice of dispute within 10 days of your receipt of the invoice, we will conclude that you have seen the invoice and find it acceptable. Invoices that are unpaid 30 days past the invoice date are deemed delinquent and we reserve the right to charge interest on the past due amount at the lesser of (a) 1.0% per month or (b) the maximum amount permissible by applicable law. Interest shall accrue from the date the invoice is delinquent. We reserve the right to suspend our services, withhold any deliverables, or withdraw from this engagement entirely

if any of our invoices are delinquent. In the event that any collection action is required to collect unpaid balances due to us, you agree to reimburse us for all our costs of collection, including without limitation, attorneys' fees.

This engagement includes only those services specifically described in this Agreement; any additional services not specified herein will be agreed to in a separate letter. In the event you request us to object to or respond to, or we receive and respond to, a validly issued third party subpoena, court order, government regulatory inquiry, or other similar request or legal process against the Government or its management for the production of documents and/or testimony relative to information we obtained and/or prepared during the course of this or any prior engagements with the Government, you agree to compensate us for all time we expend in connection with such response, at our standard rates, and to reimburse us for all related out-of-pocket costs (including outside attorneys' fees) that we incur.

Third-Party Use

All services hereunder shall be solely for the Government's use and benefit pursuant to our client relationship. This engagement does not create privity between LWC and any person or party other than the Government, and is not intended for the express or implied benefit of any third party. No third party is entitled to rely, in any manner or for any purpose, on the services of LWC hereunder.

Confidentiality

Each of the parties hereto shall treat and keep all of the "Confidential Information" (defined below) as confidential, with at least the same degree of care as it accords to its own confidential information, but in no event less than a reasonable degree of care. Each party shall disclose the Confidential Information only to its employees, partners, contractors, consultants, agents, or its legal or other advisors, provided that they have: (A) each been informed of the confidential, proprietary, and secret nature of the Confidential Information, or are subject to a binding, preexisting obligation of confidentiality no less stringent than the requirements of this Agreement, and (B) a demonstrable need to review such Confidential Information. "Confidential Information" means all non-public information that is marked as "confidential" or "proprietary" or has commercial value in the party's business and is obtained by one party (the "Receiving Party") from the other party (the "Disclosing Party"). All terms of this Agreement are considered Confidential Information. Notwithstanding the foregoing, Confidential Information shall not include any information that was or is: (a) known to the Receiving Party prior to disclosure by the Disclosing Party; (b) as of the time of its disclosure, or thereafter becomes, part of the public domain through a source other than the Receiving Party; (c) made known to the Receiving Party by a third person who is not subject to any confidentiality obligation known to Receiving Party and such third party does not impose any confidentiality obligation on the Receiving Party with respect to such information; (d) required to be disclosed pursuant to governmental authority, professional obligation, law, decree regulation, subpoena, or court order; or (e) independently developed by the Receiving Party. If LWC is providing tax services for the Government, in no case shall the tax treatment or the tax structure of any transaction be treated as confidential as provided in Treas. Reg. sec. 1.6011-4(b)(3). If disclosure is required pursuant to subsection (d) above, the Receiving Party shall (other than in connection with routine supervisory examinations by regulatory authorities with jurisdiction and without breaching any legal or regulatory requirement), to the extent legally permissible, provide prior written notice thereof to allow the Disclosing Party to seek a protective order or other appropriate relief. Upon the request of the

Disclosing Party, the Receiving Party shall return or destroy all of the Confidential Information except for (i) copies retained in working paper files retained to comply with a party's professional or legal obligations and (ii) such Confidential Information retained in accordance with the Receiving Party's normal data back-up procedures. Notwithstanding the foregoing, LWC shall have the right to use the Government's Confidential Information in connection with performing LWC's obligations hereunder, and also to use de-identified and aggregated key performance indicators derived from LWC's work product in efforts to improve the services generally, including for benchmarking and analytical purposes, so long as such information remains in a de-identified aggregated form and such use does not violate any of LWC's obligations of confidentiality hereunder. LWC shall not share or sell any of the de-identified Government information to third parties, and shall store such information in such a way that neither the Government nor any of the Government's staff or customers can be identified.

Subject to applicable professional standards, our engagement by the Government will in no way preclude us from being engaged by any other party in the future. Notwithstanding anything contained in confidentiality provisions set forth herein, LWC shall be permitted to disclose that it is engaged to provide the services to the Government under this Agreement if LWC in its reasonable professional judgment determines that such disclosure is required in connection with LWC's provision of services on behalf of other clients of LWC, including, without limitation, professional services engagements under which LWC personnel act as professionals in legal proceedings that require disclosures, as arbitrators in post-acquisition disputes, or as expert witnesses.

Restricted Federal Data

The parties agree that the services are not intended to involve the processing, storage, or transmissions of Restricted Federal Data, defined as data or information subject to laws, regulations, or government-wide policies that require safeguarding or dissemination controls, including the Federal Acquisition Regulations ("FAR"), the Defense Federal Acquisition Regulation Supplement ("DFARS"), the International Traffic in Arms Regulation ("ITAR"), the Export Administration Regulations ("EAR"), and the Arms Export Control Act ("AECA"). For clarity, and without limiting the foregoing, controlled unclassified information ("CUI") shall be included in the definition of Restricted Federal Data. The Government shall not provide or otherwise make available Restricted Federal Data to LWC unless expressly agreed to in advance in writing by LWC. If the Government becomes aware that any known or suspected Restricted Federal Data will be or has been disclosed to LWC by the Government or otherwise in connection with the Services, the Government will immediately notify LWC in writing and will cease any further transfer of such data unless and until LWC expressly agrees in writing. The Government will fully cooperate with LWC in the investigation of and response to any known or suspected Restricted Federal Data that the Government has disclosed to LWC notwithstanding the foregoing. The Government further agrees that it will be responsible for all fees, costs, and expenses associated with processing of Restricted Federal Data, including without limitation additional fees, costs, and expenses related to compliance with obligations with respect to such Restricted Federal Data.

Licensing Representation

To the extent necessary for LWC to perform its obligations described herein, the Government represents and warrants that it will obtain, maintain, and comply with all of the licenses, consents, permits, approvals, and authorizations that are necessary to allow LWC and its employees, contractors, and

subcontractors to access and use the services or software provided for the benefit of the Government under the Government's third-party services contracts, licenses, or other contracts granting the Government the right to access, use, or receive services or software (each a "Licensing Representation"). Upon LWC's request, the Government will provide LWC any references available evidencing the Licensing Representation (e.g., order number, customer support identifier). Tools subject to this Licensing Representation are hereby deemed External Computing Options (as defined in this Agreement). The Government hereby releases the LWC Group from, and indemnifies the LWC Group for, all claims and liabilities resulting from: (i) LWC's reliance on a Licensing Representation; and (ii) the functionality of any third-party software or services used or accessed by LWC.

Miscellaneous

This Agreement sets forth the entire agreement between the parties with respect to the subject matter herein, superseding all prior agreements, negotiations, or understandings, whether oral or written, with respect to the subject matter herein. This Agreement may not be changed, modified, or waived in whole or part except by an instrument in writing signed by both parties. This Agreement is intended to cover only the services specified herein, although we look forward to many more years of pleasant association with the Government. This engagement is a separate and discrete event and any future services will be covered by a separate agreement to provide services.

Many banks have engaged a third party to electronically process cash or debt audit confirmation requests, and certain of those banks have mandated the use of this service. Further, such third party confirmation processors also provide for the electronic (and manual) processing of other confirmation types (e.g., legal, accounts receivable, and accounts payable). To the extent applicable, the Government hereby authorizes LWC to participate in such confirmation processes, including through the third party's website (e.g., by entering the Government's bank account information to initiate the process and then accessing the bank's confirmation response), and agrees that the LWC Group shall have no liability in connection therewith.

Whenever possible, each provision of this Agreement shall be interpreted in such a manner as to be effective and valid under applicable laws, regulations, professional standards, or related published interpretations (including, without limitation, the independence rules of the American Institute of Certified Public Accountants, Securities and Exchange Commission, Public Company Accounting Oversight Board, and Government Auditing Standards), but if any provision of this Agreement shall be deemed void, prohibited, invalid, or otherwise unenforceable in whole or in part for any reason under such applicable laws, regulations, professional standards, published interpretations, or any reason whatsoever, such provisions or portion(s) thereof shall be ineffective only to the extent of such prohibition, invalidity, or unenforceability and shall be amended to the minimum extent required to make the provision enforceable, and such revised provision shall be made a part of this Agreement as if it was specifically set forth herein. Furthermore, the provisions of the foregoing sentence shall not invalidate the remainder of such provision or the other provisions of this Agreement, which shall remain in full force and effect.

The Government's signature below represents and warrants that it has the full power and authority to enter into this Agreement on behalf of the Government and all Government Affiliates, or that it shall ensure that all such Government Affiliates agree to be bound to the terms hereof. The Government

represents and warrants that this Agreement constitutes the legal, valid, and binding obligation of the Government and the Government Affiliates and is enforceable against each in accordance with its terms. The Government agrees to release, indemnify, and hold harmless LWC Group against any Claim to the extent arising out of its breach of any representation or warranty contained in this paragraph.

This Agreement may be transmitted in electronic format and shall not be denied legal effect solely because it was formed or transmitted, in whole or in part, by electronic record; however, this Agreement must then remain capable of being retained and accurately reproduced, from time to time, by electronic record by the parties to this Agreement and all other persons or entities required by law. An electronically transmitted signature to this Agreement will be deemed an acceptable original for purposes of consummating this Agreement and binding the party providing such electronic signature.

* * * * *

Council Approval Contingency - Notwithstanding any provision of this engagement letter, the effectiveness of this engagement is expressly contingent upon approval by the City Council. If such approval is not obtained, this engagement shall automatically terminate and neither party shall have any further obligations hereunder.

We believe the foregoing correctly sets forth our understanding; however, if you have any questions, please let us know. If you find the foregoing arrangements acceptable, please acknowledge this by signing this letter via the RightSignature link that we provide. Alternatively, if you are receiving hard copies of this engagement letter and RightSignature will not be used, please return to us a copy of this Agreement and retain a copy for your files.

Very truly yours,

Jessica L. Hansen, CPA
Langley, Williams, & Company, L.L.C.

Sarah C. Werner, CPA
Langley, Williams, & Company, L.L.C.

Acknowledged and accepted subject to City Council approval:

THE CITY OF SULPHUR

By: Jacob Stutes
_____
Mayor Jacob Stutes

Langley, Williams & Company, L.L.C.
CERTIFIED PUBLIC ACCOUNTANTS

NICHOLAS J. LANGLEY
PHILLIP D. ABSHIRE, III
SARAH CLARK WERNER
ALEXIS HABETZ O'NEAL
JESSICA LOTT-HANSEN

LESTER LANGLEY, JR. - RETIRED
DANNY L. WILLIAMS - RETIRED
PHILLIP D. ABSHIRE, JR. - RETIRED
DAPHNE BORDELON BERKEN - DECEASED

July 28, 2026

Honorable Mayor and City Court
Sulphur, Louisiana

Dear **Mr. Jacob Stutes**:

We are pleased to confirm our understanding of the terms of our engagement and the nature and limitations of the services we are to provide for **The City of Sulphur** (**Entity**).

You will agree to the procedures listed in the attached schedule, and will acknowledge that the procedures to be performed are appropriate for the intended purpose of this engagement, which is to perform specified procedures on the control and compliance (C/C) areas identified in the Louisiana Legislative Auditor's (LLA's) Statewide Agreed-Upon Procedures (AUPs) for the fiscal period ended **June 30, 2026**. These procedures were also agreed to by LLA, and LLA acknowledges that the procedures are appropriate for the intended purpose of the engagement.

Our engagement to apply agreed-upon procedures will be conducted in accordance with attestation standards established by the American Institute of Certified Public Accountants and the standards applicable to attestation engagements contained in *Government Auditing Standards*, issued by the Comptroller General of the United States. Those standards require that we obtain your written agreement to the procedures to be applied and your acknowledgment that those procedures are appropriate for the intended purpose of the engagement, as described in this letter. The agreement and acknowledgement are contained within this letter. A refusal to provide such agreement and acknowledgement will result in our withdrawal from the engagement. We make no representation that the procedures we will perform are appropriate for the intended purpose of the engagement or for any other purpose.

Because the agreed-upon procedures listed in the attached schedule do not constitute an examination or review, we will not express an opinion or conclusion on the C/C areas. In addition, we have no obligation to perform any procedures beyond those listed in the attached schedule.

We plan to begin our procedures on approximately August 10, 2026 and, unless unforeseeable problems are encountered, the engagement should be completed by November 15, 2026.

We will issue a written report upon completion of our engagement that lists the procedures performed and our findings. Our report will be addressed to the **Entity** and the LLA, and will be published on the LLA's website as a public document.

P.O. BOX 4690, LAKE CHARLES, LA 70606-4690
205 W. COLLEGE STREET, LAKE CHARLES, LA 70605-1625
PH (337) 477-2827 • FAX (337) 478-8418

P.O. BOX 918, JENNINGS, LA 70546-0918
106 W. NEZPIQUE ST, JENNINGS, LA 70546
PH (337) 477-2827 • FAX (337) 476-2708

WWW.LWCPAFIRM.COM

If we encounter restrictions in performing our procedures, we will discuss the matter with you. If we determine the restrictions are appropriate, we will disclose the restrictions in our report.

Our report will contain a paragraph indicating that had we performed additional procedures, other matters might have come to our attention that would have been reported to you.

You understand that the report is intended solely for the use of the **Entity** and LLA, and should not be used by anyone other than those specified parties.

There may exist circumstances that, in our professional judgment, will require we not issue a report and withdraw from the engagement. Such circumstances include the following:

- You refuse to provide written agreement to the procedures and acknowledge that they are appropriate for the intended purpose of the engagement.
- You fail to provide requested written representations, or we conclude that there is sufficient doubt about the competence, integrity, ethical values, or diligence of those providing the written representations, or we conclude that the written representations provided are otherwise not reliable.
- We determine that the description of the procedures performed or the corresponding findings are misleading in the circumstances of the engagement.
- We determine that restrictions on the performance of the engagement are not appropriate.

An agreed-upon procedures engagement is not designed to detect instances of fraud or noncompliance with laws or regulations (unless otherwise specified in the agreed-upon procedures); however, we will communicate to you any known and suspected fraud and noncompliance with laws or regulations affecting the C/C areas that come to our attention. In addition, if, in connection with this engagement, matters come to our attention that contradict the results of the procedures performed in the C/C areas, we will communicate such matters to you and will disclose those matters in our report. Such disclosures, if any, may not necessarily include all matters that might have come to our attention had we performed additional procedures or an examination or review.

You agree to the procedures to be performed, and acknowledge that they are appropriate for the intended purpose of the engagement.

You accept responsibility for internal control over compliance, for the C/C areas and complying with the best practices criteria presented in the statewide AUPs, and for selecting the criteria and procedures and determining that such criteria and procedures are appropriate for your purposes.

In addition, you are responsible for providing us with (1) access to all information of which you are aware that is relevant to the performance of the agreed-upon procedures on the subject matter, (2) additional information that we may request for the purpose of performing the agreed-upon

procedures, and (3) unrestricted access to persons within the Entity from whom we determine it necessary to obtain evidence relating to performing those procedures.

At the conclusion of our engagement, we will require certain written representations in the form of a representation letter from management that, among other things, will confirm management's responsibility for the C/C areas and administration of those areas in accordance with the best practices criteria in the SAUPs.

Sarah C. Werner is the engagement partner and is responsible for supervising the engagement and signing the report or authorizing another individual to sign it.

We estimate that our fees for these services will not exceed **$7,000**. The fee estimate is based on anticipated cooperation from your personnel and the assumption that unexpected circumstances will not be encountered during the engagement. If significant additional time is necessary, we will discuss it with you and arrive at a new fee estimate before we incur the additional costs.

It is understood that our engagement documentation is confidential information. However, we will make our engagement documentation available to any successor auditor, LLA, or recognized external quality control review organizations as requested. We will retain our engagement documentation for five years.

We appreciate the opportunity to assist you and believe this letter accurately summarizes the significant terms of our engagement. If you have any questions, please let us know. If you agree with the terms of our engagement as described in this letter, please sign the enclosed copy and return it to us. If the need for additional procedures arises, or the procedures need to be modified, our agreement with you will need to be revised. It is customary for us to enumerate these revisions in an addendum to this letter. If additional specified parties of the report are added, we will require that they acknowledge in writing their agreement with the procedures performed or to be performed and their acknowledgement that the procedures are appropriate for their purposes.

Respectfully submitted,

Sarah C Werner

Langley, Williams, and Company, LLC

APPROVED BY:

By: Jacob States

Attachment: Agreed-Upon Procedures

PROCEDURES

Report all findings to the following procedures, either after each procedure or after all procedures, within each of the fourteen AUP categories. "Random" selections may be made using Microsoft Excel's random number generator or an alternate method selected by the practitioner that results in an equivalent sample (e.g., those methods allowed under the AICPA Audit Guide - *Audit Sampling*).

1) Written Policies and Procedures

A. Obtain and inspect the entity's written policies and procedures and observe whether they address each of the following categories and subcategories if applicable to public funds and the entity's operations:

i. ***Budgeting***, including preparing, adopting, monitoring, and amending the budget.

ii. ***Purchasing***, including (1) how purchases are initiated, (2) how vendors are added to the vendor list, (3) the preparation and approval process of purchase requisitions and purchase orders, (4) controls to ensure compliance with the Public Bid Law, and (5) documentation required to be maintained for all bids and price quotes.

iii. ***Disbursements***, including processing, reviewing, and approving.

iv. ***Receipts/Collections***, including receiving, recording, and preparing deposits. Also, policies and procedures should include management's actions to determine the completeness of all collections for each type of revenue or agency fund additions (e.g., periodic confirmation with outside parties, reconciliation to utility billing after cutoff procedures, reconciliation of traffic ticket number sequences, agency fund forfeiture monies confirmation).

v. ***Payroll/Personnel***, including (1) payroll processing, (2) reviewing and approving time and attendance records, including leave and overtime worked, and (3) approval process for employee rates of pay or approval and maintenance of pay rate schedules.

vi. ***Contracting***, including (1) types of services requiring written contracts, (2) standard terms and conditions, (3) legal review, (4) approval process, and (5) monitoring process.

vii. ***Travel and Expense Reimbursement***, including (1) allowable expenses, (2) dollar thresholds by category of expense, (3) documentation requirements, and (4) required approvers.

viii. ***Credit Cards (and debit cards, fuel cards, purchase cards, if applicable)***, including (1) how cards are to be controlled, (2) allowable business uses, (3) documentation requirements, (4) required approvers of statements, and (5) monitoring card usage (e.g., determining the reasonableness of fuel card purchases).

ix. ***Ethics***, including (1) the prohibitions as defined in Louisiana Revised Statute (R.S.) 42:1111-1121, (2) actions to be taken if an ethics violation takes place, (3) system to monitor possible ethics violations, and (4) a requirement that documentation is maintained to demonstrate that all employees and officials were notified of any changes to the entity's ethics policy.

x. ***Debt Service***, including (1) debt issuance approval, (2) continuing disclosure/EMMA reporting requirements, (3) debt reserve requirements, and (4) debt service requirements.

xi. ***Information Technology Disaster Recovery/Business Continuity***, including (1) identification of critical data and frequency of data backups, (2) storage of backups in a separate physical location isolated from the network, (3) periodic testing/verification that backups can be restored, (4) use of antivirus software on all systems, (5) timely application of all available system and software patches/updates, and (6) identification of personnel, processes, and tools needed to recover operations after a critical event.

xii. ***Prevention of Sexual Harassment***, including R.S. 42:342-344 requirements for (1) agency responsibilities and prohibitions, (2) annual employee training, and (3) annual reporting.

2) Board or Finance Committee

A. Obtain and inspect the board/finance committee minutes for the fiscal period, as well as the board's enabling legislation, charter, bylaws, or equivalent document in effect during the fiscal period, and

i. Observe that the board/finance committee met with a quorum at least monthly, or on a frequency in accordance with the board's enabling legislation, charter, bylaws, or other equivalent document.

ii. For those entities reporting on the governmental accounting model, review the minutes from all regularly scheduled board/finance committee meetings held during the fiscal year and observe whether the minutes from at least one meeting each month referenced or included monthly budget-to-actual comparisons on the general fund, quarterly budget-to-actual comparisons, at a minimum, on all proprietary funds, and semi-annual budget-to-actual comparisons, at a minimum, on all special revenue funds. *Alternatively, for those entities reporting on the not-for-profit accounting model, observe that the minutes referenced or included financial activity relating to public funds if those public funds comprised more than 10% of the entity's collections during the fiscal period.*

iii. For governmental entities, obtain the prior year audit report and observe the unassigned fund balance in the general fund. If the general fund had a negative ending unassigned fund balance in the prior year audit report, observe that the minutes for at least one meeting during the fiscal period referenced or included a formal plan to eliminate the negative unassigned fund balance in the general fund.

iv. Observe whether the board/finance committee received written updates of the progress of resolving audit finding(s), according to management's corrective action plan at each meeting until the findings are considered fully resolved.

3) Bank Reconciliations

A. Obtain a listing of entity bank accounts for the fiscal period from management and management's representation that the listing is complete. Ask management to identify the entity's main operating account. Select the entity's main operating account and randomly select 4 additional accounts (or all accounts if less than 5). Randomly select one month from the fiscal period, obtain and inspect the corresponding bank statement and reconciliation for each selected account, and observe that:

i. Bank reconciliations include evidence that they were prepared within 2 months of the related statement closing date (e.g., initialed and dated or electronically logged);

ii. Bank reconciliations include written evidence that a member of management or a board member who does not handle cash, post ledgers, or issue checks has reviewed each bank reconciliation within 1 month of the date the reconciliation was prepared (e.g., initialed and dated or electronically logged); and

iii. Management has documentation reflecting it has researched reconciling items that have been outstanding for more than 12 months from the statement closing date, if applicable.

4) Collections (excluding electronic funds transfers)

A. Obtain a listing of deposit sites for the fiscal period where deposits for cash/checks/money orders (cash) are prepared and management's representation that the listing is complete. Randomly select 5 deposit sites (or all deposit sites if less than 5).

B. For each deposit site selected, obtain a listing of collection locations and management's representation that the listing is complete. Randomly select one collection location for each deposit site (e.g., 5 collection locations for 5 deposit sites), obtain and inspect written policies and procedures relating to employee job duties (if there are no written policies or procedures, then inquire of employees about their job duties) at each collection location, and observe that job duties are properly segregated at each collection location such that

i. Employees responsible for cash collections do not share cash drawers/registers;

ii. Each employee responsible for collecting cash is not also responsible for preparing/making bank deposits, unless another employee/official is responsible for reconciling collection documentation (e.g., pre-numbered receipts) to the deposit;

iii. Each employee responsible for collecting cash is not also responsible for posting collection entries to the general ledger or subsidiary ledgers, unless another employee/official is responsible for reconciling ledger postings to each other and to the deposit; and

iv. The employee(s) responsible for reconciling cash collections to the general ledger and/or subsidiary ledgers, by revenue source and/or custodial fund additions, is (are) not also responsible for collecting cash, unless another employee/official verifies the reconciliation.

C. Obtain from management a copy of the bond or insurance policy for theft covering all employees who have access to cash. Observe that the bond or insurance policy for theft was in force during the fiscal period.

D. Randomly select two deposit dates for each of the 5 bank accounts selected for Bank Reconciliations procedure #3A (select the next deposit date chronologically if no deposits were made on the dates randomly selected and randomly select a deposit if multiple deposits are made on the same day). *Alternatively, the practitioner may use a source document other than bank statements when selecting the deposit dates for testing, such as a cash collection log, daily revenue report, receipt book, etc.* Obtain supporting documentation for each of the 10 deposits and

i. Observe that receipts are sequentially pre-numbered.

ii. Trace sequentially pre-numbered receipts, system reports, and other related collection documentation to the deposit slip.

iii. Trace the deposit slip total to the actual deposit per the bank statement.

iv. Observe that the deposit was made within one business day of receipt at the collection location (within one week if the depository is more than 10 miles from the collection

location or the deposit is less than $100 and the cash is stored securely in a locked safe or drawer).

v. Trace the actual deposit per the bank statement to the general ledger.

5) Non-Payroll Disbursements (excluding card purchases, travel reimbursements, and petty cash purchases)

A. Obtain a listing of locations that process payments for the fiscal period and management's representation that the listing is complete. Randomly select 5 locations (or all locations if less than 5).

B. For each location selected under procedure #5A above, obtain a listing of those employees involved with non-payroll purchasing and payment functions. Obtain written policies and procedures relating to employee job duties (if the agency has no written policies and procedures, then inquire of employees about their job duties), and observe that job duties are properly segregated such that

i. At least two employees are involved in initiating a purchase request, approving a purchase, and placing an order or making the purchase;

ii. At least two employees are involved in processing and approving payments to vendors;

iii. The employee responsible for processing payments is prohibited from adding/modifying vendor files, unless another employee is responsible for periodically reviewing changes to vendor files;

iv. Either the employee/official responsible for signing checks mails the payment or gives the signed checks to an employee to mail who is not responsible for processing payments; and

v. Only employees/officials authorized to sign checks approve the electronic disbursement (release) of funds, whether through automated clearinghouse (ACH), electronic funds transfer (EFT), wire transfer, or some other electronic means.

[Note: Findings related to controls that constrain the legal authority of certain public officials (e.g., mayor of a Lawrason Act municipality) should not be reported.]

C. For each location selected under procedure #5A above, obtain the entity's non-payroll disbursement transaction population (excluding cards and travel reimbursements) and obtain management's representation that the population is complete. Randomly select 5 disbursements for each location, obtain supporting documentation for each transaction, and

i. Observe whether the disbursement, whether by paper or electronic means, matched the related original itemized invoice and supporting documentation indicates that deliverables included on the invoice were received by the entity, and

ii. Observe whether the disbursement documentation included evidence (e.g., initial/date, electronic logging) of segregation of duties tested under procedure #5B above, as applicable.

D. Using the entity's main operating account and the month selected in Bank Reconciliations procedure #3A, randomly select 5 non-payroll-related electronic disbursements (or all electronic disbursements if less than 5) and observe that each electronic disbursement was (a) approved by only those persons authorized to disburse funds (e.g., sign checks) per the entity's policy, and (b) approved by the required number of authorized signers per the entity's policy. *Note: If no electronic payments were made from the main operating account during the month selected the practitioner*

should select an alternative month and/or account for testing that does include electronic disbursements.

6) Credit Cards/Debit Cards/Fuel Cards/Purchase Cards (Cards)

A. Obtain from management a listing of all active credit cards, bank debit cards, fuel cards, and purchase cards (cards) for the fiscal period, including the card numbers and the names of the persons who maintained possession of the cards. Obtain management's representation that the listing is complete.

B. Using the listing prepared by management, randomly select 5 cards (or all cards if less than 5) that were used during the fiscal period. Randomly select one monthly statement or combined statement for each card (for a debit card, randomly select one monthly bank statement). Obtain supporting documentation, and

   i. Observe whether there is evidence that the monthly statement or combined statement and supporting documentation (e.g., itemized receipts for credit/debit card purchases, exception reports for excessive fuel card usage) were reviewed and approved, in writing (or electronically approved) by someone other than the authorized card holder (those instances requiring such approval that may constrain the legal authority of certain public officials, such as the mayor of a Lawrason Act municipality, should not be reported); and

   ii. Observe that finance charges and late fees were not assessed on the selected statements.

C. Using the monthly statements or combined statements selected under procedure #6B above, excluding fuel cards, randomly select 10 transactions (or all transactions if less than 10) from each statement, and obtain supporting documentation for the transactions (e.g., each card should have 10 transactions subject to inspection). For each transaction, observe that it is supported by (1) an original itemized receipt that identifies precisely what was purchased, (2) written documentation of the business/public purpose, and (3) documentation of the individuals participating in meals (for meal charges only). For missing receipts, the practitioner should describe the nature of the transaction and observe whether management had a compensating control to address missing receipts, such as a "missing receipt statement" that is subject to increased scrutiny.

D. Using the list of terminated employees obtained in Payroll and Personnel procedure #9C identify those individuals who had access to cards and randomly select 5 terminated employees (or all terminated employees with card access if less than 5) from this population. Observe evidence that the cards have been deactivated for these terminated employees. In cases where a card is shared by multiple users, obtain evidence that the terminated employees' authorization has been removed.

7) Travel and Travel-Related Expense Reimbursements (excluding card transactions)

A. Obtain from management a listing of all travel and travel-related expense reimbursements during the fiscal period and management's representation that the listing or general ledger is complete. Randomly select 5 reimbursements and obtain the related expense reimbursement forms/prepaid expense documentation of each selected reimbursement, as well as the supporting documentation. For each of the 5 reimbursements selected

   i. If reimbursed using a per diem, observe that the approved reimbursement rate is no more than those rates established either by the State of Louisiana (doa.la.gov/doa/ost/ppm-49-travel-guide/) or the U.S. General Services Administration (www.gsa.gov);

ii. If reimbursed using actual costs, observe that the reimbursement is supported by an original itemized receipt that identifies precisely what was purchased;

iii. Observe that each reimbursement is supported by documentation of the business/public purpose (for meal charges, observe that the documentation includes the names of those individuals participating) and other documentation required by Written Policies and Procedures procedure #1A(vii); and

iv. Observe that each reimbursement was reviewed and approved, in writing, by someone other than the person receiving reimbursement.

8) Contracts

A. Obtain from management a listing of all agreements/contracts for professional services, materials and supplies, leases, and construction activities that were initiated or renewed during the fiscal period. *Alternatively, the practitioner may use an equivalent selection source, such as an active vendor list.* Obtain management's representation that the listing is complete. Randomly select 5 contracts (or all contracts if less than 5) from the listing, excluding the practitioner's contract, and

i. Observe whether the contract was bid in accordance with the Louisiana Public Bid Law (e.g., solicited quotes or bids, advertised), if required by law;

ii. Observe whether the contract was approved by the governing body/board, if required by policy or law (e.g., Lawrason Act, Home Rule Charter);

iii. If the contract was amended (e.g., change order), observe that the original contract terms provided for such an amendment and that amendments were made in compliance with the contract terms (e.g., if approval is required for any amendment, the documented approval); and

iv. Randomly select one payment from the fiscal period for each of the 5 contracts, obtain the supporting invoice, agree the invoice to the contract terms, and observe that the invoice and related payment agreed to the terms and conditions of the contract.

9) Payroll and Personnel

A. Obtain a listing of employees and officials employed during the fiscal period and management's representation that the listing is complete. Randomly select 5 employees or officials, obtain related paid salaries and personnel files, and agree paid salaries to authorized salaries/pay rates in the personnel files.

B. Randomly select one pay period during the fiscal period. For the 5 employees or officials selected under procedure #9A above, obtain attendance records and leave documentation for the pay period, and

i. Observe that all selected employees or officials documented their daily attendance and leave (e.g., vacation, sick, compensatory);

ii. Observe whether supervisors approved the attendance and leave of the selected employees or officials;

iii. Observe that any leave accrued or taken during the pay period is reflected in the entity's cumulative leave records; and

iv. Observe the rate paid to the employees or officials agrees to the authorized salary/pay rate found within the personnel file.

C. Obtain a listing of those employees or officials that received termination payments during the fiscal period and management's representation that the list is complete. Randomly select two employees or officials and obtain related documentation of the hours and pay rates used in management's termination payment calculations and the entity's policy on termination payments. Agree the hours to the employee's or official's cumulative leave records, agree the pay rates to the employee's or official's authorized pay rates in the employee's or official's personnel files, and agree the termination payment to entity policy.

D. Obtain management's representation that employer and employee portions of third-party payroll related amounts (e.g., payroll taxes, retirement contributions, health insurance premiums, garnishments, workers' compensation premiums) have been paid, and any associated forms have been filed, by required deadlines.

10) *Ethics*

A. Using the 5 randomly selected employees/officials from Payroll and Personnel procedure #9A obtain ethics documentation from management, and

i. Observe whether the documentation demonstrates that each employee/official completed one hour of ethics training during the calendar year as required by R.S. 42:1170; and

ii. Observe whether the entity maintains documentation which demonstrates that each employee and official were notified of any changes to the entity's ethics policy during the fiscal period, as applicable.

B. Inquire and/or observe whether the agency has appointed an ethics designee as required by R.S. 42:1170.

11) Debt Service

A. Obtain a listing of bonds/notes and other debt instruments issued during the fiscal period and management's representation that the listing is complete. Select all debt instruments on the listing, obtain supporting documentation, and observe that State Bond Commission approval was obtained for each debt instrument issued as required by Article VII, Section 8 of the Louisiana Constitution.

B. Obtain a listing of bonds/notes outstanding at the end of the fiscal period and management's representation that the listing is complete. Randomly select one bond/note, inspect debt covenants, obtain supporting documentation for the reserve balance and payments, and agree actual reserve balances and payments to those required by debt covenants (including contingency funds, short-lived asset funds, or other funds required by the debt covenants).

12) Fraud Notice

A. Obtain a listing of misappropriations of public funds and assets during the fiscal period and management's representation that the listing is complete. Select all misappropriations on the listing, obtain supporting documentation, and observe that the entity reported the misappropriation(s) to the legislative auditor and the district attorney of the parish in which the entity is domiciled as required by R.S. 24:523.

B. Observe that the entity has posted, on its premises and website, the notice required by R.S. 24:523.1 concerning the reporting of misappropriation, fraud, waste, or abuse of public funds.

13) Information Technology Disaster Recovery/Business Continuity

Perform the following procedures, **verbally discuss the results with management, and report "We performed the procedure and discussed the results with management":**

A. Obtain and inspect the entity's most recent documentation that it has backed up its critical data (if there is no written documentation, then inquire of personnel responsible for backing up critical data) and observe evidence that such backup (a) occurred within the past week, (b) was not stored on the government's local server or network, and (c) was encrypted.

B. Obtain and inspect the entity's most recent documentation that it has tested/verified that its backups can be restored (if there is no written documentation, then inquire of personnel responsible for testing/verifying backup restoration) and observe evidence that the test/verification was successfully performed within the past 3 months.

C. Obtain a listing of the entity's computers currently in use and their related locations, and management's representation that the listing is complete. Randomly select 5 computers and observe while management demonstrates that the selected computers have current and active antivirus software and that the operating system and accounting system software in use are currently supported by the vendor.

D. Randomly select 5 terminated employees (or all terminated employees if less than 5) using the list of terminated employees obtained in Payroll and Personnel procedure #9C. Observe evidence that the selected terminated employees have been removed or disabled from the network.

E. Using the 5 randomly selected employees/officials from Payroll and Personnel procedure #9A, obtain cybersecurity training documentation from management, and observe that the documentation demonstrates that the following employees/officials with access to the agency's information technology assets have completed cybersecurity training as required by R.S. 42:1267. The requirements are as follows:

- Hired before June 9, 2020 - completed the training; and
- Hired on or after June 9, 2020 - completed the training within 30 days of initial service or employment.

14) Prevention of Sexual Harassment

A. Using the 5 randomly selected employees/officials from Payroll and Personnel procedure #9A, obtain sexual harassment training documentation from management, and observe that the documentation demonstrates each employee/official completed at least one hour of sexual harassment training during the calendar year as required by R.S. 42:343.

B. Observe that the entity has posted its sexual harassment policy and complaint procedure on its website (or in a conspicuous location on the entity's premises if the entity does not have a website).

C. Obtain the entity's annual sexual harassment report for the current fiscal period, observe that the report was dated on or before February 1, and observe that the report includes the applicable requirements of R.S. 42:344:

i. Number and percentage of public servants in the agency who have completed the training requirements;

ii. Number of sexual harassment complaints received by the agency;

iii. Number of complaints which resulted in a finding that sexual harassment occurred;

iv. Number of complaints in which the finding of sexual harassment resulted in discipline or corrective action; and

v. Amount of time it took to resolve each complaint.

RESOLUTION NO. _____, M-C SERIES

RESOLUTION APPOINTING TERRY BASS TO THE MUNICIPAL FIRE AND POLICE CIVIL SERVICE BOARD.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby appoint Terry Bass to the Municipal Fire and Police Civil Service Board with term to expire July 29, 2029.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

RESOLUTION NO. _____, M-C SERIES

RESOLUTION APPOINTING LACY VIATOR TO THE MUNICIPAL FIRE AND POLICE CIVIL SERVICE BOARD.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby appoint Lacy Viator to the Municipal Fire and Police Civil Service Board with term to expire on July 29, 2029.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

RESOLUTION NO. M-C SERIES

RESOLUTION AUTHORIZING THE ADVERTISEMENT OF BIDS FOR THE ANNUAL SUPPLY OF PIPES AND FITTINGS, LIMESTONE & ASPHALT AND CHEMICALS FOR THE CITY OF SULPHUR.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby authorize advertisement for bids for the annual supply of pipes and fittings, limestone & asphalt and chemicals for the City of Sulphur, said bid to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department.

BE IT FURTHER RESOLVED that the advertisement of bids will be in "The American Press, the official journal of the City of Sulphur, in two separate publications, giving notice as follows:

NOTICE TO BIDDERS

Separate and sealed bids for the advertisement of bids for the annual supply of pipes and fittings, limestone & asphalt and chemicals for the City of Sulphur, will be received by the Clerk of the Council until 10:00 a.m. on the 2nd day of December, 2026, at which time bids will be opened and read aloud in an open and public bid opening session to be conducted by the Director of Finance in the Conference Room at City Hall, and the City Council shall at a regular meeting on the 14th day of December, 2026, at 5:30 p.m. proceed to award the bid to the lowest bidder, to waive irregularities, or to reject any and all bids, or otherwise proceed thereto as provided by law. Bids are also available electronically at www.centralbidding.com; free membership is required to access. Said bids to be in accordance with the quantities and specifications on file with the City of Sulphur Finance Department located at 101 North Huntington Street, Sulphur, Louisiana

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____, day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

RESOLUTION NO. _____, M-C SERIES

Resolution appointing Stephen Benoit to the West Calcasieu Port, Harbor and Terminal District.

BE IT RESOLVED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby appoint Stephen Benoit to the West Calcasieu Port, Harbor and Terminal District with term to expire October, 2031.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

ATTEST:

_____
ARLENE BLANCHARD, Clerk

ORDINANCE NO. _____, M-C SERIES

ORDINANCE APPROVING PROPOSED SETTLEMENT AND AUTHORIZING THE MAYOR TO SETTLE THE FOLLOWING SUIT:

Christopher Guidroz
Vs. No. C-2025-3069 "B"
City of Sulphur and Benjamin Kayne Morgan
14th JDC

BE IT ORDAINED by the City Council of the City of Sulphur, Louisiana, the governing authority thereof, that they do hereby approve proposed settlement and authorize the Mayor to settle on the above suit.

APPROVED AND ADOPTED by the City Council of the City of Sulphur, Louisiana, on this _____ day of _____, 2026.

_____
DANNY DIPETTA, Chairman

I HEREBY CERTIFY that the foregoing Ordinance has been presented to the Mayor on this ____ day of _____, 2026, at _____ o'clock ____.m.

_____
ARLENE BLANCHARD, Clerk

I HEREBY CERTIFY that I have received from the Mayor at _____ o'clock ___.m. on this _____ day of _____, 2026, the foregoing ordinance which has approved/vetoed by the Mayor.

_____
ARLENE BLANCHARD, Clerk